

Intellectual Property Law Hand-Out

Chapter I: Introduction to Intellectual property rights

Intellectual property rights are being property rights, are the domain of properties. As the employment of the word “*intellectual*” implies, this domain is composed of the fruits of *human intellect*. In view of the extent of the required magnitude of “*intellectual labour*” instead of “*physical labour*” in the production of intellectual properties, we may have the courage to designate intellectual properties as the ***finest*** properties which deserve the best protection.

The subject matters of intellectual properties are also categorized into various specific classes. Discussing those types of intellectual properties is the concern of the following sub-topic.

Definition and Classification of Intellectual Property

Intellectual property, very broadly, means the legal property which results from intellectual activity in the industrial, scientific and artistic fields. Countries have laws to protect intellectual property for two main reasons. One is to give statutory expression to the moral and economic rights of creators in their creations and such rights of the public in access to those creations. The second is to promote, as a deliberate act of government policy, creativity and the dissemination and application of its results and to encourage fair trading which would contribute to economic and social development.

Generally speaking, IP law aims at safeguarding creators and other producers of intellectual goods and services by granting them certain time- limited rights to control the use made of those productions. These rights do not apply to the physical object in which the creation may be embodied but instead to the intellectual creation as such. IP is traditionally divided into two branches: “industrial property and copyright”. The convention establishing the World Intellectual Property Organization (WIPO), concluded in Stockholm on July 14, 1967 (Art. 2(viii) provides that “intellectual property shall include rights relating to: 1) literary, artistic and scientific works; 2) performances of performing artists, phonograms and broadcasts; 3) inventions in all fields of human behaviour; 4) scientific discoveries; 5) industrial designs; 6) trademarks, service marks, and commercial names and designations; 7) protection against unfair competition and all other rights resulting from intellectual activity in industrial scientific, literary or artistic fields”.

The areas mentioned under (1) belong to the copyright branch of intellectual property. The areas mentioned in (2) are usually called “neighbouring rights”, that is, rights neighbouring on copyright. The areas mentioned under 3, 5 and 6 constitute the industrial property branch of IP. The areas mentioned may also be considered as belonging to that branch.

The expression industrial property covers inventions and industrial designs. Simply stated, inventions are new solutions to technical problems, and industrial designs are aesthetic creations determining the appearance of industrial products. In addition, industrial property includes trademarks, service marks, commercial names and designations, including indications of source and appellations of origin, and protection against unfair competition. Hence the aspect of intellectual creations -although existent -is less prominent, but what counts here is that the object of industrial property typically consists of signs transmitting information to consumers, in particular, as regards products and services offered on the

market, and that the protection is directed against unauthorized use of such signs which is likely to mislead consumers and misleading practices in general.

Scientific discoveries are not the same as inventions. The general treaty on the international recording of scientific discoveries /1978/ defines a scientific discovery as ‘the recognition of phenomena, properties or laws of the material universe not hitherto recognized and capable of verification. “(Art. 1(1)(i)). Inventions are new solutions to specific technical problems. Such solutions must, naturally rely on the properties or laws of the materials universe /otherwise they could not be materially or ‘technically’ applied/, but those properties or laws need not be properties or laws’ not hitherto recognized’. An invention puts to new use, to new technical use, the said properties or laws, whether they are recognized (“discovered”) simultaneously with making the invention or whether they were already recognized (“discovered”) before and independently from the invention.

Industrial and cultural development may be favoured by stimulating creative activity and facilitating the transfer of technology and the dissemination of literary and artistic works. In the Ethiopian legal system too, the protection of intellectual property rights is afforded at constitutional level. The FDRE Constitution recognizes that every Ethiopian citizen has the right to ownership of private property with certain restrictions. Article 40(2) defines private property as any tangible or intangible product which has value and is produced by the labour, creativity, enterprise or capital of an individual citizen, associations which enjoy juridical personality under the law. Thus, the constitution declares protection for every property whether it is tangible or intangible. That means protection is afforded equally for intellectual property rights as any other property since they are intangible products.

It is difficult to determine what types of ownership we should allow for non-corporeal, intellectual objects, such as writings, inventions and secret business information. There are intellectual properties which are not products of the mind. For instance, all trademarks are not products of the mind. Trademarks creation does not necessarily require intellectual activity. The same holds true for geographic indication. They don’t require the work of the mind like patent and copyright.

IP is a bundle of legal rights resulting from intellectual creativity in industrial, scientific, artistic and literary fields. This definition is from the point of view of rights.

IP is legal protection accorded to works of the mind in distinction from manual work (result of physical labour). It is a legal protection accorded to incorporeal ownership.

Regarding protection of IP rights, there were historical, philosophical and epistemological problems. Historically, reservation exists as to the protection of such rights as they don’t exhibit essential characteristics of property, i.e. material existence. They consider corporeal chattels only as propriety. For them property should be subject to appropriation/occupancy/.

The other problem is related to problems of philosophy. They believed that human beings cannot be regarded as a creator of something. They say human beings cannot create something. Which is also reflected in religions?

The problems also relate with epistemology. What we reflect is what we observe from the world (our experience, life experience). The then contemporary writers wrote that IP lacks essential characters to be considered property. Through time the laws of various countries started to incorporate protection to intellectual creativity, though they are independent.

Intellectual Property as property Protection

The division of property as movable and immovable, if it is tangible, was known in Roman law and has been adopted by modern Civil Codes. This kind of classification is also provided under art.1226 of the Civil Code. However, “as a result of the industrial revolution and the rapid development made in the fields of science, technology and culture, new kinds of property came into existence”. New rights and properties like patents, copyright and industrial designs, which came to be known as intellectual property rights (IPRs) received attention due to their unique characteristics.

Intellectual property is so broad that it has many aspects. It stands for groupings of rights which individually constitute distinct rights. However, its conception differs from time to time. It is subject to various influences. The change in information technology, market reality (globalization) and generality have affected the contents of intellectual property. For instance, in olden days-because of religion creation of life, say plants or animals were not protected. Thus, defining IP is difficult as its conception changes. It is diverse, challenging and has application in own day today life.

IP is a section of law which protects creations of the mind, and deals with intellectual creations. Is it a workable definition? It is also commonly said that one cannot patent or copyright ideas.

Intellectual property, as a concept, “was originally designed to cover ownership of literary and artistic works, inventions (patents) and trademarks”. What is protected in intellectual property is the form of the work, the invention, the relationship between a symbol and a business. However, the concept of intellectual property now covers patents, trademarks, literary and artistic works, designs and models, trade names, neighbouring rights, plant production rights, topographies of semiconductor products, databases, when protected by a *sui generis* right, unfair competition, geographical indications, trade secrets, etc.

Those types of intellectual property have been characterized as “pieces of information which can be incorporated in tangible objects at the same time in an unlimited number of copies at different time and at different locations anywhere in the world”. In other words, intellectual property rights are intangible in nature, different from the objects they are embodied in. The property right is not in those copies but in the information which creates in them.

In today’s world, the international dimension of intellectual property is of ever increasing importance for three compelling reasons. First, the composition of world trade is changing. Currently, commerce in intellectual property has become an even greater component of trade between nations. The value of information products has been enhanced greatly by the new technologies of the semi-conductor chip, computer software and biotechnology. Second, the world commerce has become even more interdependent, establishing a need for international cooperation. No longer can a single country impose its economic will on the rest of the world. Accordingly, countries have recognized this interdependence and have called for a broadening of international agreements/arrangements involving intellectual property. Third, new reprographic and information storage technologies permit unauthorized copying to take place faster and more efficiently than ever, undermining the creator’s work. There is a general feeling in the developed countries that much of this sort of copying takes place in the third world due to the relaxation of legal standards. All these factors have prompted the

international community as a whole to accord due recognition to intellectual property and intellectual property regime.

Thus, the above reasons widen the scope of intellectual property rights. Among the bundles of intellectual property rights, copyright that deals with the protection of literary, artistic and scientific works is one.

Justifications for and Against Intellectual Property Protection

Justifications for Intellectual Property Protection (theories)

Societies may be shaped fundamentally as property institutions. These legal relationships between individuals, different sorts of objects, and the state are not easy to justify. This is especially true of intellectual property. It is difficult enough to determine the appropriate kinds of ownership of corporeal objects; it is even more difficult to determine what types of ownership we should allow for non-corporeal, intellectual objects, such as writings, inventions, and secret business information.

Intellectual property is an increasingly significant and widespread form of ownership. Many have noted the arrival of the "post-industrial society" in which the manufacture and manipulation of physical goods is giving way to the production and use of information. The result is an ever increasing strain on our laws and customs protecting intellectual property. Now, more than ever, there is a need to carefully scrutinize these institutions. However, the question is why intellectual properties are protected. There are theories developed in relation to protection of intellectual properties. This topic examines the justifiability of those institutions.

Natural Right theory: Labour Theory (Locke's Theory)

Property right is a natural right. A person has a right to own the creation of his mind in the same manner he owns creation of his labour. At the beginning, everything was common but by using labour /intellect/ it has become private. We need to protect somebody's labour because it is a natural right. So, it may take to conclude that intellectual property rights are natural rights.

The problem is that natural right theory doesn't cope with the temporal limitation of intellectual property rights. It is true that temporal limitation is applicable to intellectual property. Intellectual property is most of the time limited in time as to the protection accorded by law. This theory may be justifiable for corporeal ownership in which its existence may be for indefinite period of time. In intellectual property, however, after lapse of a certain time the work will be part of the public domain.

Nothing can be called with greater prosperity man's property than the fruits of his labour. The property in any article or reason of his own mechanical labour is never denied him; the labour of his mind is no less worth of the protection of the law.

A person has a natural right to the fruits of her labour and that this should be recognized as her property, whether in tangible or intangible term.

John Locke has two theses. 1) Everyone has property right in the labour of his own body. The labour of his body and the work of his hands are properly his. 2) The appropriation of a non-owned object (ideas or theories) arises out of application of human labour to that object. Mixing one's own labour with not owned thing confers upon a property right in the whole

thing. However, after appropriation there must remain objects of similar quality in sufficient quantity for others: “Enough and as good left for other.”

Personality Theory

Intellectual property rights are important to create personal self-assertion. As propounded by Hegel, a person would be more self-assertive when she/he owns property. He will feel more equal (equality). He will be freer. It is believed that the work is the personal expression of the author's or the inventor's thoughts. So he should be given the right to decide when and how his work may be produced or performed in public, and the right to prevent mutilations and changes. Intellectual property laws are to be there to protect the author's or the inventor's manifestation of his personality. This is also backed by the need for the safeguarding of the individual's freedom of expression.

Utilitarian Theory

What do Intellectual Property Rights do? They make the public good a private, a non rivalrous – rivalrous and the non-exclusive – exclusive, and the non-scarce scarce which are not scarce by nature. The laws create artificial scarcity of knowledge. This is because creators do not have the necessary incentive unless they have accorded some means to control their knowledge. Unless this is done, they lack the necessary economic incentive. This is called utilitarian theory of intellectual property.

Utilitarian is institution socially beneficial. It states that we have intellectual property systems because it has the effect on the betterment /economic/ of the society. Its correctness is to be assessed in the economic success of the countries. So, it is more of an economic issue. We have witnessed tremendous technological advancements both in the science and the arts.

The question is: would it be possible without intellectual property systems?

According to this theory, you do something because you will get something. Why should we care about creations of society? Society should care about its creators because the ultimate beneficiary is the society itself because they give solution to technical problems.

Such theory has never been successful as we would expect them to be. There is an objection from economists. When intellectual property is given exclusive rights, according to them, it is a creation of a monopoly right. Monopoly is contradistinguished with a perfectly competitive market. If monopoly is unrestricted it will result in market crash. How does intellectual property right create monopoly? How do antitrust organizations fight monopoly?

There are arguments counterfeiting this. Whenever the law gives an exclusive right to the innovator, the right holder is not enabled to control the problem. There are so many ways of resolving a problem. That means there is no intellectual property law which prohibits other innovators from innovating a solution to the same problem. This is not sound in copyrights since they protect expression of ideas.

Patent for a drug for a certain illness does not prohibit innovating another drug for the same illness. However, each monopolizes their right until another comes. So, the monopolistic nature is undeniable. That is why governments try to control such monopolization.

What if design law does not exist? Some say without intellectual properties, designers will not engage in such business and then a given society may not promote cultures.

There is a counter argument for the monopolization of a patent. The economic incentives given to an inventor enforce another person to invent around the patented idea. It stimulates others to develop an alternative solution because of the monopolization of the patented idea. So it induces inventing around an existing patent.

There is a counter argument to this, i.e., if we end up in giving different solutions to the same problem, it will result in economic waste since there are different problems which we have to give solutions to.

The other version of utilitarian theory is incentive (bargain) theory. The protection given to intellectual property is an incentive to individuals not only to create works of the mind but also to publicize and disseminate them into the public. It is to encourage creativity and publicity. Works of the mind are very important to a given society for its social, cultural and economic development.

Through literature development, the cultural orientation of a given country will be promoted. Invention promotes industrialization. Development of the west has to do much with intellectual creativity.

Those works require investment in terms of time, money and effort. So without protection people will not invest on them. They are no less investment demanding than corporeal thing and the protection of the law is needed. In addition, creativity by itself is not adequate. If the work of a mind is not made available to the public, that is not useful. With protection publicity will be encouraged thereby enabling their publicity and serve their intended purpose. Upon the expiry of their period of protection the public will start to use the properties. When right is protected then the creator will make his work to be known. Without protection people may not make their works known. The state is bargaining with individuals. Do intellectual properties really stimulate innovation? Are not there any stimulators other than intellectual property rights? It is a controversial issue.

The other question is: does the theory really work? Numerous assertions are made. There are factors other than intellectual property rights which stimulate innovation.

Before the existence of intellectual property rights there were innovations. Some say, even great works of the mind are created without the existence of protection. As an example, we can take Shakespeare's writings. What incentives encouraged these people? What they are saying is there are born creators, who continue creating even without protection. People create for different reasons: to satisfy their natural urge, necessity, fame... Some writers say copyright is unnecessary restriction on the public favour of the author. For them, when there is shortage, a better system is needed and creativity follows even without legal protection.

However, the critics must be seen seriously in light of the world's development. In older days, people may write books because violation itself is very difficult, there were no printing machines, no mechanism of dissemination, no recording machines for reproduction and distribution.

In history, works of the literature were even limited to certain groups, elites of the church. These days, however, the situation is changed. The critics on incentive theory will not work firmly today.

Objections to incentive and reward theory may be summarized as:

The need to pay the rights owner a royalty or fee may increase the price of the product or service to which intellectual property right relates. It can be seen as a kind of tax on knowledge and information.

Even if consumers are prepared to pay the prices charged by the right owners, the latter may not meet the demands of the public in sufficient quantities. This will lead to compulsory license.

The grant of rights has little positive effect in promoting investment that is required for the production of new inventions, technical innovation, literary and artistic productions and the like.

Whilst no monopolies in the strict sense are applied by economists, intellectual property rights have the potential to be used to anti-competitive effect, particularly where they are pooled together or used as a lever to obtain other ends.

Intellectual property rights can be used to suppress free speech and access to information.

Regarding issues related to intellectual property rights, we have attached the following different materials written by different scholars. Please read them critically.

Justifications against Intellectual Property Protection

Adding up on critiques against each justifying theory raised earlier, there is a strong case for opposing intellectual property. There are a number of negative consequences of the ownership of information, such as retarding of innovation and exploitation of poor countries. Most of the usual arguments for intellectual property do not hold up under scrutiny. In particular, the metaphor of the marketplace of ideas provides no justification for ownership of ideas. The alternative to intellectual property is that intellectual products not be owned, as in the case of everyday language. Strategies against intellectual property include civil disobedience, promotion of non-owned information, and fostering of a more cooperative society.

The alternative

The alternative to intellectual property is straightforward: intellectual products should not be owned. That means not owned by individuals, corporations, governments, or the community as common property. It means that ideas are available to be used by anyone who wants to.

One example of how this might operate is language, including the words, sounds and meaning systems with which we communicate every day. Spoken language is free for everyone to use. To allow any group to own language raises the spectre of George Orwell's 1984. (Actually, corporations do control bits of language through trademarks.)

Another example is scientific knowledge. Scientists do research and then publish their results. A large fraction of scientific knowledge is public knowledge. There are some areas of science that are not public, such as classified military research. It is generally argued that the most dynamic parts of science are those with the least secrecy. Open ideas can be examined, challenged, modified and improved. To turn scientific knowledge into a commodity on the market, as is happening with genetic engineering (Mackenzie et al. 1980; Weiner 1986), arguably inhibits science.

Few scientists complain that they do not own the knowledge they produce. Indeed, they are much more likely to complain when corporations or governments try to control dissemination

of the ideas. Most scientists receive a salary from a government, corporation or university. Their livelihoods do not depend on royalties from published work.

University scientists have the greatest freedom. The main reasons they do research are for the intrinsic satisfaction of investigation and discovery—a key motivation for many of the world's great scientists—and for recognition by their peers. To turn scientific knowledge into intellectual property would dampen the enthusiasm of many scientists for their work.

Neither language nor scientific knowledge is ideal; indeed, they are often used for harmful purposes. It is difficult to imagine, though, how turning those into property could make them better.

The case of science shows that vigorous intellectual activity is quite possible without intellectual property, and in fact that it may be vigorous precisely because information is not owned. But there are lots of areas that, unlike science, have long operated with intellectual property as a fact of life. What would happen without ownership of information? Many objections spring to mind. Here I'll deal with a few of them.

Plagiarism is a great fear in the minds of many intellectual workers. It is often thought that intellectual property provides a protection against plagiarism. After all, without copyright, why couldn't someone put their name on your essay and publishes it? Actually, copyright provides very little protection against plagiarism and is not a good way to deal with it.

Plagiarism means using the ideas of others without adequate acknowledgement. There are several types of plagiarism. One is plagiarism of ideas: someone takes your original idea and, using different expression, presents it as their own. Copyright provides no protection at all against this form of plagiarism. Another type of plagiarism is word-for-word plagiarism, where someone takes the words you've written—a book, an essay, a few paragraphs or even just a sentence—and, with or without minor modifications, presents them as their own. This sort of plagiarism is covered by copyright—assuming that you hold the copyright. In many cases, copyright is held by the publisher, not the author. In practice, plagiarism goes on all the time, in various ways and degrees, and copyright law is hardly ever used against it. The most effective challenge to plagiarism is not legal action but publicity. At least among authors, plagiarism is widely condemned. To be exposed as a plagiarist is more than sufficient motivation for most writers to take care to avoid it.

There is an even more fundamental reason why copyright provides no protection against plagiarism: the most common sort of plagiarism is built into social hierarchies. Government and corporate reports are released under the names of top bureaucrats who did not write them; politicians and university presidents give speeches written by underlings. These are examples of a pervasive misrepresentation of authorship in which powerful figures gain credit for the work of subordinates. Copyright, if it has any effect at all, reinforces rather than challenges this sort of institutionalized plagiarism.

What about all the writers, inventors and others who depend for their livelihood on royalties? First, it should be mentioned that only a very few individuals make enough money from royalties to live on. Most of the rewards from intellectual property go to a few big companies. But the question is still a serious one for those intellectual workers who depend on royalties and other payments related to intellectual property.

The alternative in this case is some reorganization of the economic system. Intellectual workers could receive a salary, just like most scientists do.

Getting rid of intellectual property would reduce the incomes of a few highly successful creative individuals, such as author Agatha Christie, composer Andrew Lloyd Webber and filmmaker Steven Spielberg. Publishers could reprint Christie's novels without permission, theatre companies could put on Webber's operas whenever they wished and Spielberg's films could be copied and screened anywhere. Jurassic Park T-shirts, toys and trinkets could be produced at will. This would reduce the income of and, to some extent, the opportunities for artistic expression by these individuals. But there would be economic resources released: there would be more money available for other creators. Christie, Webber and Spielberg might be just as popular without intellectual property to channel money to them and their family enterprises.

But, what about the incentive to create? Without the possibility of wealth and fame, what would stimulate creative individuals to produce works of genius? Actually, most creators and innovators are motivated by their own intrinsic interest, not by rewards. There is a large body of evidence showing, contrary to popular opinion, that rewards actually reduce the quality of work. If the goal is better and more creative work, paying creators on a piecework basis, such as through royalties, is counterproductive.

In a society without intellectual property, creativity is likely to thrive. Most of the problems—that are imagined to occur if there is no intellectual property—such as the exploitation of a small publisher that renounces copyright—are due to economic arrangements that maintain inequality. The soundest foundation for a society without intellectual property is greater economic and political equality. This means not just equality of opportunity, but equality of outcomes. This does not mean uniformity and does not mean levelling imposed from the top: it means freedom and diversity and a situation where people can get what they need. There is not space to deal fully with this issue here, but suffice it to say that there are strong social and psychological arguments in favour of equality.

Introduction to international intellectual property treaties

The global architecture of the IPRs regime has become increasingly complex, and includes a diversity of multilateral agreements, international organizations, regional conventions and instruments, and bilateral arrangements. In brief, the international law on intellectual property, in its present form, consists of three types of agreement: multilateral treaties, regional treaties or instruments, and bilateral treaties. Of these, the agreements that affect the greatest number of countries are the TRIPS Agreement and some of the multilateral treaties administered by WIPO. One of WIPO's main objectives is to promote the protection of intellectual property throughout the world through cooperation among States and, where appropriate, in collaboration with any other international organization.

Multilateral treaties: - Most of these agreements are administered by WIPO, and are of three types:

1. Standard-setting treaties, which define agreed basic standards of protection for the different IPRs, and also typically require national treatment. These include the 1883 Paris Convention for the Protection of Industrial Property, the 1886 Berne Convention for the Protection of Literary and Artistic Works, the 1961 Rome Convention for the Protection of Performers, Producers of Phonograms and Broadcasting Organizations, the 1996 WIPO Copyright Treaty and the WIPO Performances and Phonograms Treaty. Important non-WIPO treaties of this

kind include UNESCO's 1952 Universal Copyright Convention, the 1961 International Convention for the Protection of New Varieties of Plants (the UPOV Convention), and the WTO-administered TRIPS Agreement.

2. Global protection system treaties, which facilitate filing or registering of IPRs in more than one country. These include the 1970 Patent Cooperation Treaty, the 1891 Madrid Agreement Concerning the International Registration of Marks, and the 1958 Lisbon Agreement for the Protection of Appellations of Origin and their International Registration.

3. Classification treaties, which "organize information concerning inventions, trademarks and industrial designs into indexed, manageable structures for easy retrieval". These include the 1957 Nice Agreement Concerning the International Classification of Goods and Services for the Purposes of the Registration of Marks, the 1968 Locarno Agreement Establishing an International Classification for Industrial Designs, and the 1971 Strasbourg Agreement Concerning the International Patent Classification.

Regional agreements (or for that matter bilateral agreements) are also extremely important. First, their membership may be quite large, covering 20 or more countries. Second, it is possible that novel provisions in such agreements could subsequently be globalised through their incorporation into new multilateral agreements. Third, developing countries may be required to introduce provisions that go beyond what the TRIPS Agreement requires, such as extending patents to new kinds of subject matter and eliminating certain exceptions. Fourth, the most-favoured-nation (MFN) treatment obligation obligates, in general, WTO Members to extend such "TRIPS-plus" provisions in regional agreements to all other WTO Members. Thus, regional standards might have a direct impact on the global IPRs architecture. Fifth, regional agreements might stipulate that contracting Parties should accede to certain international conventions. The above points might also apply to bilateral agreements.

Chapter II: Copyright and Neighbouring Right

Overview of Copyright Industry in Ethiopia

The history of legal protection of copyrights in Ethiopia dates back to the 1960 Civil Code, which included a fairly comprehensive protection to copyrights. Currently, the Proclamation defines copyright under Art 2(8) as an economic right subsisting in a work and where appropriate including the moral right of an author. As can be seen, it is defined from the perspective of the rights of the author as it is based on the bundle of the author's economic and moral rights in his work that are provided under Art.7 and 8 of the Proclamation. Works of the author are productions in the literary, scientific and artistic fields that include particularly: books, booklets, articles in reviews and newspaper, computer programs; speeches, lectures, addresses, sermons, and other oral works; dramatic, dramatic-musical works, pantomimes, choreographic works, and other works created for stage production; musical compositions; audio-visual works; works of architecture; works of drawing, painting, sculpture, engraving, lithography, tapestry, and other works of fine arts; photographic works; illustrations maps, plans sketches, and three dimensional works related to geography, topography, architecture or science.

Which of the competing theories are given recognition in our law? Is it the natural right theory or utilitarian theory? It is possible to promote the cultural, scientific, technological development of a country when creators are allowed to control their work. It is the utilitarian theory which is included under the preamble. In countries like the USA it is stated that copyright law is important for the society. Similarly, copyright law in Ethiopia has the public purpose in that by rewarding authors, it is possible to encourage them and produce works useful to the society. It is a means to an end /the social end / in creating the creator's interest. However, in France, (the birth place of natural right theory), copyright law is important for the recognition of the natural right of the author.

In the case of utilitarian theory, if a certain creation does not benefit the society in case of conflicts of interest between the individual and the society, it will be rejected. The preamble of any law has an implication in the interpretation of many cases. In a copyright word, there is always a conflict between the creator and the public because the public want the work to be accessible and the creator not. In the preamble, moral rights are not mentioned although inside the law all the moral rights are mentioned. By the way, in British it is called Copyright whereas in France it is named as authors rights.

To give more emphasis, if we see the preamble of the proclamation as to the question of why copyright protection, it is because of the role of those works in bringing about overall change. It is provided, in the Preamble of the Proclamation, that "literary, artistic and similar creative works have a major role to the cultural, social, economic, scientific and technological development of a country". It seems the legislator wants to give incentive for societal benefit. These may be related with the bargain or utilitarian theory. Thus, it may be argued that utilitarian theory is the justification for the protection of copyright in the Ethiopian copyright law.

Art. 2(8) define copyright as an economic right subsisting in a work and in appropriate case moral right to an author. It leans more to the Anglo-American tradition unlike the civil code, which is inclined to the author's rights in the continental legal system.

Some argue that common law tradition is important in encouraging others to create more and more, and in effect it is important in the development of an art. This is also something to do with the social structure in those traditions. In Anglo-American traditional, money is everything as opposed to the continental tradition.

On the other hand, it can be argued under the Ethiopian copyright system, copyright includes the economic and moral rights of the author though it emphasizes the economic rights in the definition part of the Proclamation. However, the moral rights of the author in his works are equally treated like economic rights under Art.8 of the Proclamation. Author is defined as a person who has intellectually created a work (Art2 (12) of the Proclamation). To be an author it requires mental creation that the juridical person lacks. Thus, the right can only originally be vested on physical persons as juridical persons do not have a mind for intellectual creations. Moreover, the rights of performers, producers of sound recordings and broadcasting organizations are, like the civil law legal system, Neighbouring rights, not copyrights. However, the concept of Neighbouring rights does not exist in the U.S. law, which is the signatory for common law legal system, as it either qualifies for copyright protection or unfair competition laws or the Federal Communication Act (for broadcasts in

certain situations). This tempts us to conclude that the copyright system in Ethiopia is aligned to the civil law legal system.

Copyright taken as a natural right is also reflected in the Constitution of the Federal Democratic Republic of Ethiopia (FDRE). The FDRE Constitution recognizes the right to private property as one of the democratic rights. Private property as defined in Art.40 (2) of the constitution includes any intangible product having value. Copyright being a property right on an intangible product of labour and creativity, and having value, becomes the private property of the author, thereby being recognized as one of the democratic rights. Therefore, it is a natural right of a person to create an intellectual property, have ownership right over it thereby making it private property. This implies that a natural right theory is recognized in our copyright system.

Moreover, according to Art.13 (2) of the FDRE Constitution, the fundamental rights and freedoms including the democratic rights are to be interpreted in a manner conforming to the principles of the Universal Declaration of Human Rights (UDHR). The UDHR is also recognized through the Transitional Government Charter. And in this Declaration, copyright is recognized as human right, i.e., natural right (Art.27). Therefore, under the FDRE Constitution copyright is protected on the basis of the recognition that it is a natural right. Moreover, the UDHR is made an integral part of our law as per Art 9(4) of the FDRE constitution. Hence, it can be argued that the UDHR is recognized through Art 13(2) of our constitution and economic and moral rights are made part and parcel of the Ethiopian law, as they are incorporated under the UDHR. In this regard, the UDHR specifically provides that everyone has the right to protection of the moral and material interest resulting from any scientific, literary or artistic production of which he is the author.

Therefore, it may also be concluded that it is the natural right basis that serves as the primary justification for the protection of copyrights under the Ethiopian legal system.

Subject Matters Protected

Broadly speaking works are protected. Expressions of ideas on which a person has exercised his judgment (skill) are protected. The expressions may take different forms. The question is: Is the claimed work a copyrightable work?

Our copyright laws do not list protected works exhaustively. The law defines “work” under Art 2(30) of the proclamation as “a production in the literary, scientific and Artistic fields. In the advent of Technology other works may emanate. Art 2(30) is regarded as an area where the proclamation shows more progress than does the civil code. It is also a bit clearer. Nonetheless, it includes in particular: books, booklets, articles in reviews and newspapers, computer programs; speeches, lectures, addresses, sermons, and other oral works; dramatic, deramatico-musical works, pantomimes, choreographic works, and other works created for stage production; musical compositions; audio-visual works; works of architecture; works of drawing, painting, sculpture, engraving, lithography, tapestry and other works of fine arts; photographic works; illustration maps, plans sketches, and three dimensional works related to geography, topography, architecture or science. Thus, the main four types of protected works are literary, scientific and artistic works.

There is no definition in the proclamation for those protected works, however. Therefore, if we are to understand the nature of such works, it is necessary to resort to foreign literatures.

Literary, dramatic and musical works can all be reproduced either in sounds or by written symbols. They can be performed on a stage or printed in books.

Artistic works on the other hand, remain subject to their own rules. Each picture (or graph, chart, building, sculpture) is a complete copyright work in itself and in most cases physically indivisible; words in the other three categories are not.

Requirements for Protection

Art 6 provides that copyright protection is automatic-the protection comes upon creation of the work. There is no formality. However, there are two conditions: originality and fixation. We will see those requirements as formal and substantive.

Formal Requirement

Fixation

The formality requirement stated under the proclamation is fixation. (See Art 6 of the proclamation). It means works that enjoy copyright protection have to be reduced to a tangible medium. This is a requisite, a condition precedent for copyright to subsist in. In order to attract copyright protection, a work that is a product of the creative activity of its author must exist in some objective form before it is considered an object of copyright. In other words, an expression of an idea is copyrightable when it is reduced to a concrete form from which reproductions can be made. Thus "copyright arises whenever a work is created and expressed in some external form such as a manuscript, drawing, film, or mechanical recording or it can be expressed in the form of speech.

The requirement that a work be expressed in a material form means that "the work must exist in some form that may be perceived and reproduced by third parties." This requirement is an explanation of the exclusion of ideas from the ambit of copyright protection.

This requirement of material form is stated under Art 6 (1) (b) of the proclamation. It is clearly provided that "the author of a work shall, irrespective of the quality of the work and the purpose for which the work may have been created, be entitled to protection, for his work without any formality and upon creation where it is: a) original; and b) fixed.

Starting from the time of creation and fixation, there is copyright protection. It is a clear provision that requires a work be recorded in a medium which is not ephemeral. Fixation is also defined under Art 2(11) of the proclamation as the "embodiment of works or images or sounds, or of the representations thereof, from which they can be perceived, reproduced or communicated through a device prepared for the purpose".

Therefore, an author's work is protected as soon as a work is reduced in some concrete way because the law protects all expressions upon fixation in a tangible form. However, fixation and giving protection for works up on creation will be inconsistent. In other words, the requirement of fixation has no formality requirement but the fact that works would be copyrightable upon creation is contradictory because the time of creation and fixation is different. Though speeches, lectures and other vocal performance are stated as copyrightable works, they will not be protected unless the author reduces them to writing or to any tangible form. No matter how much is invested in developing a dramatic character for public performance, it is not copyrightable unless it is at some point reduced to a physical expression

Art. 2(11) defines fixation as embodiment in a material form or a medium from which the work can be perceived or reproduced. The elements are: embodiment, a device, and in such a way that the content could be retrieved from the device, could be reproduced. For instance, musical works (compositions) can be embodied in an audio-cassette, CD what about lecture notes and traditional music song by illiterates? Who has to fix them? What about stage production and choreographic works? Is it the person who created the work or any other?

Fixation is not, however, a requirement in continental law countries. In Europe, a work will be copyrighted if it fulfils the criteria of originality. That is to mean, due to lack of fixation a work may be excluded from being copyrighted.

Unlike other legal systems those may have more formality requirements like, registration, notice, etc., our legal system limits formality requirement to fixation. Please note additional requirements for some specific works like photographs.

Substantive Requirement

A literary or artistic work which is an object of copyright and which is created by a subject of copyright is not copyrightable if it lacks originality irrespective of the fact that it is reduced to a material form. The question is what is originality? Originality is not defined in the proclamation. Some jurisdictions dictate that the work should originate from the author himself. A person who has copied from others cannot claim originality. A direct copy of someone else's work (leaving aside its illegality) plainly cannot claim a new and separate copyright for itself. In short, originality is said to be a little more than the mere absence of plagiarism, though it does not go so far as to imply novelty or literary merit.

Since copyright subsists only in original works of the mind, it is necessary to ascertain what is meant by the word 'original' and the nature and degree or quality of originality of a work to sustain a valid copyright. The requirement of originality means that the product must originate from the author in the sense that it is a result of skill, industry or experience employed by him. In effect, the meaning of the originality requirement is that the work must not be copied from another or must not have been in the public domain.

Thus copyright protection is given to literary and artistic works and not to ideas, and therefore it is original skill or labour in execution of the work, and not originality of thought, which is required. The originality required by copyright laws relates to the expression of thought in which the work is clothed. It does not have anything to do with originality of ideas which enjoy no protection under copyright law. Rather it relates to expressions that are embodied in copyrightable works.

Some scholars tried to make a contrast between novelty and originality. Novelty – if a person giving an idea is known already by others, a person who independently creates that idea can't get patent protection. The idea should not be anticipated by a prior art.

Originality – Even though a given expression is created by others a person who independently comes up with the same expression can seek copyright protection. There is a possibility of similarity of artistic works.

Originality in copyright should not thus be taken to mean novelty, in the sense of original or inventive thought. All that is needed to satisfy originality is that the author contributes something more than merely trivial variation something recognizably his own. Since his

work need not be novel, all that is needed to obtain copyright is that the work be originated with the author who has not copied it from another.

Therefore, originality should not be confused with novelty: when two artists paint a picture of the same landscape on their own perspective, each creates a work, each being original since it reflects the personality of the maker. Nor should originality be confused with the merits of the work or intrinsic value of the work or even with the purpose of the work; these factors seem immaterial to the protection obtained.

It is inevitable that when two people deal with a common idea or fact, no matter how varied the form of expression may be, certain common elements will appear in their respective works. There might be similarity in the work due to the fact that both works deal with the same subject matter or have the same common source, but if each work is independently developed; neither will be denied a valid copyright.

In addition, originality is not defeated by the fact that the work has its source in the public domain. An author who borrows from the public domain in creating a copyrightable work is entitled to protection against one who copies his work rather than the work in the public domain. The fact that the source of a work is in the public domain “doesn’t void copyright, although the protection is limited to the new and original work of the author”.

Accordingly, the requirement of originality as a requisite for copyright protection has been incorporated under our law by virtue of Art 6(1) (a) of the proclamation. Under this article, for the entitlement of copyright protection, the work of an author should be original without any other formality and irrespective of the merit and purpose of the work.

Therefore, originality in our law is a substantive requirement for copyright protection. Unless the work of the author is original, it will be devoid of copyright ability.

Is originality not concluded in the concept of authorship under Art 2(2)? To what extent is it original when the law says the work is original? What level of creativity should be required for the work to qualify as original? Is it trying to imply that adequate skill and judgment is needed by including originality? Our law does not tell us the level of creativity.

However, it is wise not to define originality as it is dependent upon the circumstances surrounding the work. A work is original if it emanates from the mind of the author. The work is original when it owes to some creativity.

Economic and Moral Rights Accorded by Copyright

Economic rights

The economic rights of the author involve his pecuniary interest. They relate to the right to exploit, put his work to economic purposes. The basis of economic rights is that the author should be compensated and rewarded, and is entitled to receive remuneration from the use of his work by others.

To put it differently, one of the main purposes of copyright law is to ensure that authors receive some share of any money resulting from the exploitation of their works. In order to achieve this objective, the law provides a number of exclusive rights exercisable by the author or copyright owner against all other persons. Among these are reproduction right, derivative work right, distribution right, importation right, public display right, performance right, broadcasting right and other communication of the work to the public right (see Art. 7(1) of the proclamation).

A) Right of reproduction

Reproduction, as an exclusive right of the author, is recognized under Art 7(1) (a) of the proclamation. As part of the economic rights of the author, reproduction (as defined in Art. 2 (25)) allows the author or copyright owner to exclude all others from reproducing the work in the form of a copy or phone record.

Then it is illegal to reproduce the work in any material form (e.g. print of any size, video or audio recordings, and films) and specifically includes storing the work in any medium by electronic means (including on computer disk) without the permission of the author or copyright owner.

B) Right of derivative works

An author has the right to exclude others from creating works based on his own. This right safeguards an author from what otherwise might be unduly narrow interpretation of the reproduction right, which could then permit another to vary elements of the work sufficiently to assert that it is not actually a copy /reproduction/. A derivative work (pursuant to Art 4 (1) is so comprehensive term that it includes such things as translations, dramatizations, fictionalizations, Films, recordings, arrangements, and abridgments, condensations in which a work may be recast, transformed or adopted.

In general, no one may translate a copyrightable work without the permission of the author or copyright owner. However, in many ways a translation is quite separate from the work on which it is based. It is a new work and is entitled to its own new copyright, regardless of the copyright status of the original. It qualifies for protection, or does not, entirely on its own. The translator is the legal author; publication of a translation does not constitute publication of its original and vice versa. Translations can, however, never completely sever their connection with the parent original. Besides when a work is translated into more than one language, the copyright situating for each version is totally separate.

The same pattern works for other derivative works like adaptation, dramatization, and etc.

C) Right of distribution of works

The other basic exclusive right of the author or copyright owner is the distribution of the original or a copy of the work to the public by sale or rental as envisaged under Art 7 (1) (d) of the proclamation. The exclusive right of reproduction is nothing unless the author or copyright owner gets an economic benefit from the reproduced works by sale or rent. The only means of securing an economic benefit from the fruits of his work is either sale or rent.

If someone did this, it is a copyright infringement.

However, this shall not apply to rental or public lending of computer program except where the program is an essential object of the rental or lending (see Art. 7(2) of the proclamation).

D) Right of importation of works

Apart from the above rights, the author or owner of a work has the exclusive right to carry out or authorize importation of his works. It means he can import his original or copies of his works or he can authorize importation of original or copies of his works manufactured

abroad. This exclusive economic right of importation of the works is at the hand of the author or copyright owner as it is envisaged under Art 7 (1) (e) of the proclamation.

E) Right of public display of works

Like those economic rights discussed above, the author or owner of a work has an exclusive right to display his original or copied works to the public. However, to display the original or copy of a work, the works should be fixed in a material form. This includes the public presentation (exhibition) of works like figurative arts. This right of public display of works is recognized under Art 7 (1) (f) of the proclamation.

F) Right of performance

The author or owner is granted of a work exclusive right to perform (produce) his work by Art 7(1) g) of the proclamation. In other words, the performance right of the author protects one of the channels through which economic benefits derive from. The expression “performance” refers to production and is used interchangeably in literatures on copyright. It is possible to define performance from the word “performer” defined under Art, 2 (19) of the proclamation, as acting, singing, delivering, declaiming or playing in or showing otherwise any literary and artistic works. Specific performance is defined under Art 2 (24) of proclamation. public performance is defined as performing a work to the public by recitation, playing, dancing, acting or otherwise, either directly or using any communication media; in case of an audio-visual work, showing the images in sequence and; in case of sound recording making the sound recording audible to the public. It can be said that performance is reciting, rendering, playing, dancing or acting of a work either directly or by means of any device or process.

G) Right of broadcasting

The other economic right of the author or owner of copyrightable work is broadcasting of his work. Broadcasting is defined under Art 2 (3) of the proclamation as transmission by wireless means for public reception of sounds or of images and sounds. Therefore, in order to transmit his works with sounds or images and sounds through a wireless means, the author or owner has an exclusive right.

A copyrightable work can be broadcast or transmitted in its original wording in straight reading or narrative form when the text is simply read aloud, or if the printed text is directly photographed. When novelists sell television rights or sound broadcasting right in their books, they are usually selling the right to turn the novel in to a script for broadcasting-part of the restricted act of converting a non-dramatic work into dramatic work. Dramatic and musical works can be broadcast direct, as it were, though it is possible to give a straight reading of a play as well as a full scale performance of it.

No one may broadcast a substantial part of any copyright work, or any adaptation or translation of it, without permission of the author or owner of the work. He has an exclusive economic right on the broadcasting of such copyrightable works as per Art 7 (1) (h) of the proclamation.

H) Right of communication of works to the public

This kind of right is other than broadcasting of the work. Communication to the public is defined under Art. 2 (6) of the proclamation as the transmission by wire or without wire images or sounds or both of a work, a performance, a sound recording or a broadcast in such a way that the images or sounds can be perceived by a person outside the normal circle of a family and its closest social acquaintance at a place or places so distant from the place where the transmission originates, that without the transmission the images or sounds would not be perceivable and, further, irrespective of whether the person can receive the images or sounds at the same place and time, or at a different place and/or time individually chosen by them.

One means of communication of the works to the public will be through a cable program service. It is a service which consists wholly or mainly in sending visual images, sounds or other information by means of a telecommunication systems, otherwise than by wireless telegraphy, for reception- a) at two or more places (whether for simultaneous reception or at different times in response to requests by different users), or b) for presentation to members of the public.

Under Art 7 (1) (i) of the proclamation, this right (the right to communicate his work to the public) is exclusively given to the author or owner of the work. Therefore, no one may include in a cable programmed service a substantial part of any copyrightable work without the permission of the author or owner of the work.

In general, irrespective of the means of communication of works to the public, the author or owner of a work has the exclusive right to carry out or authorize communication of the work to the public.

Generally, in case of original work of art or original manuscript of a writer or a composer, the author or his heirs shall have the inalienable right to have a share of the resell price of the work subsequent to the first transfer of the work by the author. However, the amount of the share and the conditions of entitlement will be determined by the regulation (see Art. 7(3) of the proclamation.

Moral Rights

The doctrine which purports to protect the personal rights of the creator as distinct from their mere economic rights is known as moral right. A moral right, as the negative right, is to prevent violations of the personality of the author. Its objective is to assure respect for the author's thought and personality. It is the right which confers upon the creator to dispose freely of the product of his creativity, to modify it or to destroy it entirely, as he sees fit.

The various ramifications of the doctrine of moral right may be said to consist of the right to create and to publish in any form desired, the creator's right to claim the paternity of this work, the right to prevent every deformation, mutilation or other modification thereof, the right to withdraw and destroy the work, the prohibition against excessive criticisms and the prohibition against all other injuries to the creator's personality.

The doctrine of moral rights of authors is the out-growth of centuries of literary and artistic creativeness and it is indigenous to continental jurisprudence. To be precise, its origin is France and its parentage multiple. This is said because the French statute of March 11 1957 provides that "the author has the right to demand respect for his name and authorship and for the integrity of his work." In other words, the law of March 11, 1957 concerning literary and artistic rights replaced previous legislation and codified the rules enunciated by the courts,

including those relating to the moral right. Accordingly, the moral right has taken on a statutory character.

When a person creates, be he an author, a painter, a sculptor, an architect or a musician, he does more than bring into the world a unique object having exploitative possibilities: he also projects into the world part of his personality and subject it to the ravages of public use. J. Holmes of the United States, in this regard is reputed to have said this:

Personality always contains something unique. It expresses its singularity even in hand writing, and a very modest grade of art has in it something irreducible, which is one man's alone, that something he may copyright.

Moreover, Oscar Wilde expressing the relationship between the author's personality and his work said as follows: *A work of art is a unique result of a unique temperament. Its beauty comes from the fact that the author is what he is Art is the most intense of individualism that the world has ever known.*

Thus, the work bears the stamp of its author's personality because in every man's work, the character of the writer is recorded. Use and dissemination of the work, therefore, not only bring economic profit, they also enhance the author's name and fame. The author seeks economic gain and the promotion of his reputation through his work.

Accordingly, independently of the economic aspect of copyright, and even after the transfer of it, the author has the right to claim authorship of his work and to object to any distortion, mutilation, modification or other "derogatory" action in relation to his work which would be prejudicial to his honour or reputation.

Attached inalienably to the author as per Art 8 (2) of our proclamation, therefore, the moral right always protects the personality of the author. Like the economic aspect of copyright, the moral aspect has many ingredients that constitute the bundle of rights in it and that is the reason, which calls for a discussion of the components of moral rights.

A) Right of paternity

The right of paternity entitles the author to insist that he and not another person is credited with the authorship of the work he created. An author is a man who brought out of nothingness some 'child' of his thought and upon its creation he is dubbed the 'father' of such 'child'. As a unique result of a unique temperament, the work of art is the most intense mode of individualism that the world has ever known. Its beauty is an external reflection, a projection of the creator's inner self to the external world, that is, its beauty comes from the fact that the author is what he is.

As a result, the author is given the right to require all others to associate his name with his work and to prevent attribution of his name to a work that is not his. The right to paternity is, therefore, firstly, the right of the creator of the work to present himself to the public as such, secondly, to require others to present him as such, and thirdly, to prevent others from attributing works to him which he has not created. In essence, the right of paternity protects the author not only against unauthorized denial but also against false imputation of paternity as well. Of these three ingredients, the first is the right of the author to demand his name to appear on all copies as well as on advertising or other publicity for the work. The second component prevents plagiarism of his work. Out and out plagiarism presents at once the most obvious violation of this interest and the most serious invasion of the author's pecuniary

rights. The third aspect provides protection against being named as the author of a work that has been mutilated or altered.

However, to be anonymous for his work or using pseudonym is a right reserved for the author not an obligation for him. In other words, in Ethiopia an author is entitled to use pseudonym, or publish his work anonymously.

Therefore, if the author wishes to use pseudonym, he has the right to be identified in his pseudonym. It means the obligation to disclose the name of the creator of a work extends not only to his true name, but also to the pseudonym. The moral rights protect the identity of the creator as he has chosen it.

B) Right to integrity of the work

The right of integrity is the right of the author to safeguard his reputation by preserving his work from derogatory treatments. A treatment of a work is derogatory if it is subject to addition to, deletion, alteration, unauthorized adaptation that amounts to distortion or mutilation of the work or is otherwise prejudicial to the honour or reputation of the author or his work. Therefore, the author of a work has the right to object any modification up on his work in the process of reproduction by the publisher, during translation act, and soon

To put differently, the author has the right to have the integrity of his work respected i.e., he may prevent all unauthorized deformations, mutilations or modifications. This right does not arise until, after completion, the work has been put on the market by the author, has been sold, or has been made the subject to contracts of publication or performance. From that time on, the author has the right to insist that its integrity must not be violated by measures which could alter or distort it. Therefore, a non-author cannot make changes in the work except upon securing the author's permission.

In connection with integrity of the work, there is a situation where an extremely delicate problem arises. This is a problem of protecting the integrity of the work when the author has authorized its adaptation to a different medium, as in the case of adaptation of a novel for a cinema or a theatre. The problem here is to ascertain to what extent the author of the original work can insist on its integrity when this claim conflicts with creative freedom of the adapter who is the would-be author of the work which purports to be equally original. How may a conflict between these two equally valid moral rights be resolved?

The other protection of the right to integrity of a work comes from the provision of Art 2686 (1) of the civil code. It provides that the publisher violates his obligations if he makes changes without the author's consent. Once he has undertaken to make the work public in the form in which it has been submitted to him, he could not make any changes for he could have refused to publish it if he had been of the opinion that the work needed changes. Thus, Art 2686 (1) imposes the duty on the publisher to reproduce the work without abridgments, additions or modifications. Hence the integrity of the work is preserved because the author is given the right to prevent alterations, mutilations or truncations of his work after it has left his possession.

C) Right to publish

The right to publish a work or to keep it secret is said to be a natural and incontestable as the right to create. So long as a work has not been completely created- of which the author alone

can be the judge- it remains a mere expression of the creator's personality, as it has no existence beyond that which he tentatively intends to give it.

It is exclusively for the author to determine whether the work shall be published at all, and if it is to be published, when, where, by whom and in what form. In other words, the author of an unpublished work, so long as he does not publish it, may keep it as a private matter which he is not obliged to give to the world.

A copyrightable work is published only when authorized copies are issued to the public in a written form (any kind of hand writing, typing or printing) or by means of an electronic retrieval system. An authorized publication is one made with the agreement of the author or copyright owner or someone to whom the necessary control has been delegated.

D) Right to create a work

The very basis of all creative works lies in the protection of the right to create, which is a function of the right of individual liberty. This right is said to become part of the moral right when the author, having concluded a contract with another to complete and deliver a work, becomes unwilling to do so. The effect of such a contract is said to depend on the moral right because creation is closely related to the personal and moral interests of the author, his honour and reputation. An author could not be forced to create a work against his will. "If I do not want to create an original work," says Pierre Recht, "surely that is my own business. The law cannot tamper with it. It is my freedom-my prerogative-to create or not to want to create a work."

E) Right to withdraw (disavow)

Notwithstanding the transfer of his right of exploitation, the author, even after his work has been published, enjoys the right of withdrawal. He may not exercise this right, however, without accepting the obligation to compensate the assignee for the losses, which the author's act of withdrawal might cause him.

Now, before winding this discussion, two problems require a brief discussion; the question of inalienability and the problem of descent of moral right upon death of the author. Much confusion concerning the concurrence of inalienability has been created by the claim that the moral right is inalienable, whatever may happen to the property aspects of the copyright.

By inalienability of moral right is meant that due to its very nature as a personal right, it is not capable of transfer. Nevertheless, an express contractual waiver of the moral right by the author is valid. In line with this, Art 8 (3) of our proclamation provides that the author or his heirs or legatees may waive their moral right stated under Art. 8 (1) of the proclamation where: the waiver is made in writing clearly specifying the right is waived and the circumstances in which the waiver applies, the waiver specifies the nature and extent of modification or the action in respect of which the right waived. However, this contractual waiver may solve the problem which arises at the time a person is authorized to adapt the work of the author. In sum, it is not impossible for the moral right to be alienated from the author. Actually, the moral right is inalienable only in the sense that, like all personal rights, it is incapable of transfer by sale or gift.

Regarding the transmissibility of the moral right to the author's heirs, one can say that rights of personality usually expire with the death of the person and the transmission of moral right sounds odd. This is also recognized in our law under Art 8 (2) of the proclamation which provides that moral rights shall not be transmissible during the life time of the author.

But it has been said that the protection of the memory of a deceased author has called for an exception to the rule, an exception which allows transfer of moral rights. Accordingly Art 8 (2) of the proclamation envisages that moral rights shall be transferred in accordance with the law to heirs or legatees after the death of the author.

Limitations to the Exclusive Rights

These exclusive rights of the author are only apparently absolute. This is so because the law provides various exceptions to the rule that 'only the author enjoys those rights'. So, in a way, the law takes away with one hand some limited of what it has given by the other. It should be borne in mind that copyrights is a compromise between two interests, i.e. author's interest to be remunerated and the public interest to get easy access to the works. To this effect, Lord Mansfield stated:

we must care to guard against two extremes equally prejudicial: the one that men of ability, who have employed their time for the service of the community may not be deprived of their just merits, and the reward of their ingenuity and labor; the other, that the world may not be deprived of improvements, nor the progress of art be retarded.

Accordingly, our Copyright and Neighbouring Rights proclamation is full of compromising articles. It imposes various types of limitations on the rights. What necessitated these limitations? Should not the author be the only person to reap the fruits this labor? This it has been mentioned, is basically to reconcile between two polar - the author's right to get what he deserves and the society is interest to use the works with little cost. These limitations form the subject of the following discussions.

Reproductions for personal purposes

The exclusive right of the author or owner of copyright on reproduction is not absolute, it has an exception. The law is not devoid of any limitations on the exclusive right of the authors to reproduce or authorize reproduction of his work. Art 9(1) provides that copies or reproductions of a copyrighted work may be made in a single copy without the permission of the copyright owner. This limitation is applicable if the copy made is intended for the sole purpose of using it privately. To put directly what the law says, the owner of copyright can't forbid private reproductions of a published work in a single copy by a physical person exclusively for his own personal purpose.

However, reproduction of works for private (personal) purposes is not allowed under Art 9 (2) of the proclamation where reproduction is that of a work of architecture in the form of a building or other construction, musical work in the form of notations, or of the original or copy made and signed by the author of a work of fine art, the whole or a substantial part of a data base in a digital form, a computer program except as provided in Art 14 of the proclamation; or a work that would conflict with or causes unreasonable harm to the normal exploitation of the work or the legitimate interest of the author.

Some argued that private reproduction without the consent of the author or copyright owner is permitted only in the case of backup copy. That means a person, who bought the original may copy it and will have a reserve copy for his personal purpose as per Article 9 of the proclamation.

Quotation

The other limitation on the exclusive right of the copyright owner for the reproduction of his work is quotation of a published work. The Ethiopian law considers under Art 10 (1) of the proclamation as lawful to make quotations from a work which has already been available to the public. The law clearly provides that the owner of copyright cannot forbid the reproduction of a quotation of a published work.

However, the law allows reproduction of a quotation of published work by way of illustrations in publications, broadcasts or sound or visual recordings where the extent of the quotation is justified by the purpose and is compatible with fair practice. In other words, quotation shall be compatible with fair practice and does not exceed the extent justified by the purpose (see Art. 10(2) of the proclamation). In this case, reproduction should not conflict with normal exploitation of the work and should not unreasonably prejudice the legitimate interests of the author. Besides, the person that quotes the work of another has to acknowledge the author.

Reproduction for teaching

A noteworthy limitation to the exclusive right of reproduction is where the work is out of print, copies or reproductions thereof are authorized in several copies for educational purposes. This kind of provision is very important, as it will serve for promotion of educational activities. Accordingly, the proclamation envisages under Art 11(1) as the owner of copyright cannot forbid a reproduction of a published work or sound recording for the purpose of teaching as long as the reproduction doesn't exceed fair practice and the extent justified by the purpose. However, the copy shall indicate as far as practicable the sources of the work or sound recording reproduced and the name of the author (see art 11(2) of the proclamation).

Reproduction by Libraries, Archives and Similar Institutions

As emphasized above, the ultimate goal of the copyright system is promoting an efficient mechanism of dissemination of information and knowledge so that the required scientific and cultural transformation will materialize. To that end, it is necessary to make sure that institutions that are engaged in this blessed task of dissemination of information are getting the necessary input which in turn is to be made available for the benefit of the general public. Among these information dissemination centers are libraries, archives, museums and similar institutions. Accordingly it has become important to place certain limitations on copyright owner's right of reproduction and giving rights for those institutions to copy the work even though he does not give permission.

There are also other grounds to justify this limitation. Effective research and study requires that the researcher be informed of the findings and opinions of others and has the opportunity

to dig out those materials prepared by others. It is here that the libraries archives and other similar institutions provide indispensable service to research by furnishing the individual researcher with the necessary extensive and published materials for the research and study if they are given the right to copy them.

Apart from the above-mentioned reasons, there are also other purposes for which the institutions may copy protected works. Rare books and manuscripts are usually photocopied to secure against their destruction or loss. Similarly, for the purpose of preservation, photocopies are made of newspapers and other items printed in fast deteriorating paper.

However, this limitation on the rights of the author to reproduce or authorization of reproduction in their works in respect of libraries, archives and others is not in many cases extensive nor is it applicable to every library, archive and others. The exemptions are usually applicable in respect of those institutions that operate in a manner that may not compete with the economic rights of the author or copyright owner.

What is important here is since it is the economic right of the author that we are limiting by allowing libraries, archives and others to make copies; we have to make sure that under the guise of making copies for the purpose of furnishing them to researchers the market for the copyright work is not minimized. Therefore, the limitation of library, archive and other copying is applicable only in respect of those institutions that are open to the public and operate on a non – profit making basis.

Likewise, the Ethiopian copyright and neighboring rights proclamations incorporate those situations. The exclusive right of reproduction or authorizing the reproduction of author's work is limited when the reproduction is made by libraries, archives, memorial halls, museums and other similar institutions that are engaged in non-gainful activities directly or indirectly (see Art. 12(1) of the proclamation). It means the owner of copyright cannot forbid a reproduction of a work by a library, archive, memorial hall museum or similar institutions whose activity directly or indirectly is not for gain.

Reproduction, Broadcasting and other Communication to the Public for Informatory Purpose

Articles published in newspaper or periodical on current economic, political, social or religious or similar topics are subject matters of copyright protection. On these works the power to reproduce, broadcast, communicate to the public belongs to the author or copyright owner. However, this exclusive right is limited under Art 13 of the proclamation. In other words, the owner of copyright cannot forbid the reproduction in a newspaper periodical, the broadcasting or other communication to the public of an article published in a newspaper or periodical on current economic, political, social or religious or similar topics (see Art 13(1) of the proclamation. But in order to apply this limitation, the author or copyright owner should not lift such powers in such works. If the right or authorized reproduction or broadcasting or the communication to the public is expressly reserved on the copies by the author or owner of copyright or in connection with broadcasting or other communication to the public of the work, no person can reproduce, broadcast or communicate to the public without the permission of the author.

Pursuant to Art 13(2) of the proclamation, Reproduction and broadcasting other communication to the public of short excerpts of a work seen or heard for the purpose of

reporting current events is possible without requesting and blessing the permission of the owner of copyright. similarly, the owner of copyright cannot forbid the reproduction in newspaper or periodical, the broadcasting or other communication to public of a political speech, lecture, address, sermon or other work of a similar nature delivered in public or, a speech delivered during legal proceeding to the extent justified by the purpose of providing current information (see Art. 13(3) of the proclamation).

Reproduction and adaptation of computer programs

The other limitation on the exclusive right of reproduction or adaptation of works is a single copy reproduction or adaptation of computer program pursuant to Art 14(1) of the proclamation. However, this kind of limitation under Art 14(2) of the proclamation is permissible when it is found necessarily to make use of a computer program with a computer for the purpose and extent for which the computer program has been obtained; a back-up copy by a person having a right to use the computer program in so far as it is necessary to ensure future use, or adaptation that is indispensable for using the computer program in conjunction with a machine for the purpose, and to the extent of use, for which the program has been lawfully obtained.

Importation for personal purposes

As we have seen, the author or owner of a work has the exclusive right to carry out or authorize importation of original or copies of a work pursuant to Art .7 (1) (e) of the proclamation. However, this exclusive right is limited to import copyrightable works for personal purposes by physical persons. Accordingly, the owner of copyright cannot forbid importation of a copy of a work by a physical person for his own personal purpose.

Private performance free of charge

Limitation on the exclusive right of authors to publicly perform or authorize the performance of their works is another type of specific limitation (exception) to the exclusive copyrights privilege. This limitation is performance of other works in private at family gathering or in a school.

This kind of limitation is evident because prohibiting each and every individual from performing a copyrighted work exclusively for himself is rather absurd. Most importantly, since private performances cannot by any stretch of imagination be prejudicial to the economic interests of the copyright owner, there is no need to prohibit private performance of protected works. Therefore, for such kind of works neither the authorization of the author is required nor this unauthorized use of the works would entail copyright infringement.

Art 16 exempts noncommercial performances i.e. the author is prohibited from forbidding performances that are given free of charge. Also, it is not enough that the performance be given free of charge, the audience is also strictly limited. The performance, though given free of charge, will be an infringement if it is presented to an audience than is outside of a family gathering or a school.

Issuance of Non- voluntary (compulsory) license

Relating to free use, servicing similar public purpose, there are other limitations, namely non-voluntary license. Non- voluntary license is justified on the ground that sometimes it is not practical to find the copyright owner and secure his blessing, especially long after its publication. It is also argued that introducing the concept is important to avoid the creation of monopoly that may be against public interest. Accordingly, copyright laws provide general limitations to facilitate this demand in favor of the interest of the public and make works available without request from copyright owners and irrespective of their opposition in some cases. On the other hand, it is criticized on the ground that it creates difficulty to exercise moral rights by the author, and it erodes the bargaining power of the right-holder as the latter is bound to permit the use.

In Ethiopia, the Office is empowered to grant license to authorize the reproduction or translation or broadcasting of a published work even against the objection of the author, heirs or legatees as per Article 17(1) of the proclamation. The Office pursuant to article 2(15) of the proclamation is the Ethiopian Intellectual Property Office established by proclamation No 320 /2003. But the Office has to authorize reproduction, translation or broadcasting published work for public interest. However, the requirement of public interest is not found in the English version of the proclamation but in the Amharic version we can find as “**ሕዝብ ጥቅም**”. As the Amharic version is the official text, we have to apply it. Also, as the provision is an exception it should be interpreted narrowly. The other reason is if the office is empowered whenever it likes, it will be invasion of the rights of the author or copyright owner.

It is also to be emphasized that although the act is performed without the permission of the copyright owner or even against his objection, non -voluntary licensing the use of the work is to be made in return for the remuneration to the author. Thus in copyright law the effect of such licensing is that the exclusive right of the copyright owner is reduced to a right to equitable remuneration. Nonetheless, pursuant to Art 17 /3/ of the proclamation, the office may not authorize the alteration of the work, in any way.

Display of works and distribution of copies of works

As we have seen one of the exclusive economic rights is public display of the original or copy of the work. But this right, like other economic rights, is not devoid of limitations. As per Article 18 of the proclamation, without the authorization of the author or owner of copyright public display of originals or copies of works is permitted where the display is made other than by means of film slide, television image or otherwise on screen or by means of any other device or process and the work has been published or the original or the copy displayed has been sold, given away or otherwise transferred to another person by the author or his successor.

The other limitation is on the distribution of copies of works. Where a copy of a published work has been sold to the public such a copy may, without authorization and payment remuneration, be redistributed by means of sale (see Art. 19 of the proclamation).

Lapse of Duration of Economic Rights

Talking of copyright duration, two things must be understood at the outset as preliminaries of primary importance. First, copyright term merely concerns itself with the economic aspect of author's rights for we cannot conceive of duration of moral right because it is "in general, perpetual in duration, although certain of its incidents, such as the right to create or to modify, must lie with the author". However, regarding the enjoyment of moral rights by heirs or legatees Art 8 (4) provides that they will enjoy the moral rights until the expiry of economic rights. Therefore, there is duration of moral rights for heirs or legatees in outlaw.

Secondly, the expiry of copyright marks the end of the protection accorded to the work to which it has been given. Naturally no work can have a period of protection unless it qualifies for protection to start with. If this term expires, the works which for all legal requirements deserve protection will be stripped of copyright and be available to the world at large for use or abuse without any restraint.

Thus all discussions of copyright duration refer to the economic aspects of the owner (s) alone. But its expiry "Kills" the protection the work has enjoyed and delineates the point in time when exclusive rights of the author disappear. Put differently, regardless of the fulfillment of all other legal prerequisites for existence of copyright, the protection will vanish at the end of the term of copyright which is provided by the law. Thus the "life" of copyright will "die" at the stroke of midnight "leaving not so much as a corpse behind it".

Under the Ethiopian law, this period of protection is available for the life time of the author plus fifty years. In other words, economic rights shall belong to the author during his life time and to the heirs or legatees for fifty years from the death of the author (see Art. 20(1) of the proclamation). Likewise posthumous works will be protected for a period of fifty years from the date of publication of works pursuant to Art 20 (3) of the proclamation.

In case of a work of joint authorship, the term of fifty years shall commence to run from the death of the last surviving author (see Art. 20 (3) of the proclamation). Where the work is collective work, other than an audiovisual work, the economic rights shall be protected for fifty years from the date on which the work was either made or first made available to the public, or first published, whichever date is the latest. (See Art. 20(4) of the proclamation.)

Our law also provides a period of protection for works published anonymously or under a pseudonym. Sub articles 5 of Art. 20 provides that where the work is a work published anonymously or under a pseudonym, the economic rights shall be protected for fifty years from the date on which the work was either made or first made available to the public or first published, whichever date is the latest. However, in case where the identity of the author is revealed or is no longer in doubt, prior to this period, where the author is a single author economic rights shall exist during his life time and to the heirs or legatees for fifty years from the date of his death and where the authors are joint authors, fifty years shall commence to run from the death of the last surviving author. (See Art. 20 (6) of the proclamation).

Sub articles 7 and 8 of Art. 20 of the proclamation put down the life span of copyrightable photographic and audiovisual works. For photographic works, economic rights shall be protected for twenty five years from the making of the work. In case of audiovisual work, the economic rights shall be protected for fifty years beginning from the date of making of the work or communication of the work to the public, whichever date is the latest.

In determining copyright duration, there are two interests at stake: creators of works of the mind must not be deprived of their just reward for their ingenuity and labor, and the world may not be deprived of the free enjoyment of the works of the mind. The longer the duration, the more is the tiltation of the law in favor of authors; the shorter the term the more unsympathetic is the law to them and that means the public interest is given primacy. The question in issue is one of striking the balance between two interests and this is recognized in our law.

Be that as it may, when its term expires a copyrightable work is said to be out of copyright or in the public domain. Once its term expires, the same work is not entitled to more than one copyright and it will be a “historical document, a monument” which is striped of copyright protection.

Upon the lapse of the life span of the copyrightable works, the owner (s) of a work will be denied of protection of copyright. Thus a person taking such work as his own without the author’s consent infringes no right protected by copyright. In other words, infringement of copyright, in general, is only conceived of when there is copyright in work.

Ownership of Economic Rights

As has been remarked, ownership of copyright in a work of authorship is enjoyed differently from the material objects in which it is clothed. Accordingly, a purchaser of a book or a cassette becomes the owner of the copy he purchased, but not the copyright in the book or the classification involved. Therefore, it is not possible for such a purchaser to enjoy those exclusive rights reserved for the author. The only person who can legitimately exercise the exclusive rights we noted is *the owner of the copyright*, and he is the only person who can authorize others to do acts upon which the law gives him the sole right to do. The only exception to this huge principle is the possibility of implementing compulsory license by the concerned office which may authorize some acts even against the objection of the right holder.

But, *who is that ‘monopoly right holder’?* The author is the original owner of copyright on the work he created. This general rule is subject to contracts providing otherwise, contrary judicial decisions or stipulation of law to that effect. This shows that the author and the owner of the work may not always be a single person. There may be proprietors of the work other than the author. In the upcoming sub-topics we will be addressing the specific proprietors of a copyrightable work.

The Author

It is generally accepted that the first owner of copyright as indicated above, is always the author and all claims to copyright descend from him. This is mainly because of the fact that since the primary purpose of copyright protection is encouragement of creativity the first person who should come to our mind when it comes to protection is the creator of the work, that is, the author. This important principle was well recognized during the promulgation of the civil code. Art 1647(1) of the code provides that an author of a work of the mind shall have the right of ownership on the work he created by the mere fact of his creation. This stand of the law is reaffirmed by the new proclamation, as noted above.

We emphasized that works of authorship manifest the personality of the author. On top of

this, the production of a copyrightable work, definitely, costs the author in terms of time, money and other resources. And, therefore, there is no need to have further explanation to justify the status of the author as an original owner of the fruit of his intellectual labour.

Once it is conceded that the author is to be the first owner of copyright on a work of authorship, it is necessary to understand what is meant when one speaks of the “author” of a work of authorship. *Who is the author?* The civil code does not provide any definition of the term “author” which it uses in its various provisions. Never the less, even if there is no express definition dedicated to this term, there are some provisions which impliedly contribute to the understanding of the work with the contact of the code. In Art 1666(1), it is stated that: In the absence of proof to the contrary, the person under whose name the work is disclosed is to be regarded as the author thereof.

The aforementioned legal provision establishes the presumption of the author. Normally, a work is published in the name of its creator. This indicates that the work is used in its ordinary sense to denote the maker of the work concerned. In fact, it is wise also to recognize the fact that for different reasons works may be published in a name other than that of the author, in a **pen name** or even **anonymously**. In such circumstances, determination as to the identification of the author depends on the possible evidences to be produced to establish who the author is. Since it is just a presumptive provision, as most presumptive cases, it may be rebutted when contrary evidence is produced to the satisfaction of the court. Therefore, we may end up with conclusion that sometimes the named person is not the author and thus not the owner of the work published in his name. The cumulative reading of Arts 21(1) and 22(1) of the copyright proclamation, as well, upholds a similar stand with this legal position.

Another point to be remarked is that since the copyright protection is extended to the manner of expression of an idea and not to the idea embodied in the work of authorship, when we say originator of the work, we are not referring to the originator of the idea. In other words, the author is not expected to be the originator of the thoughts or ideas which have inspired the work.

Assume that the idea embodied in a work is incepted by Ato Alazar and well expounded by Ato Derje but incorporated in his work of authorship by Ato Zelalem. Who do you think is entitled to claim a monopoly right of ownership on the work of authorship? Is it Ato Alazar because he introduced the idea? Or, Ato Dereje, because he developed the original idea? Or, Ato Zelalem, because he expressed it in a work of authorship form? If you have said ‘it must be Ato Zelalem,’ let me tell you one big fact: **you are becoming more familiar with the contents of copyright law, and also the purposes for which the law claims to stand**. Unless of course, it is shown that Ato Zelalem has **copied** it from somewhere else.

It is also important to ask as to who can be an author. Is the status of authorship reserved to natural persons only? Or can legal person be regarded as an author?

We hope the term ‘intellectual property’ is an adequate implication to reserve authorship for natural persons only since legal persons do not have **intellect** which can be a source for creativity. On top of this, we have said that copyright laws protect the moral rights of the author in addition to or even separately, from economic rights of the author. From this we may say that in countries where moral rights are recognized, like the case of ours, the author must be a physical person. This naturally flows from the fact that it is generally submitted that only humans have the moral faculty and thereby can enjoy moral right, which is the

component of copyright. This, by no means, means that legal persons cannot be copyright owners. As we noted before, the author may not necessarily be the owner of the work. And therefore, where it is provided by law, contract, or judicial decisions, legal persons may be recognized to be owners of a work of authorship.

The Right of Co-authors

Under this sub-topic we will discuss a ‘work of joint ownership’. What is meant by a work of joint ownership? What makes a work to belong to this domain? Are all works in the production of which more than a single person is involved works of joint ownership? Should we take the specific type of contribution of the participants to qualify the work to this domain?

Broadly speaking, it may be said that a joint work is a work prepared by two or more persons with the intention that their contribution be merged into either an **inseparable** (E.g. A novel) or **interdependent** (the lyrics and music of a song) part of **a unitary whole**. A joint work is, therefore, a product of the labour of several authors who acted with the view of creating **a single whole**. Art 2(29) of the copyright proclamation provides that a joint work is different from a collective work. It states: “A work of joint ownership’ means a work to the creation of which two or more authors have contributed, provided that the work does not qualify as a ‘collective work’ under Sub-Article 15 of this proclamation”.

As will be noted at a later stage in this work, a joint work is different from ‘collective work’. A joint work is attributed with the quality of being either inseparability or interdependence. At this stage the point is ‘*who should be the man of title on a work which is a fruit of joint efforts?*’ Arthur R. Miller and Michael H. Davis, in their book entitled “*intellectual property: patents, trademarks and copyright*”, responded to this question in the following brief and succinct explanatory manner: Co-authors stand in their relation to each other as do co-owners in respect of any other kind of property, with some modifications peculiar to intellectual property.

Subject to the specific nature of copyrightable works, the co-authors’ fate will be determined by the principles of law of property related to joint ownership. As you have noted while taking ‘*property and land law*’, in our law, the manner in which the co-authors exercise the right is left to their common agreement. In particular, they may determine their respective share on the commonly owned item. In the absence of such an express arrangement, the legal presumption of Art 1259 which establishes equal share of joint owners will be applied. In such a case each will have equal entitlement to, and equal say on, the work.

Even if the co-authors are left free to regulate their relationship by private agreements made among them, it is evident that copyright laws want to maintain the **oneness** of the work. This is more so, especially, where the separate utilization of one’s personal contribution is detrimental to the use of the common work.

For instance, according to Art 1668(3) of the civil code independent exercise of a right by a co-author is allowed **only** where the works contributed by each author represents a different type of work. Even in this situation, the **personal use** should not affect the right of the co-author in the **joint use** of the common work.

While addressing the issue as to who the author is, we said that it is assumed that it is the one in whose name the work is published. If that is so, in order to be regarded as a joint owner, it

is a must to have one's name on the work. In respect to the relation between the co-authors, the law does not seem to bother about in whose name the work is published. The work may be issued in the name of **one** of the contributors, or with the name of the **few** or **all** participants. The unnamed authors may benefit from the exceptional circumstance envisaged by Art 1661(1) of the civil code. We have noted that authors are legally entitled to remain anonymous. And also the right to be identified is one of the moral rights of the author. But if they are not interested to exercise this right and preferred to remain anonymous, there is no reason to deprive their right of ownership. What the copyright law wants and should want is just to recover the creativity, and therefore, so far as the unnamed authors can establish or show they are contributors they are no less owners. Obviously, as the co-authors know each other and recognize the respective contribution of each, the named ones should not be given better entitlement than the unnamed ones.

The other question may be *what their relation to third parties is*. Art 1669(1) of the civil code provides that in their relation to third parties; it is the person in whose name the work is published who is deemed to be the sole author of the work. This law recognizes that third parties are justified in assuming that the named person is the sole author of the work concerned. Sub-Article three of the aforementioned legal provision goes on to say "*the right of co-authors will not affect third parties*", this is simply because the publication of a work in one or some of the contributors creates the impression in the mind of third parties that there are no other right holders behind the curtain. How could third parties imagine the contrary? As the law says the author is the named, and the named is presumed to be the original owner of the work, third parties are not logically expected to investigate whether there are unnamed authors. The legal presumption benefits the third parties.

However, do not forget that the law is just creating a presumption. And, therefore, as we said time and again, as most of the presumptions, it is susceptible to rebuttal. Since the sole purpose of presumptive provisions is shifting the burden of proof, the reverse position may be held where proof to effect that the third party was aware of the existence of the co-authors is produced.

As we have tried to indicate here-in-above, provisions of law of property are applicable to regulate co-authorship to the extent they are pertinent with respect to the nature of copyrightable works. We hope you still remember that decision on the administration of the jointly owned item requires a share based majority vote (Art 1365 Civil code). On the other hand, the decision to alienate the item for free or for consideration or to change the establishing purpose of the joint ownership can only be held unanimously. This applies to co-authors of a joint work, *mutatis mutandis*. Therefore, the decision to sale the copyright on the joint work, for instance demands the unanimous vote of the joint owners. From this it naturally follows that if third parties concluded a sale contract with only one or some of the co-authors knowing (or where it is reasonable to expect) the co-authorship, the contract cannot stand in the eyes of the law. That means, such contracts cannot affect the non-contracting authors. This applies even in a situation where the non-contracting authors are not named in the published work, provided that the third parties knew or should have known their existence.

In sum, we can say that co-authors are just joint owners of a property. The law equally protects unnamed co-authors to the extent they are identifiable.

Collective works

The civil code which, reasonably, determines issues related to joint ownership fails to regulate expressly the ownership of collective works. Who should be the owner of a collective work? Before addressing this issue, I hope it is necessary to distinguish a '**collective work**' from a '**joint work**'. Art 2(5) of the copyright proclamation states: "collective work" means a literary and artistic work created by two or more physical persons at the initiative and under the direction of a person with the understanding that it will be disclosed in the name of the latter person without indicating the identity of the contributor".

This provision shows that a collective work is one in which a number of contributions, constituting **separate** and **independent** works in themselves, are assembled into a single whole to be published in the name of the person who has taken the "trouble" of initiating **and** directing the task of producing the work. Therefore, collective works or works published in a collection form are completely different from joint works which are considered to be inseparable or interdependent. In fact, we may say that a single whole which is a product of contributions of more than a single person can be regarded as a collective work if the parts contributed are not inseparable and interdependent.

What a joint work and a collective work have in common is the contribution of more than one person in their production. The interrelationship of the works contributed, however, is different in these two items as we indicated above. When we think of collective works we may mention a publication consisting of, for instance, speeches delivered may be on different scenes, at different times, and on different issues, or musical albums which consist works of different musicians or works of a musician issued at different times, etc.

Thus, who should be the owner of a collective work? Is it all the contributors jointly? In entertaining this issue, the point that we don't have to forget is that a work contributed in a collective work has its own independent author. For instance, if we take a collective work which consists of several short stories the respective authors enjoy separate, independent an unassailable right with respect to their own independent work.

Let's take a book published in Ethiopia comprising short stories which is entitled '*aba defar*'. In this work of authorship both writers (Ato Adamu Reta and Ato Gebeyehu Ayele) enjoy an exclusive right of ownership on the collective work. Of the recently published domestic works a book which is the fruit of the contribution of Ato Bewketu Seyum, Ato Gebeyehu Ayele, and Ato Adamu Reta entitled "*Kinfam Hilmoch*" is a typical example of a collective work on which the contributors can claim independent right of ownership on their own respective work. In our time, musical works and video clips are being published in a collection form. Here again, each author is legally protected to enjoy right ownership on their contribution to the single whole.

However, what do we mean by saying each contributor is an independent owner in his own domain? As you have learned from your law of property course, it simply means that it entails the enjoyment of the inherent rights of ownership on their own works. Do you remember the contents of rights of ownership? Right of ownership consists of the followings: (1) the right of use; (2) the right to collect and own fruits and (3) the right of alienation.

From this we learn that each contributor (or author) exercises the abovementioned rights upon his rights in an exclusive manner even if his work is incorporated in a collective work. So he may sale it, give it for free or transfer it in whatsoever legally possible means.

We have also noted that computer programs are recognized to be subject matters of copyright laws. Do you remember? More than a single computer program may be comprised in a single compact disk or floppy diskette. Here again, each contributor may use or transfer his own part without the consent and blessing of the other contributors to the single whole. On top of this, each contributor may collect and own fruits of his own work. In general, any benefit that may accrue from the work in its independent existence belongs not to the owner of the collective work but the private contributor. The right of alienation of an owner extends up to the right to destroy the property. An author, who is now a contributor to a collective work, has a final say on the destruction of his own work.

Generally speaking, the administration of the collective work is quite different and independent from the parts included in it. This situation reveals a difference between collective works and joint-works. As noted before, in case of joint works, even if there is no total ban, the possibilities of using one's own contribution by one of the contributors is very much minimal. What do you think is the basis of such distinction? If you have understood the above mentioned idea you can easily respond to this question. We said that the nature of works contributed in the production of these two types of works of authorship are different. Joint works, as we indicated, are interdependent or inseparable even if they are contributed by more than a single author. For Instance, imagine a film script which is a product of the joint effort of two script writers. In such a case, it is very difficult to distinguish the respective contribution of each script writer. It demands a divine power to identify which manner of expression came out of the mind of which script writer. That is why law, wisely, avoids the independent use of a contributed part.

We noted that joint works are to be interdependent if not inseparable. In contrast to this, works incorporated in a collection form are not required to reflect the quality of being interdependent. Each work, in this case, stands by its own. A collective work may comprise works of a single author published at different times, or it may include works different authors issued at the same or different moments.

Moreover, works included in a collective work may embody contradictory or different ideas. In addition to the possible disrepairs with respect to the contents of the particular works, the form or mode of expression of such works may be different. Take, for instance, a literary work. Some of the collected works may be passages while others are poems; of the passages some may be fictions, others essays and still others descriptions of hard facts. A typical example of such works may be a domestic publication entitled 'Efeta' in the production of which famous authors like Sebehat Gebre'egziabher have participated. We may also mention encyclopaedias and collection of photographic works as a member of this wide domain.

In sum, so far in this topic we have been trying to distinguish the nature of joint works and collective works. In brief, the inseparability or interdependence of works in a joint work blocks, in principle, the independent utilization of the particular works, while, on the contrary, the reverse nature of works in a collective work is the basis for their separate use and transfer or even distraction. A point that must be emphasized at this stage is the fact that in some exceptional circumstances the above mentioned principle of independent use may be eroded. This happens when such separate use adversely affects the exploitation of the single whole in case of joint work, and when the contributors have agreed with the owner of the single whole to block the independent use in case of a collective work.

So far in this sub topic, we have addressed issues related to ownership in particular reference to works incorporated in collective works. Now, let us see the ownership on the single whole itself. A person may come up with a collective work of authorship in one of the following three circumstances:- (1) the collected works may, entirely, be works of his own; (2) the works may be partly of his own and partly works of others; (3) the works may be totally works of others.

At this stage, it is really important to emphasize that if the duration of protection of a work has not expired yet, the making of a certain work which is part of a collective work demands the consent of its author. At least, if one cannot secure the blessing of the copyright owner of the work, he has to get a compulsory license from the concerned office. Consequently, the incorporation of a protected work in a collective work without the blessing of either its owner or the appropriate office is an infringing act which may entail legal liability. From this, it naturally follows that when we talk about a collective work we are referring to the situation where the person who has taken the trouble of producing the work has legitimately secured the necessary consent. Upon satisfaction of this legal base, Art 21(3) of the copyright proclamation provides what follows: “where the work is a collective work, the person at whose initiative and under whose direction the work has been created shall be the original owner of the rights”.

This implies that when the initiation to produce a collective work is coupled with the task of directing the production entails the right of ownership for the person involved. The cumulative reading of the provisions of Art 21(3) and Art 2(5) dictate us that the original owner of a collective work is just that single person. Moreover, the provisions reveal that it is only natural persons who can be the original owners of a collective work. This stand of the law raises various questions. Consider the following issues:

-What if a person took the initiative but another person handled the directing for different reasons including expertise?

_What if both the initiation and the direction are conducted by more than a single person?

_What is wrong if the direction and initiation of the work is made by a legal person?

Works Made for Hire

We have noted that works may be made for a hire for various reasons. This refers to works produced under contract of employment or service. For example, a governmental organization may employ the intellectual labour of individuals for the production of a copyrightable work. Similarly, a person may employ a videographer for the recording of his wedding ceremony. In such circumstances, a work may be produced by the intellectual effort of an employee under the order and cost of the employer.

Who do you think should the owner of a work made for a hire be? In the above-mentioned instances, is that the office or the employee- the bride or the videographer?

A uniform stand has not been taken by the various territories in our world. E.P scone James and et al, in their book entitled ‘*Copigner and stone James on copyright*’ stated that: “..... In many foreign jurisdictions, especially in the Anglo Saxon legal system, an employer, in case of works for hire under a contract of service, is deemed to be the owner of copyright in the work”.

This means, in common law the employer is given the status of being an original owner on

the work made for hire. This, in fact, applies unless the contract of employment provides otherwise. The continental law countries, on the other hand, uphold a contradictory stand. In this regard M.A Khan stated in his book entitled '*principles and perspectives of copyright*' as follows: "The Roman law countries approach the problem from a socio-economic point of view and seek to protect the author as the economically weaker party against the entrepreneur with whom he has dealing for the exploitation of his work".

This stand reaffirms the purpose of the law which claims to stand to protect the needy, that is, the weakest party. This is the position taken by France and Germany.

When we turn our face to Ethiopian laws, we observe polar opposite stands. The civil code, following the principle embodied in the continental jurisdictions, made it clear that ownership of copyright in a work rests in the first instance in the author, irrespective of the fact that the latter executed the work in pursuance of contract of employment or contract for the performance of a project entered into with a third party (see Art 1167(3) cum 1647(1) of the civil code). Therefore, according to the provisions of the civil code, it was the employee or the independent contractor who enjoys ownership right on a work financed and supervised by his employer or client, respectively. This would mean that the latter are precluded not only from being considered as 'authors' but also from automatically becoming the owners thereof. What do you think the rationale behind preferring the employee by the framers of the civil code? It may be said that it is the result of the influence of being a member of a continental legal system. Actually to belong to a single domain means sharing several common features. On top of this, the fact that the stand was incorporated in the French civil code which highly inspired the Ethiopian civil code strengthens the magnitude of the influence.

Making the employee an original owner of a work made for a hire may be justified on the ground of the purpose of intellectual property rights in general and copyright laws in particular. Admittedly, the primary objective of copyright law is the author. This is to mean that more than direct commercial interests, promotion of creativity is given priority. Thus, an area of law which aims to facilitate the flourishing of art and literature is expected to focus more on the author instead of his employers. This is not to deny the financial interest and contribution of investors in the production of copyrightable works; it rather means that, relatively speaking, the author who is the springboard of the work deserves better threatening than the entrepreneur who extends his financial hands.

Moreover, the supporters of this line of thinking justify the preference to the employee from a socio-economic point of view. This perspective traces its base on the inequality of the employer and the employee. No doubt, the financial status of contracting parties is directly related to their respective bargaining power. It is an overt fact that employers are in a better financial position than employees. The cumulative effect of these premises takes us to an important conclusion. The point is that a gap filling protection needs to be given to the author who is the weakest party. Such an arrangement facilitates situations for better payment which, in turn, promotes creativity.

Based on the above mentioned justifications, the original ownership of a work made for a hire is given to the employee instead of the employer. This, however, by no means implies that the parties cannot make an agreement to the contrary. In other words, even with the above mentioned stand, nothing prevents the employer from becoming an owner of a work produced by the intellectual efforts of his employee. A system which entitles the author to

transfer his right of ownership for third parties has no earthly reason to profit the employer who has been financing and supervising the work involved.

As we indicated here-in-above, the copyright proclamation has taken the polar opposite stand to the position preferred by the civil code. In relation to entitlement to ownership of a work made for a hire, Art 21 (4) provides what follows:- Where the work is a work created by an author employed or commissioned by a person in the course of his employment or contract of service, unless agreed otherwise, the original owner of the rights shall be the employer or the person who commissioned the work.

Noticing the fact that this stand of the law erodes the above-mentioned justification, many argue that the provision gives priority to the financial interests of the employer instead of the creative efforts of the authors. Accordingly, the original owner of a work made under the contract of employment is the employer. The law is clear and therefore not open for interpretation.

Before winding up this sub-topic, we have to emphasize that even the law which gives the original ownership of copyright in case of a work made for a hire can by no means take away the moral rights from the author. We have noted that the moral rights stay with the author whether or not the author is the owner of the economic rights. It naturally follows that the employer is not entitled to alter or modify the work to the extent it is against the interest and reputation of the author. Moreover, the author is entitled even to block the publication of the work. Similarly, even in this case, he is still entitled to claim paternity and therefore the work is to be published in his own name.

Assignment and Licensing of Copyright

As a property owner, an owner of copyright may transfer his monopoly rights in all legally possible ways. An ownership (or a segment of it) of copyright may be transferred in any of the following four ways:- a) will, b) operation of the law, c) contracts and d) judicial decisions

As copyright is property right, no doubt, it constitutes part of the authors estate. And therefore, as any other type of property, it may pass to his legatees upon his death. If the author has made a will with respect to his copyright ownership, the persons named by the will shall be the beneficiaries of the rights therein. Ayan Rand, the famous philosopher and writer, a Russian by birth and blood, but who claims to be an American by choice and conviction, has transferred her right of ownership on her various works of authorship to her fellowmen Leonard Pickoff. The latter enjoys the ownership rights on her works until the moment the expiry of the duration of protection comes to an end. Such incidents re-affirm the recognition of **copyright** as a type of **property**, and **will** as a **manner of transfer** of ownership of copyrightable works.

We indicated hereinabove that the intervention of the law is the second means of transfer of copyright ownership. This, basically, happens where the author has left no will or even if he has left one, where it is found invalid in the eyes of the law. In such cases, the law of succession plays its role. As a result, certain relatives of the author would inherit the copyright of the deceased.

Judicial decision may also transfer copyright ownership to third parties, where it is appropriate. The basis for this manner of transfer is the principle of laws of obligation which

establishes the idea that properties of debtors are guarantees for payments of debts to creditors. Therefore, creditors may extend their hands towards copyrights through the court. The weakness of copyright protection and the economic realities of our country, which adversely affect the financial status of authors in Ethiopia, would definitely push our authors to become debtors at different levels. A creditor of the poor author may establish his claims, in a court room, to the satisfaction of the court and thereby become a judgment creditor. In such a case, it may happen that the author may own no tangible item ready for attachment order. This makes that moment to be the right time to attach the copyright ownership of the author and satisfy the claims of the judgment creditor. That is how the intervention of the court may work as a transfer of copyright ownership.

In this regard, there is a point which deserves a further emphasis. Consider the following question: What do you think about the fate of judgment creditors who have nothing to attach but the unpublished work of the judgment debtor author?

Assume that the work made by the debtor is already finalized and made to be ready for publication. On top of this, imagine the situation in which the creditors have extended their lending hand with the sole hope that the debtor will pay them back upon the publication of his work. The author has also given his word to pay from the earnings he would make by publishing his work of authorship. Now, there is nothing under the ownership of this debtor, or even if there is some, it is not sufficient to satisfy the claims of the creditors. In such circumstances, can the court give an order for the publication of the unpublished work of the debtor?

Previously, we have emphasized that the rights of a copyright owner are categorized into two domains- economic and moral. It has also been remarked that the moral rights remain in the hand of the author, under any circumstance. The right of publication, in our law, is made to belong to the domain of moral rights. Moreover, it is my hope that you still do remember that even the Ethiopian intellectual property office, a body entitled to grant compulsory license, is not legally authorized to act unless the work has already been published. Thus, what can be drawn from these premises?

It may be safe to conclude that even if the work is complete and therefore copyrightable prior to the moment of its publication, courts cannot award a judgment for the publication of the work of authorship. In support of this view, in his book entitled 'Principles and Perspectives of Copyright; M.A. Khan stated what follows: if his creditors want to publish a manuscript to satisfy their claims the writer can **stop** them.

In general, no matter how the creditors have relied on the publication of the work while lending their money, the court cannot take away the personal nature of the right of publication. It is legally established that since the work is the manifestation of the personality of its author, the publication of the work involves the demonstration of the personality of the author. From this it naturally follows that the author must be the only person who may decide '**whether**', '**when**', and '**where**' to reveal his personality by publishing the fruit of his intellect. That is why we have safely concluded that the judge cannot hit his table with his hammer to pronounce a judgment for publication of unpublished works of debtors who could not discharge their contractual or extra-contractual obligations.

Nonetheless, once it is published, courts of law may give a decision for the transfer of the copyright ownership or a component of it to his creditors. This susceptibility of copyrights

for attachment orders of courts establishes intervention of courts as a third manner of transfer of copyrights.

What is left to be noted is contract as a means of transfer of copyright ownership. Obviously, this refers to the contractual agreement made in between the author and his counterpart, making copyright ownership the subject matter of the contract.

We have noted time and again that it is generally accepted that the copyright owner is the king in his own domain. Consequently, speaking through the words of the 17th United States code service as stipulated in the lawyers' edition, "*The copyright owner may license it, alienate or dispose of it by any other legally possible means*".

No doubt, such a transfer may be made with respect to the whole of the right of its owner or only part of it. And, also, it may be made for consideration or gratuitously. In here, suffice it to say that the author and his counterpart exercise the freedom of contract believed to exist in cases of transfer of rights of ownership involving corporeal properties.

Neighbouring Rights Protection

The term "Neighbouring rights" comes from the French "*droits voisins*" referring to those rights which have been developed parallel to and are related to copyrights. They may be loosely defined as rights which do not arise directly from the five major types of intellectual property (patents, copyrights, trade secrets, trademarks and industrial designs) but which are "Neighbouring" to such rights. In other words, there exist rights related to or "Neighbouring on" copyrights that are generally referred to as "related rights" or "Neighbouring rights". Thus, Neighbouring rights are those rights granted to protect performers, producers of phonograms, and broadcasting organizations in the performance of their works.

To put it differently, "Neighbouring rights" are rights that are related but not identical with copyrights. The rights of these persons are "neighbours" to copyright in the sense that they evolve from an original work of authorship, but are not works of authorship, and thus not copyrightable by themselves. Accordingly, they concern other categories of owners' rights, namely: performers, the producers of phonograms, and broadcasting organizations. For instance, an actor almost invariably, is not the creator of the role he plays. He rather performs a role in a play written by a playwright. By the same taken, a musician may not necessarily be a composer. He may perform the creative woks of another person. Yet, their contribution does not make them subjects of copyright. Likewise the producers of phonograms produce works of authors as performed by the performers; and broadcasting organizations broadcast such works on their station. The fact that they have intervened in the channelling of the works does not entitle them to claim copyright on the works. However, their assistance in making the work available to the public entitles them to certain rights that are called Neighbouring rights.

Thus, the notion of Neighbouring rights is understood to mean rights granted in an increasing number of countries to protect the interests of performers, producers of phonograms and broadcasting organizations "in relation to their activities in connection with the public use of author's works, all kinds of artists' presentations or the communication to the public of events, information, and any sounds or images".

Coming to the Ethiopian legal system, Neighbouring rights are the rights performers, producers of sound recordings, broadcasting organizations have over their works as per Art

2(14) of the Proclamation that defines Neighbouring rights. The most important categories are the right of performers to prevent fixation, broadcasting, reproduction etc. of their performances without their consent; the rights of producers of phonograms to authorize or prohibit the reproduction of their phonograms and the import and distribution of unauthorized duplicates thereof; and the rights of broadcasting organization to authorize or prohibit rebroadcasting, fixation and reproduction of their broadcasts.

Some countries also protect the interests of broadcasting organizations by preventing the distribution on or from their territory of any program carrying signal emitted to or passing through a satellite, by a distributor for whom the signal is not intended. “No protection of any related right can, however, be interpreted as limiting or prejudicing the protection secured to authors or beneficiaries of other related rights under national law or an international convention.”

Protection of performers is provided in order to safeguard the interest of actors, singers, musicians, dancers or other persons who act, sing, deliver, declaim, play in or otherwise perform literary or artistic works against unlawful uses of their performances.

Regarding the economic rights of performers, the performer has the right to carry out or to authorize the broadcasting or other communication to the public of their performance; the right to carry out or authorize the fixation of unfixed performance; the right to carry out or authorize the reproduction of a fixation of his performance in any manner or form; the right to make available the first fixation of a performance or copies thereof for sale or by other means of transferring ownership which is known in UK as distributions right; the right to authorize or carry out rental or public lending of a fixation of a performance or copies thereof irrespective of the ownership of the copy rented or lent; and the right of making a fixed performance available to the public by wire or wireless means, in such a way that members of the public may have access to them from a place or at a time individually chosen by them.

Apart from economic rights, a performer has the right to be identified as the performer as regards live performance, the performance fixed in a sound recording; the right to object to any distortion, mutilation or other modification of his performances. The performers rights, be it economic or non-economic, shall be protected until the end of the 50th calendar year following the year in which the performance was fixed in a sound recording or in absence of such fixation, from the end of the year in which the performance took place.

The other Neighbouring right is the right of producers of sound recordings (phonograms). Article 2(21) of the Proclamation defines a “producer of sound recordings” as a person that undertakes the initiative and responsibility for the making of sound recording works. The right owner is the person that first fixes the sounds. This excludes both the technicians and operators employed by the recording company, and any entity merely pressing records, i.e., duplicating the first fixation which is the original recording.

“Sound recording” means, as per article 2(28) of the Proclamation, an exclusively aural fixation of the sounds of a performance or other sounds or a representation thereof, regardless of the method by which the sounds are fixed or the medium in which the sounds are embodied. It does not, however, include a fixation of sound and images such as the sound track of an audio-visual work. It is important to note that the sounds could be sounds of a performance or other sounds or a representation thereof whether fixed on cassette tape or compact disc etc. from which fixed sounds can be perceived, reproduced or otherwise

communicated directly or with the aid of machine. The rights of the producer and its limitation will be discussed in greater detail in the next section.

Lastly, broadcasting organizations enjoy Neighbouring rights. As to the rights of broadcasting organization, a broadcasting organization shall have the exclusive right to carry out or authorize reproduction of its broadcasts, fixation of its broadcasts and reproduction of a fixation of its broadcast as per Article 31 (1) of the Proclamation until the expiry of 20 years following the year in which the broadcast took place.

Limitations on Neighbouring Rights Protection

Neighbouring rights are not exceptions to the imposition of limitations on the right holders. However, to explain the nature and purpose of limitations at this level can be justified on no ground. This is mainly because we had enough of it in our previous relevant topics. Therefore, now it is time just to indicate what is considered in the pertinent legal provision. Art 32. Limitations of rights

The rights referred to in Articles 26-31 shall not apply to acts related to:

- a. Using short excerpts for reporting current events to the extent justified by the purpose of providing current information
- b. Reproduction solely for scientific research
- c. Reproduction solely for the purpose of fact to face teaching activities, except for perforations and sound recordings as teaching or instructional material
- d. Cases where, under part II, a work can be used without the authorization of the author or other owner of copyright.

In general, the above-mentioned legal provisions share a single purpose, that is, the attainment of public interest. After having emphasized an excuse of reproduction for educational and research purpose under provisions of (b) & (c), the afore-mentioned legal provision establishes that those limitations we noted herein before in relation to the rights of the author and his assignee, are also valid to limit the entitlement of owners of neighbouring rights on the works involved. The law, which limits the right of the author who is the original source of the work, for stronger reasons, restricts the rights of those who establish Neighbouring rights on the items.

Firstly, they cannot forbid using excerpts for reporting current events to the extent justified by the purpose of providing current information (Art 31(a) of the proclamation) It appears that this limitation applies to all Neighbouring right owners. And note carefully that this limitation is similar, though not identical, with the limitation provided for authors under Art 13 (2). Article 13(2) allows broadcasting whereas Art 32(a) does not mention broadcasting, though broadcasting is one of the means to report current events to provide current information. Article 13 (2) also provides that other means of communication to the public other than means of broadcasting is allowed. Here, under Art 32(a) means of communication to the public could be broadcasting stations or any other mass media.

Secondly, they cannot forbid reproduction if it is solely for scientific research. Here what cannot be prohibited is reproduction. (Art 31(b) of the Proclamation). The number of copies

is not indicated at all. One should ask whether it is one copy or more than one copy depending on the need of the person undertaking the scientific research. This is not clear but definitely it should not prejudice the interest of the producer.

Thirdly, they cannot forbid reproduction solely for the purpose of face-to-face teaching activities, except for sound recordings, which have been published as teaching or instructional materials. (Art.31(c) of the Proclamation) The reproduction is only face-to-face teaching activity when, for instance, the reproduction is used in classroom or elsewhere the teacher and the student are face to face. Performance and sound recordings, which have been published as teaching or instructional materials cannot be reproduced and used for face-to-face teaching activities.

In addition, the proclamation envisages other grounds of limitation. In this regard, Art 32(d) of the Proclamation provides that cases where, under part II of the Proclamation a work can be used without the authorization of the author or other owner of copyright are the limitations on the rights of owners in appropriate cases. These limitations are those provided from Article 9-20 of the Proclamation.

Enforcement of Copyright and Neighbouring Rights in Ethiopia

In respect of items protected by laws of copyright and neighbouring right, such as copyrightable works on tapes cassettes or CDS or VCDS or VHS, the organs such as the police, public prosecutors and the judiciary are the enforcement authorities and will take action on the basis of a complaint by the lawful right-owner.

There are several reasons for a state to take efficient measures against piracy activities. The first and perhaps most important reason is that the rights under the Proclamation are violated, which means that the authors, performers, and phonogram author or copyright owners, broadcasters and others suffer considerable economic loss. Thus, the need to accord protection to author or copyright owners for their musical records is justified from a purely economic interest. The author or copyright owner invests a considerable amount of money for recording. Thus it is a given fact that he needs and expects reward from his investment. If others are allowed to reproduce or produce his record, their acts prevent him from getting a reward for the investment. Hence, he needs protection for his work. This means that others should secure his permission to produce or reproduce his records. In other words, it is to underline that he has to be encouraged with reasonable rewards for his investment. Otherwise, if he is not given the right to resist unauthorized reproductions or productions of his records, he will not get enough reward from his investment and refrain or withdraw from the business of recording.

It is also a well-known fact that piracy is detrimental not only to the personal economic interests of beneficiaries but also “to society as a whole because it hampers creativity and is contrary to the interests which copyright and Neighbouring right law is there to serve, including that of establishing domestic cultural industries”. Even one of the main reasons for recognizing Neighbouring rights is that they make literary, artistic and similar works productive. Thus, it goes without saying that if the rights of authors or copyright owners are violated, it will have a negative impact on the productivity of literary, artistic and scientific works.

Thus, infringements generally affect author or copyright owner's morality, the industry and the government pocket. Even those authors or copyright owners that didn't withdraw were declining many offers for records of music. The effect of these on the author was that the author or copyright owners fear that the piracy does not pay them a deserved amount of money.

Remedies: Civil and Criminal

The recognition of rights by itself cannot avoid infringement of rights. The law, in addition to recognizing such rights, should set the way by which the recognized rights will be enforced. Otherwise the purpose of recognizing such rights, which is giving protection for those rights, will not be achieved.

Remedies for infringement of copyright or violation of neighbouring rights consist of civil redress, as where infringers are obliged by courts to cease the infringement and to undertake reparatory action by any appropriate means. Some laws also provide for penal remedies in the form of fines and/or imprisonment. Infringing copies, receipts resulting from infringement and any implement used for the same are usually subject to seizure.

The object of an award of damages to author or copyright owner is to restore the author or copyright owner to the position he would have been in had his right not been infringed. A difficulty often encountered in obtaining a satisfactory judgment in damages is the production of evidence as to the extent of sales which have taken place and thus as to the extent of damage which has been caused to the author or copyright owner's right.

In the event that an author or copyright owner's rights in copyrightable works have been violated, there are a number of remedies, namely, civil and criminal, that are available to him in order to right the alleged wrong. On the civil side, there are remedies aimed at reinstating the author or copyright owner in the financial position in which he could have been had it not been for the prejudice caused to him due to infringements. Others are meant to punish the tortfeasor while still some others are employed to recognize the grief the author or copyright owner suffered as a result of the tort. On the criminal limb there are punishments to be inflicted on the criminal and hereunder we will discuss different civil and criminal remedies.

Civil Remedies

Civil remedies are available for a right owner whose rights are infringed or endangered so that he will be reinstated in the position (economic position) in which he could have been had the infringement not occurred in cases where it occurred or in cases where infringement is going to occur, to prevent the harm from occurring.

The law has to provide the beneficiaries with real and effective possibilities to obtain compensation for the injury caused to them by the violation of their rights. That compensation should not be limited to mere reparation of the direct losses inflicted on the specific right owner. He should also be compensated, for example, for loss of market shares for the work, possible violations of his moral rights and also other relevant elements. In short, account has to be taken of the material and moral prejudice caused. It may sometimes be difficult to establish the exact size of the compensation. In many national laws there are,

however, special provisions aiming at making an equity assessment of the amount to be paid; otherwise, it has to be left to the judges' discretion.

The purposes of civil remedies could be summarized as: i) to provide compensation for the prejudice caused by infringements, ii) to dispose appropriately of the infringing copies (typically through destruction or other disposal outside the normal channels of commerce), iii) to dispose appropriately of implements used for infringing activities, and iv) to grant injunctions to prohibit further infringements. Such remedies should always be available irrespective of whether the infringement has been committed wilfully and/or for profit making purposes.

Civil remedies, which are available under our law, are provisional measures, injunction, damages, confiscation of the infringing work, destruction of infringing copies, and border measures. These remedies will be discussed one by one.

A) Provisional Measures

As a preliminary remedy there is the so called provisional measure. First, the order will be granted *ex parte*, which is on the application and in the presence alone of the copyright owner, without prior warning being given to the defendant. The essence of order is thus that it takes the defendant by surprise, and precludes the defendant from destroying or removing vital evidence.

Secondly, the terms on which the order is granted enable the copyright owner to inspect the premises of the defendant, and all documents (including business information, such as bills, invoices, sources of supply and customer lists) relating to the alleged infringement. By virtue of these terms, the copyright owner is given the means whereby he may be able to establish the source of supply of pirated works, and the extent of sales which have taken place, which will assist in turn in establishing the amount of damages to which he may be entitled.

Thirdly, the order for inspection will often be accompanied by an injunction restraining the defendant from altering or removing in any way articles or documents referred to in order for inspection.

Two safeguards, in particular, which have been required by courts in jurisdictions where it is available, should be noted: firstly, it will only be granted where it is essential that the plaintiff should have inspection so that justice can be done between the parties. In order to meet this criterion, usually the copyright owner will have to prove that there is clear evidence that the defendants have in their possession incriminating documents or material; that the circumstances are such that there is a real possibility or grave danger that the incriminating materials will be destroyed or hidden if the defendant is forewarned; and that the potential or actual damage to the plaintiff as a result of the defendant's alleged wrongdoings is very serious.

The second safeguard which is often required is proper respect for the defendant's rights in the execution of the order. In this respect, it may be required that, in executing the order, a copyright owner be attended by his lawyer, give the defendant adequate opportunity of considering the order, and not force entry in to the defendant's premises against his will. Of course, if a defendant were to refuse entry into his premises, this would cause extremely adverse inferences to be drawn against him at the subsequent trial.

The availability of appropriate provisional/conservatory/ measures is an indispensable element of any efficient mechanism for the enforcement of rights of author or copyright owners. The most important objectives of such measures are the prevention of acts of infringement and the other implements that could be used for (further) infringements and that constitute essential evidence that could disappear if not brought under the control of the court. These measures must be available on an *ex parte* basis where giving the defendant prior notices would be counterproductive.

In Ethiopia, the court, where there is a demonstrable risk of evidence being destroyed or where any delay is likely to cause irreparable harm to the right holder, shall order provisional measure which it may think stops the destruction of evidence or which helps to prevent the occurrences of the irreparable harm. (Art 33(1) (a) of the Proclamation)

In general, the remedy, provisional measure will be ordered by the court pursuant to Art.33 (1) of the Proclamation. The justification for granting provisional measure is to prevent an infringement of a right from occurring and to preserve relevant evidence in regard to the alleged infringement by the plaintiff. These measures shall be prompt and effective to prevent the entry into channels of commerce including imported goods immediately after customs clearance. To put it differently, in order to preserve relevant and to prevent an infringement of a right from occurring for protecting the rights of the author or copyright owner the court shall order swift and effective provisional measures.

In this case, the court has the power to adopt provisional measures, where appropriate, on *ex parte* basis (in *audita altera parte*). The provisional measure on *ex parte* basis will be given by the court where any delay is likely to cause irreparable harm to the right holder, or where there is a demonstrable risk of destruction of evidence. If evidence is going to be destroyed, unless provisional measure is adopted by the court, the alleged infringer is going to be free by the mere fact that the evidence is being destroyed. Also, if the delay is likely to cause no compensable damage on the right holder, though the decision is in favor of the right holder, it is without effect as the damage sustained by the right holder cannot be compensated in terms of pecuniary value.

However, the provisional measure taken by the court in *audita altera parte* is a discretionary power of the court. (Art 33(2) of the Proclamation) However if it is ordered by the court, the parties affected should be given notice immediately, after the execution of the measure at the latest. There is also a review of a measure taken by the court that includes modification, revocation or confirmation based on the request of the defendant. (Art 33(6) of the Proclamation)

B) Injunctive relief

Injunction is a future looking and classic equitable remedy for neighbouring right infringement. It is an order of the court directing a party to litigation to do or refrain from doing an act. Thus the nature of the order is of two kinds: mandatory injunction ordering the defendant to do and prohibitory or preventive injunction ordering him to refrain from or not to do a certain thing. With regard to Neighbouring rights, which are in the field of intellectual property rights, an injunction is almost always prohibitory (as opposed to mandatory) since it enjoins the commission or continuation of wrongful act.

When the plaintiff is a copyright or neighboring right owner, he can be granted injunctive relief easily by showing a prima facie case of infringement or of threat of infringement of his rights. The grant of injunction is very likely in copyright and neighboring right cases because such infringements in the majority of the cases threaten the owner with irreparable harm. This is owing to the fact that copyright and neighboring right infringement entails mostly a damage of non-pecuniary or damage that cannot be translated directly into money. Thus for irreparable harm is the key for obtaining injunctive relief, such an assumption tends to make injunctions more likely in copyright and Neighbouring right cases than others.

But the court, before granting injunction, must be shown that the defendant intends to continue his infringement or resume it and thereby cause the plaintiff damage. This does not mean that damage need be proved because injunction can be given to prevent damage with which the plaintiff is threatened. It follows that the right of the owner of the copyright or neighboring right is not determined or measured by the amount of actual damages to him by reason of the infringement.

With this general picture of injunctions in mind, we can categorize injunction depending on the time of their operation. These may be called interlocutory (preliminary) and permanent (final) injunctions.

i) Interlocutory (preliminary) Injunctions

As the term itself implies, interlocutory or preliminary injunction is merely provisional in its nature, and does not conclude a right. This kind of injunction is sought not to enforce an established right but to maintain the status quo until a trial of the merits can take place. Thus an interlocutory injunction orders the defendant not to continue or not to embark upon a course of action until the trial of the issue is finalized. In particular it should be possible for the right owners to be granted temporary (preliminary) injunctions to prohibit the committing, or continuation of the committing, of infringements. In short, it is temporary in effect.

Such junction may be granted under Art 33 of the Proclamation upon the proof of the probability of further damage being done if the defendant is not restrained from the act of infringement. And the duration of effectiveness of this injunction is confined to the interim period between institution of the case and rendering of the decision. Also it is a very valuable remedy particularly in countries like Ethiopia where the time between the institution of proceedings and the judgment usually take years.

In order to minimize the damage being inflicted by piracy, it will be important for a copyright and neighbouring right owner to take swift action in seeking to prevent its continuation. As long as piracy continues, he will be deprived of a portion of his potential market, and thus of the capacity to recover the economic reward for his creativity or investment. The aim of the interlocutory injunction is to meet this need by granting speedy and temporary relief during the period before a full trial of an infringement action takes place, thus preventing irreparable damage from occurring to the plaintiff's rights.

One of the difficulties which have been experienced with interlocutory proceedings is that they have tended to become themselves lengthy inquiries involving rather full consideration of the facts of the case with the result that their effectiveness as a means of obtaining temporary relief is prejudiced. In many common law jurisdictions, this has caused a

reassessment of the principles on which interlocutory relief is granted and, in particular, of the standard of proof which a plaintiff is required to establish in order to obtain interlocutory relief.

In this jurisdiction, previously, a plaintiff was required to establish a prima-facie case that his copyright was being infringed, that is, to establish on the balance of probabilities that his case for infringement could be defended. In order to overcome the delays and the lengthy proceedings which this standard of proof involved, many jurisdictions have now required that a plaintiff establish only that there is a 'serious question' to be tried. In other words, the merits of the legal issues involved in the case need only be considered at the interlocutory stage to the point where the court is satisfied that the plaintiff's claim for infringement is not frivolous.

Thereafter, the decision as to whether an injunction should be granted is taken on the basis of the factual circumstances of the case, and whether, in particular, each party could be adequately compensated in damages for the temporary impairment of his right where he is unsuccessful at the interlocutory stage, and later proved to be successful at the trial. The adoption of this approach to interlocutory proceedings assists in avoiding excessive delays in obtaining relief during the period which is most important for the copyright owner, namely, the period immediately following the initial publication and marketing of his work

Preliminary injunctions as a remedy are of the utmost importance to the protection of author or copyright owner's rights. The period from the time of commencement of proceedings to the final determination of a case can allow significant damage in the term of lost sales and profits, to reputation and through other exploitation of material and /or information. Furthermore, the nature of the infringement or other unlawful conduct may be such as to make damages or an account of profits an inadequate remedy. One of the reasons for this is that the defendant may be impecunious or may disappear. But these will not be the only reasons why, in particular case, damages may not be an adequate remedy. More often, this is because of the difficulty of reaching a precise estimate of the loss suffered as a result of an infringement. If in such a case, the defendant's unlawful conduct is restrained at the outset, the problem of damages may either disappear from the case altogether or be very much less difficult than otherwise would be the case.

The primary matter with which the court is concerned in granting an interlocutory injunction is the maintenance of a position that will most easily enable justice to be done when the final determination is made. Thus, a court will sometimes order that an earlier position be restored to, or that the parties arrange their affairs in some other way that is more in accordance with the requirements of justice.

In Ethiopia, it is the interlocutory injunction which is most effective because of its immediacy, speed and low cost. In practice, it often has the effect of setting the case, as the defendant, deprived of the opportunity to make a quick profit, desists and allows final judgment to be given against him without trial. Interlocutory injunction is issued when the infringement case is pending or before the trial begins and where the plaintiff applies for order, which prevents the continuance of the alleged infringement until the final decision is given.

Article 33 of the Proclamation provides that an injunction may be granted to restrain the defendant from continuing to commit or as a preemptive measure to restrain him from

resuming an act prejudicial to the plaintiff. Thus in Ethiopia injunction is prohibitory in nature and it is a discretionary remedy because the court “may” grant it. In short, this provision is not a mandatory provision compelling the court to grant injunction. This discretionary nature of the remedy is easily graspable from Sub-art 3 (a) and (b) of Art 33 of the Proclamation wherein it is stated that an injunction is to be granted only where there is likelihood of the commission of an act prejudicial to the plaintiff and where the injury with which the plaintiff threatened interest is incapable of redress “by awarding damages”. To put it differently, the court in determining whether the interlocutory injunction should be ordered or not, shall consider that the threatened interest of the plaintiff cannot be redressed by awarding damages, whether the threat is imminent, whether there is prima-facie strength of the action and the gravity of the prejudices a decision for or against may cause to the plaintiff or the defendant. (Art 33(3) of the Proclamation)

Hence there are four requirements:-firstly, the interest threatened should be an interest whose injury cannot be redressed by awarding damages. Secondly, there should be prima-facie strength of the action. This means there is a real prospect of success for the plaintiff in his claim. Thirdly, there is an imminent danger to interest-here the court should make sure that the danger to the right certainly will occur if the injunction is not ordered. Interlocutory injunction cannot be ordered for harm whose occurrence is not certain. The last requirement is the gravity of the prejudice that will result from the injunction on both the alleged infringer and the right owner.

Interlocutory injunction is granted to protect the right owner whose rights are endangered or are infringed. This need to protect the right owner must be weighed against the corresponding need of the alleged infringer to be protected from injury, which will be the result of his being prevented from exercising that act against which the suit is brought.

The Proclamation provides means of protecting the alleged infringer’s right in such cases. The plaintiff may be ordered to compensate the defendant when the interlocutory injunction has been ordered and any injury has been caused by the order and such order has been revoked or may be when the case is decided against the plaintiff. (Art 33(7) of the Proclamation) But there might be cases where injuries caused to the defendant are moral injuries which cannot be redressed monetarily. In such cases the court should see both sides and consider the gravity of the prejudice, which will result from the order of injunction.

Until the court renders a final judgment of the infringement cases, the right holder can apply to the court to restrain the infringement against the defendant in a suit for enjoining the defendant from committing an infringement. The temporary injunction will stay from the date of the injunction ordered by the court till the suit is finally disposed by the court.

In deciding an application for temporary injunction, the court shall consider if the threatened interest cannot be redressed by awarding damages, whether the threat is imminent, the prima facie strength of the action and the gravity of the prejudices which a decision for or against may cause to either of the parties. After considering the above conditions, the court may grant injunction that might include on such terms as to the duration of the injunction, the amount of money required from the defendant, keeping an account, giving security or otherwise, as it thinks fit as per Art.33(3)(b) of the Proclamation. The word “may” in this provision shows the discretionary power of the court for granting temporary injunction.

However, according to Art 33 (3) (c) of the Proclamation, should the application of the above criteria put the parties on equal position, the court has to investigate the relative strength of the parties deeply before granting a temporary injunction.

In order to find out the commission of an infringement, there will be necessity of search and seizure. In this regarded, the provisions of the civil procedure and criminal procedure codes on search and seizure shall be applicable. (Art 33(4) of the Proclamation) In other words, courts must be able to order the search, seizure and impounding of suspected unauthorized copies of works and other protected subject matter, of packaging materials, of implements for the making of such copies, of documents, accounts or business papers relating to such copies.

ii) Permanent (Final) Injunction

Self-explanatory as it is, the term permanent or final injunction signifies an injunction given to be effective permanently in the future to enjoin the defendant from continuation of commission of or from resuming an act prejudicial to the plaintiff. A plaintiff who is granted final injunction is one that has successfully shown that his rights have been infringed or threatened. It concludes a right as it is given at the end of the trial.

In the normal course of things, a successful plaintiff will be entitled to a final injunction. If an injunction were not granted to a successful author or copyright owner, the result would be tantamount to enabling the defendant to take a compulsory license under the recordings without having to go through the statutory provisions relating to compulsory licenses. Should the injunction be breached, the plaintiff can move for contempt of court.

C) Damages

Damages are pecuniary compensation, which may be recovered in the courts by any person who suffered an injury, loss or detriment whether to his person, property or rights through unlawful act or omission or negligence. Damage is a redress or compensation awarded to remedy an injury.

Injury to a person's material interest affects his 'pocket' whereas injury to a person's moral interest affects his feelings. Material injury can be assessed monetarily and compensated by money. But in case of moral damage or harm since feelings have no money value, they cannot be assessed monetarily and basically we cannot compensate moral harm with money.

i) Material Damages

A person whose Neighbouring right on copyrightable works is infringed may claim material damages for the economic prejudice caused to him. (Art 34(1) of the Proclamation) When a person other than the author or copyright owner in copyrightable works exercises the exclusive right of the author or copyright owner, he may cause a number of injuries to the economic interest of the author or copyright owner. Material damages are there to remedy this pecuniary injury to the author or copyright owner. When the material interest of an author or copyright owner is affected by an infringement, the infringer will be ordered to compensate him.

The material damage that the author or copyright owner suffered in the hands of the infringer may be present or future. Present material damage is further divided into *damnum emergens* (the Latin term for occurrence of loss, that is, diminution of estate) and *larcum lessans* (the

Latin term denoting the prevention of gain that is, non-increase of estate). However, the plaintiff's damages is not limited to this present injuries only but future damages may be claimed without waiting it to materialize so long as it is certain to occur. The existence of future damage should not be controversial.

A victim of copyright and Neighbouring right infringement can collect damages both for *damnum emergens* and *larcum lessans* if he is successful in showing that the act of infringement has caused him both kinds of material damages. Besides, he can claim future damages, if any. The dividing line between present and future damage is the date of judgment assessing damage.

The assessment of damages in copyright or neighbouring cases invariably demands at first step an election by the successful plaintiff as to whether he will take an enquiry as to damages on the one hand, or an account of profits on the other. (Art 34(3) of the Proclamation) These alternatives are of course mutually exclusive since by electing to go for an account, the plaintiff has adopted the defendant's acts as his own. The choice in each case will depend upon the facts. Sometimes, for instance, time may be of the essence and the trial as to liability may have itself generated enough material evidence to enable a plaintiff to move speedily for an account. Sometimes a defendant may have been able to secure more sales of the product in issue during the infringing period than the plaintiff could possibly have done. In such cases, the plaintiff will again be likely to choose an account rather than an inquiry – which will incidentally be for net profits.

Some argued that the Proclamation refers only to material damage which has occurred or which is present damage and it ignores the future damage that may materialize in the future. This argument is not sustainable because future damage is one part of the material damage and compensating material damage is clearly provided under Art 34 of the Proclamation. If future damage is not incorporated in the Proclamation, this is prejudicial to the right owner whose right is infringed because sometimes it might be difficult to conclude that an injury will not occur from an act which is presently committed. And if the law ignores future harm that is certain and that may affect the right owner's interest when it assesses compensation, it is to let the infringer go without compensating the harm he caused. So the law considers damage as a damage suffered now and the harm that is certainly going to happen in future. Assessment of future damage may be difficult but there are mechanisms that might be followed in such cases. For example, the court can grant a provisional award and authorize the plaintiff to submit an application of reconsideration of the award when the harm materializes.

Considering the damage caused and the profit gained by the defendant the court will assess the compensation. The Proclamation provides for an adequate compensation to the plaintiff for the material damage including payment of the right holder's expenses and the profit gained from the infringing act. (Art 34(1) of the Proclamation) "Adequate" refers to the equivalent amount to the damage suffered.

In cases where there is no any pecuniary damage on the part of the plaintiff, for example, a copyrightable work, which was published before 20 or 30 years, may not be a source of an economic benefit to the author or copyright owner. So, in cases of infringement, the plaintiff is unable to show loss. But his property right has been a gold mine to infringers. And if he is allowed to claim from the defendant only when he incurs a loss, this will be indirectly

denying the property right on the copyrightable works. Thus, to avoid this, the law should entitle the right holder (author or copyright owner) to claim enrichment of an infringer.

Accordingly, the right owner in lieu of the compensation referred may claim for the replacement of unjust enrichment derived from the act of infringement. Unjust enrichment in this case refers to the extent the infringer could have paid as a royalty to the right owner had he asked for an authorization. (Art 34(2) of the Proclamation)

The right owner according to Article 34(3) can also ask an alternative claim of the net profit gained by the infringer from the act of infringement. This may be preferable when the profit gained from the infringing act is greater than the material damage suffered by the right owner. This has been controversial since there were two principles conflicting which are the principle that the right owner should not recover what he did not lose and the principle that the infringer should not keep the benefit that is derived from an act of infringement. But the Proclamation has resolved this issue. According to the Proclamation, if the right owner prefers, can claim net profit the infringer gained from his act of infringement.

Where the person infringing does not know that his act amounts to infringement or he has no reasonable ground to be aware of the fact that his act amounts to infringement, he will not be ordered to compensate the damage he caused except for the payment of the profit he gained from the act of infringement of the right of the author or copyright owner. (Art 34(5) of the Proclamation)

ii) Moral Damages

Compared to material damages, which is an injury to a person's economic well-being, moral damage affects his feelings, his emotions and physical well-being. In the author or copyright owner's rights cases, however, the usual basis for claiming substantial damages for infringement relates to the commercial value of the copyrightable work, because the infringements caused the loss of the plaintiff his own opportunities for sale.

Given the principle that moral injury cannot be compensated with money, because feelings have no monetary value, courts are allowed to award monetary compensation for moral injury. The infringer should not be relieved of compensating the right owner even if the compensation he pays may cure the material injury caused completely. Some argued that moral damages are awarded only to performers (from the Neighbouring right owners) whose rights have been infringed since they are the only persons who have moral rights under the Proclamation. This arises from the argument that moral damages are awarded only where the moral right of a copyright or neighboring right owner is infringed. This argument is not reasonable as it does not achieve the purpose of the Proclamation. The other argument is that the nature of material damage is related to loss of material wellbeing (commercial value of the property) whereas moral damage is related to that damage that affects persons feelings or emotions irrespective of the nature of the right infringed. Even the Proclamation does not limit the payment of moral damages only when the moral right of the copyright and neighboring right is violated. Therefore, as long as the author or copyright owner is a natural person and his feelings or emotions are affected because of the infringement of his rights, he has to be paid moral damages.

Compensation in case of moral damage is assessed based on the extent of the moral damage suffered and shall not be less than birr one hundred thousand. The amount specified under the civil code, according to Art 2116(3) was not more than one thousand birr. This amount might have been enough to compensate the victim at the time of codification of the Civil Code but it is unfair if we use this amount to compensate a victim now with all the devaluation of the birr and other economic changes. However, according to the Proclamation, the court is expected to reward compensation not less than one hundred thousand birr, for moral damage and potential infringers will be deterred.

Destruction of Illegal Copies

The other issue worth dealing with is the fate of infringing copies after the case is decided for the right owner. The order of injunction may put an end to reproduction but it leaves the issue open as to what to do with copies already made. Once infringement is proved, the court proceeds to order the cessation of such infringement, i.e., gives permanent injunction in accordance with Art 34 (1) (a) of the Proclamation. When this injunction is granted, the court, to make sure that the order for cessation of infringement is properly executed, orders the destruction of illegal copies of the infringing copyrightable works. (Art 34(6) of the Proclamation) In order to make the final injunction effective, it is often coupled with an order for the delivery by the infringer of all infringing copies of the copyrightable works, which are then subject to destruction so as to ensure that they cannot be re-used or sold.

The Proclamation provides that the court shall make the copies outside the channel of commerce, order their destruction, or other reasonable disposition. Where the author or copyright owner requires otherwise, let us say where he wants the infringing copies to be delivered to him, the court shall allow him. There is no need to allow the defendant to keep these copies, and if allowed, it may open a room for further distribution of these copies by the defendant thereby bringing about further infringement. Thus such copies need to be destroyed at the expense of the defendant.

The only limitation on this right of the author or copyright owner is the right of third parties who acquired the infringing copies in good faith. In this case the author or copyright owner cannot claim for delivery up or for destruction of these copies even if they are infringing or illegal copies. The rationale behind this is to protect third parties who acquire the illegal copies in good faith.

Providing destruction of the infringing copies as a remedy is very important especially for the plaintiff since it prevents the dissemination of infringing copies. However, it is far from complete for it fails to address some questions: Who should do it? At whose expense should it be done? This opens the door for arbitrariness. There are possibilities that the court will order the defendant to destroy it at his own expense or to return the infringing copy and destroyed by the plaintiff. However, if it is left to the defendants would he be honest to do it? Some suggest for Ethiopia to incorporate an approach, adopted in many foreign countries, which involves the delivery of the copies to the plaintiff so that the latter destroys them. This view surely avoids the possibilities of the resumption of engagement by the pirate in infringing act. In fact, this solution may not always be pragmatic. For, the confiscation of the

entire copies may be practically impossible. Nevertheless, it is the best option in the circumstances.

Border Measures

Another way in which action against infringed copyrightable works can be taken occurs at ports of entry of imports. If an author or copyright owner becomes aware that importation of his copyrightable works is on their way to the country, he can alert the customs authorities, who will keep watch of the copyrightable works and impound them when they arrive. Action can be taken against the importer.

Piracy is by no means an exclusively national activity, i.e., the production in a country of infringing copies for sale in that country. It is also very much an international operation, with vast quantities of infringing copies being manufactured in one country and shipped to other, often on the other side of the world; quantity of infringing copies which are shipped to other countries substantially undermine legitimate business to the extent that international companies often withdraw from the market and investment in recording and producing local talent virtually dries up. For this reason, the power to stop infringing copies entering a market is of vital importance, and provisions which make this possible are an essential feature of modern copyright legislation.

Border measures are intended to prevent infringing copies- or lawful copies in violation of the right of importation –from being brought into the country concerned. They constitute an effective way to counter acts of infringement, because it is frequently easier to prevent the distribution of infringing copies at the border than after the copies have already been brought into the country and put into circulation. Border measures are usually carried out by administrative authorities (customs authorities) and not by judicial authorities. In most national legislations on this issue, a number of safeguards and appropriate procedural rules are normally found which ensure the fairness and effectiveness of measures applied by such authorities.

The customs authority, where there are, in the opinion of the right owner, infringing goods, shall retain under its control the alleged infringing goods where the right owner submits an application to this effect. (Art 35(1) of the Proclamation) The customs authority after informing the right owner and the owner of the retained goods about the situation will look into the evidences presented by the applicant if any. If the evidence is not justifiable evidence or if there is no evidence provided by the applicant, the authority will lift the measure within ten days. (Art 35(3) of the Proclamation)

The applicant will be responsible for the damage caused by the retention of goods where the application is proved unfounded. (Art 35(4) of the Proclamation) However, if ordered by court, the customs authority will confiscate the infringed copyrightable works. (Art 35(5) of the Proclamation)

Criminal Sanctions

The system of copyright and neighbouring rights is a branch of private law in that it grants personal exclusive rights to the individual beneficiaries. Therefore, the basic approach in most countries, is, or has been, that it is for the injured party itself to take action.

Consequently, the basic possibility for him is to take civil action. However, there is a change in the attitude in many countries, mainly in view of the alarming growth of the piracy activities. A number of countries have introduced heavy penal sanctions for at least certain kinds of infringement, in particular those which would be considered as piracy.

Civil remedies are not always sufficient deterrents. Where infringement becomes a business, the closing down of one plant with the assistance of courts and law enforcement authorities may only mean that the plant will reopen somewhere else. Infringement committed wilfully and with profit-making purposes should be punished by criminal sanctions, and the level of such sanctions must make it clear that such infringements are serious offenses. It is normally preferable that criminal sanctions are also applicable in case of infringements committed through gross negligence, for profit-making purposes, because it may be difficult to prove that infringements are committed wilfully. Increased punishments in cases of recidivism are also justified. The criminal sanctions available should comprise both fines and imprisonment, and, where merited by the case, courts should be able to impose both these sanctions on the infringer.

Criminal sanctions should – and in most countries do – include both fines and imprisonment, the maximum of which may be up to several years. If criminal sanctions are to work satisfactorily, the objective criteria for the infringement must be clearly defined. This means, in particular, that the rights should be framed and described in a clear and unequivocal way so that it is obvious which act or acts are those acts that must not be undertaken without the authorization of the author or copyright owner. Also, the so – called subjective criteria must be determined clearly. The criminal provisions for infringement apply not only to acts which are committed wilfully but also to those committed with gross negligence. The sanctions should be applicable not only to the person who directly committed the violation but also to those who contributed to it, for instance by providing equipment used for unauthorized reproduction with full knowledge of the intended use of that equipment.

The criminal sanctions have mainly a repressive function. Such a function is very important in the interest of the society and also for the author or copyright owners in order to ensure respect for the law. The Proclamation provides criminal remedies for infringements of rights. The rationale behind providing for criminal remedies beside the civil remedies is the fact that infringement of intellectual property rights is considered to be theft of intellectual property and since theft is a crime, criminal punishments should be provided. Hence if someone infringes Neighbouring rights of the author or copyright owner, he will be criminally liable and will be punished according to the punishment specified under the Proclamation.

Criminal remedies for Neighbouring right infringement are provided under Art 36 of the Proclamation. According to this article, if someone intentionally violates the Neighbouring right protected under the Proclamation, he will be punished with rigorous imprisonment of years of five up to ten. And also whosoever, by gross negligence violates Neighbouring right will be punished with rigorous imprisonment of a term of one year up to five years. However, under the criminal code whoever violates the rights of author or copyright owners intentionally is punishable with rigorous imprisonment not exceeding ten years and for gross negligence not exceeding five years. In this case there is the possibility that the punishment may be less than five or one year respectively. How is the contradiction on the terms of imprisonment being resolved?

The other modes of punishment included under the Proclamation are seizure, forfeiture and destruction of the infringing goods and any material and implements the infringer used in the commission of offence. (Art 36(3) of the Proclamation)

Chapter III: Patent Law

Definition of patent

As we have discussed earlier the heart of patent system lies on disclosure of invention and the entitlements to exclusive right to use, make and exploit the invention over a certain period of time. Although it might be useful to consider the definition of patent from different jurisdictions, we have selected the definition given by the United States patent office as the most comprehensive definition of patent. According to the United States' patent office working document, patent refers to:

A statutory right to exclude others from making, using, offering for sale, or selling the invention in the United States, and if the invention is the process,... the right to exclude others from using, offering for sale or selling throughout the United States, or importing into the United State, products made by that process.

From the above definition, we can put the characteristics of patent into three elements. Unlike the crown grant patent, the definition makes patent a statutory right, i.e. a right created by the highest law making body (or a legislator) of a state. It also provides that patent may relate to a product or to a process. And it recognizes the most important element of patent right that is exclusive right to use, make and exploit the invention. However, the definition does not clearly state the limitations to the patent right on grounds of public interest, and even by the lapse of duration.

Unlike the definition given by the United States patent office, our patent law, under proclamation Number 123/1995, provides a very general definition of patent. According to Art.2 Sub.Art.5 of the inventions, minor inventions and industrial design proclamation No.123/1995, "Patent means the title granted to protect inventions; the inventions may relate to a product or a process."

From the above definition, it would be very difficult to ascertain the rights that the patent confers on the inventor or the owner of the patent. It does not even state that patent guarantees exclusive right to use, make or otherwise exploit in a manner that the patent owner wishes. Moreover, it does not suggest if patent rights could be limited on grounds of public interest or other considerations. Rather, it pushes us away forward to the other sections of the proclamation that together builds a comparatively full and rich concept of the term patent. With this we can define the concept of the term patent from the cumulative reading of art 2(5), art 7 and art 22 provisions that can be put as follows:

Patent is a legal title that confers on its holder the exclusive rights to make, use or otherwise exploit in a manner he/she wishes over a limited period of time. It may relate to a product or a process.

Justifications for Patent Protection

Since the nineteenth century, a number of justifications have been expounded in support of the patent system. At times the naturalist dominated the intellectual debate with their assertion that the inventor has a natural right to the products of his mental labour. However over the years, the most common argument focused on the public benefits that flow from the grant of patent monopolies. According to this approach, patent is justified in terms of its utility to the public. The patent system is still the object of wide theoretical debate that hosts the arguments of its proponents and a bludgeon of critics by its opponents. Some of the most common justifications and critics are stated as follows.

Economic rationale

One of the most important sets of economic arguments in favour of patents are called “consequentiality” theories. This theory attempts to justify intellectual property rights on the basis of the “good” consequences flowing from their recognition, which can be generally identified by the advancement in knowledge, industrial progress and economic efficiency. There are two main branches of it, the “utilitarianism” and the “teleology”, which both concentrate upon the incentives provided by the law but differ in the way these “good” consequences are identified.

While utilitarianism, also recognized in the modern theories of Law & Economics, measures the good in terms of satisfaction of human preferences, without any judgment on their content, teleological theories focus on the evaluation of what should be identified as good in the prospective of the proper purpose of human life.

Nowadays utilitarianism represents the dominant perspective: intellectual property rights in general deserve special protection if the benefits to the society exceed their costs. This view has been developed in the last century in different and specific theories, which coincide with the main advantages of patents: the “incentive – to invent”, the “incentive – to –disclose”, the “incentive – to – innovate” and the “prospect theory”. Firstly, patents are necessary to give incentives for inventions and to encourage the socially desirable level of investment, because without them the society will under -invest in inventive activity as a result of the “free rider” behaviour of other competitors, whose imitation will prevent a proper rate of return for the inventors. In particular, patents provide inventors with some assurance with regard to rewarding the social value of the invention and recovering the development costs, especially the high risks involved in research. In fact, a rational inventor will invest in research until the point where the expected marginal return from more research is equal to the marginal costs. Consequently patents allow the inventor to internalize the externality and to obtain benefits derived from the new discovery by imposing costs on potential imitators. These advantages are basically pointed out in the “incentive – to – invent” theory, also known as “reward” theory, which emphasize some debatable elements too. Moreover, society would suffer from the reduction of development activity because new inventions may lower production costs of existing devices or increase productivity. Secondly, patents foster and accelerate inventive activity by means of disclosure; otherwise there would be no public access to valuable and new information. Furthermore, no patent systems would create high social costs, waste due to duplicative researches and losses as a consequence of reduction in wider distribution, alternative uses and price competition in the market. This positive effect refers to the

“incentive – to – disclose” theory, which has often been concretely applied in judgments, even if many scholars are quite sceptic. However, various sets of empirical data have demonstrated that the utility of disclosure clearly depends on the sector considered, as the predictability of discoveries is higher for mechanical industries than chemical ones, and on other factors such as national policies, the access system and the technological state of countries. Thirdly, patents encourage the investment in innovation by emphasizing post – inventive activities and considering all of the steps required for the commercial exploitation of the new creation during the patent monopoly. This patent advantage is expressed in the “incentive –to – innovate” theory

In conclusion, the grant of patents with a broad scope may perform a prospect function in terms of affording investments in further research, avoiding duplicative researches and coordinating this activity with other firms during the development of the discovery. Moreover, patents may simplify and stimulate bargains by eliminating the risks involved in the negotiations between the patentee and society.

Philosophical perspectives

Some fundamental arguments in favour of patents deal with philosophy and are commonly known as the “natural law” or the “moral rights” theory: the inventor is rewarded for the idea incorporated in his invention because it is an expression of his natural rights, belongs to him and could otherwise be stolen. Two different applications of this theory can be determined: the first, the “Lockean labour theory” considers the inventor’s property right as the reward for the difficulties and the efforts due to the labour, while the second, the “Hegelian personality theory”, connects the patent right to an expression of the human personality. Unfortunately, both theories present some weaknesses in terms of policy implications and economic incentives; for instance, the Lockean theory does not clarify whether the reward refers to the past work of the inventor or to save future researches of others.

Critics against patent

The justifications that underpin the current patent system are often subjected to mass criticisms by vocals and scholars. Some of the critics challenge the existing patent system as excessive and broader in scope, whereas others reject it as undesirable. The points of criticism are entertained with a fair detail as follows.

It stifles competition: - From a general point of view patents create monopolies in favour of the patentees and potentially distort competitive markets. In fact, the patent holder may increase prices as a consequence of the monopolistic power and also limit the use of the invention by the public. The issue is who may afford if the monopoly charges an exorbitant price for the use of its invention. And from this it follows that if we cannot use the invention because of the monopoly, what else stimulates us to grant the monopoly that turns out against our use. The opponents, therefore, challenge the patent system as repugnant to consumers.

Patent relies on false premise: - This critic defeats the incentive theory which states that people would be encouraged to create if they are provided with incentives. Opponents argue that many genius inventions have predated the present patent system. In this regard the

opponent mentions early atomic bomb of Albert Einstein, early printing presses, early radio broadcast invented by two brothers and quite others. From this the opponent argues that people generates invention not expecting a monetary reward but out of inner satisfaction and peer recognition. They also warn that any research motivated exclusively by incentive would compromise the requisite quality.

It creates additional costs: - Patents generate other undesirable consequences. Firstly, they might encourage a phenomenon known as the “race – to – invent”, according to which potential inventors will compete against each other to discover the new product or process. A broad scope obviously will increase the negative effects in terms of duplicative researches and waste of resources with inefficient results as a consequence.

Requirements for Patent Protection

In the previous sections we looked at the nature of the patent and the processes by which patents are granted. Under this chapter we would analyze the grounds that determine the patentability of an invention. These are that the invention:

- I. Is New (Novel)
- II. Involves an inventive step (Non-obviousness)
- III. Is industrially applicable, and
- IV. consists of a subject matter that is patentable

A patent will not be granted if an application fails to meet any of the above requirements. Having put this general remark, we now turn to look at each requirement with a fair detail.

A. Novelty: - is the basic patentability test, according to which an invention is not patentable if it was already known before the date of filing or before the date of priority if a priority is claimed, of the patent application. It requires that the invention must be new and never existed before at the time when an application for obtaining patent is filed. By ensuring that patents are not granted for products or processes which are already known, novelty helps to ensure that patents are not used to stop people from doing what they had already done before the patent was granted.

Now the point that needs to be addressed is how to determine that an invention is novel. We must ascertain whether prior disclosure over the same subject matter anywhere in the world or only in our jurisdiction bars applications filed today.

Prior Art

Not surprisingly, the concept of novelty as contemplated in patent laws is better understood in reference to the idea of prior art. In connection to this Art.3 of our patent proclamation states:

An invention shall be considered new if it is not anticipated by prior art. Prior art shall consist of anything disclosed to the public, anywhere in the world by publication or in tangible form or by oral disclosure, by use or in any other way, prior to the filing date where appropriate, the priority date, of the application claiming the invention.

As stated above, novelty is decided in light of prior art. Prior art refers to the state of art that forms civilization before the application date. The categories of state of art seems to be extremely broad and inclusive to include all matters (whether a product, process, information

about either, or anything else) which at the priority date of the application in question has been made available to the public by written or oral description, by use or in any other way. From the phrase ‘anywhere in the world’, we can correctly assert there are no geographical limits placed on where the state of art must be disclosed. Hence, the state of art includes information that is available anywhere in the world (In Ethiopia or elsewhere)

There is no restriction on the mode of disclosure. Information will become part of the state of art irrespective of the way in which it was made available to the public. If the information is accessible, then its age, obscurity, duration, language or location is irrelevant. Similarly there are no minimum requirements on how widely the information must be published for it to be disclosed. Thus a single copy of document or the sale of a single item will be sufficient for the information to become part of the state of art.

While as a general rule novelty prohibits disclosure of information prior to the filing date priority date of the invention, Sub Art.3 of the same provision provides for a grace period that justifies disclosure of information within 12 months preceding the filing date, where applicable the priority date. That is, if the inventor or the successor in title publishes the invention, an application can still be validly filed which will be considered novel despite the publication, provided that the filing is made during the grace period following the publication.

B. Inventive Step (Non-obviousness):- refer to the same general patentability requirement present in most patent laws, according to which an invention should be sufficiently inventive - i.e., non-obvious - in order to be patented.

The expression "inventive step" is predominantly used, for instance, in Germany, in the United Kingdom and under the European patent convention (EPC), while the expression "non-obviousness" is predominantly used in the United States Patent law. Although the basic principle is roughly the same, the assessment of the inventive step and non-obviousness varies from one country to another. For instance, the practice of the European patent office (EPO) differs from the practice in the United Kingdom

The European patent office almost always applies the "problem-solution approach" in order to decide whether an invention involves an inventive step. The approach consists in:

1. Identifying the **closest prior art**, i.e., the most relevant prior art;
2. Determining the **objective technical problem**, i.e., determining, in the view of the closest prior art, the technical problem which the claimed invention addresses and successfully solves; and
3. Examining **whether** or not **the claimed solution** to the objective technical problem is **obvious** for the skilled person in view of the state of the art in general.

This last step is conducted according to the "could-would approach". Pursuant to this approach, the question to address in order to assess whether the invention involves an inventive step is the following:

*Is there any teaching in the prior art, as a whole, that **would, not simply could**, have prompted the skilled person, faced with the objective technical problem formulated when considering the technical features not disclosed by the closest prior art, to modify or adapt said closest prior art while taking account of that teaching [the teaching of the prior art, not*

just the teaching of the closest prior art], thereby arriving at something falling within the terms of the claims, and thus achieving what the invention achieves?

If the skilled person would have been prompted to modify the closest prior art in such a way as to arrive at something falling within the terms of the claims, then the invention does not involve an inventive step.

The point is not whether the skilled person could have arrived at the invention by adapting or modifying the closest prior art, but whether he would have done so because the prior art incited him to do so in the hope of solving the objective technical problem or in expectation of some improvement or advantage. This must have been the case for the skilled person before the filing or priority date valid for the claim under examination.

"Non-obviousness" is the term used in the US patent law to describe one of the three requirements that an invention must meet to qualify for patentability. One of the main requirements of patentability is that the invention being patented is not obvious, meaning that a "person having ordinary skill in the art" would not know how to solve the problem at which the invention is directed by using exactly the same mechanism. The Graham Factors, shown below, are used by courts to determine if the claimed invention is not obvious.

Teaching-suggestion-motivation (TSM) test

Further, the combination of previously known elements can be considered obvious. But, there must be a suggestion or teaching in the prior art to combine elements shown in the prior art in order to find a patent obvious. Thus, in general the critical inquiry is whether there is something in the prior art to suggest the desirability, and thus the obvious nature, of the combination of previously known elements.

This requirement is generally referred to as the "teaching-suggestion-motivation" (TSM) test and serves to prevent against hindsight bias. As almost all inventions are some combination of known elements, the TSM test requires a patent examiner (or accused infringer) to show that some suggestion or motivation exists to combine known elements to form a claimed invention. Some critics of the TSM test have claimed that the test requires evidence of an explicit teaching or suggestion to make a particular modification to the prior art, but it was made clear that the motivation may be implicit, and may be provided, for example, by an advantage resulting from the modification. In other words, an explicit prior art teaching or suggestion to make a particular modification is sufficient, but not required for a finding of obviousness. The TSM test has been the subject of much criticism for its lack of precision and certainty.

The Graham factors

The Graham factor is a judicial creation crafted by the US Supreme Court decision in *Graham et al. v. John Deere Co. of Kansas City et al.* In that case the court considered different factors to determine the obviousness and non-obviousness of an invention. Accordingly, the court held that obviousness should be determined by looking at

1. the scope and content of the prior art;
2. the level of ordinary skill in the art;
3. the differences between the claimed invention and the prior art; and
4. Objective evidence of non-obviousness.

In addition, the court outlined examples of factors that show "objective evidence of non-obviousness". They are:

1. commercial success;
2. long-felt but unsolved needs; and
3. Failure of others.

C. Industrial applicability: - also known as industrial application is a patentability requirement according to which a patent can only be granted for an invention which is susceptible of industrial application, i.e. for an invention which can be made or used in some kind of industry. In this context, the concept of "industry" is far-reaching: it includes indeed agriculture for instance. In this regard Art.3 (5) provides that

An invention shall be considered as industrially applicable where it can be made or used in handicraft, agriculture, fishery, social services and any other sectors.

As the above provision shows, our patent system does not require that the invention should be applied in industry. On the other hand, it can be argued that our patent system considers the requirement of industrial application in terms of usefulness of the invention, more than mere application on industry. According to the second argument, inventions which are not susceptible of industrial application may be patented. Examples of such inventions include: methods for treatment of the human or animal body by Surgery or therapy and diagnostic methods practiced on the human or animal body. However, If we hold the second argument, we must be ready to accept that the use of the term industrial application is a misnomer or without any purpose.

Priority of Patent Application, Examination of Applications and Grant of Patent

A **patent application** is a request pending at a patent office for the grant of a patent for the invention described and claimed by that application. An application consists of a description of the invention (the *patent specification*), together with official forms and correspondence relating to the application. The term **patent application** is also used to refer to the process of applying for a patent, or to the patent specification itself.

In order to obtain the grant of a patent, a person, either legal or natural, must file an application at a patent office. Under our patent system, patent applications are processed by the Ethiopian office of intellectual property.

Application preparation, filing and prosecution

The process of obtaining the grant of a patent begins with the preparation of a specification describing the invention. That specification is filed at a patent office for examination and ultimately a patent for the invention described in the application is either granted or refused.

Patent specification

A patent specification is a document describing the invention for which a patent is sought and setting out the scope of the protection of the patent. As such, a specification generally contains a section detailing the background and overview of the invention, a description of the invention and embodiments of the invention and claims, which set out the scope of the protection. A specification may include figures to aid the description of the invention, gene

sequences and references to biological deposits, or computer code, depending upon the subject matter of the application. A title must also generally be provided for the application.

Claims

The claims of a patent specification define the scope of protection of a patent granted by the patent. The claims describe the invention in a specific legal style, setting out the essential features of the invention in a manner to clearly define what will infringe the patent. Claims are often amended during prosecution to narrow or expand their scope.

The claims may contain one or more hierarchical sets of claims, each having one or more main, independent claim setting out the broadest protection, and a number of dependent claims which narrow that protection by defining more specific features of the invention.

Filing date

The filing date of an application is important as it sets a cutoff date after which any public disclosures will not form prior art. Usually the right to a patent for an invention lies with the first person to file an application for protection of that invention (See: first to file and first to invent rule). It is therefore generally beneficial to file an application as soon as possible.

First to file and first to invent rule

Sometimes it happens that two persons apply the same application over the same invention. And it may even occur that five persons or more may request patent right over the same subject matter. As such, it would be self-defeating to grant patent to all of the applicants. Thus a state would be invariably forced to grant to one and deny the other. In this regard many states apply either the first rule or the first to invent rule.

Almost every country other than the United States uses a first-to-file system. This means that, regardless of who invented first the person or legal entity who files a patent application first is the one who can be granted a patent for the invention. The advantage of this rule is that it encourages speedy disclosure of information.

According to the *first-to-invent* system, the person who conceives the invention first would be granted patent. Under the United States patenting system, invention is generally defined to comprise two steps: conception of the invention and reduction to practice of the invention. When an inventor conceives of an invention and *diligently* reduces the invention to practice (by filing a patent application, by practicing the invention, etc.), the inventor's date of invention will be the date of conception. Thus, provided an inventor is diligent in reducing an application to practice, he or she will be the first inventor and the inventor entitled to a patent, even if another files a patent application (reduces the invention to practice) before the inventor.

Harmonization efforts are underway with the goal being to unify the patent laws of various nations so that inventors have the same right regardless of which country patent is granted in.

Priority right

A **priority right** or **right of priority** is a time-limited right, triggered by the first filing of an application for a patent. The priority right belongs to the applicant or his successor in title and

allows him to file a subsequent application in another country for the same invention, for this subsequent application, from the date of filing of the first application for the examination of certain requirements. When filing the subsequent application, the applicant must "**claim the priority**" of the first application in order to make use of the right of priority.

According to article 11 of the patent proclamation, the period of priority, i.e. the period during which the priority right exists, is 12 months for patents. The period of priority is often referred to as the "**priority year**".

When a priority is validly claimed, the date of filing of the first application, called the "**priority date**", is considered to be the "**effective date of filing**" for the examination of novelty and inventive step or non-obviousness for the subsequent application claiming the priority of the first application. In other words, the prior art which is taken into account for examining the novelty and inventive step or non-obviousness of the invention claimed in the subsequent application would not be everything made available to the public before the filing date (of the subsequent application) but everything made available to the public before the priority date, i.e. the date of filing of the first application.

The basic purpose of the right of priority is to safeguard, for a limited period, the interests of a patent applicant in his endeavor to obtain international protection for his invention, thereby alleviating the negative consequences of the principle of territoriality in patent law.

Patent pending

Patent pending is a term used to describe an alleged invention that is the subject of a patent application. The term may be used to mark products containing the invention to draw competitor's attention to the fact that they may be infringing a patent if the product is copied after the patent is granted. Our patent system does not explicitly provide for a right to claim patent pending right. However, having regard to its purpose, it seems to be appropriate to issue patent pending mark. .

Search and examination

After filing, either systematically or, in some jurisdictions, upon request, a search is carried out for the patent application. The function of the search is to reveal prior art which may be relevant to the patentability of the alleged invention (that is, relevant to what is claimed, the "claimed subject-matter"). In some jurisdictions the search report is published, generally with the application 18 months after the priority date of the application, and as such is a public document. The search report is useful to the applicant to determine whether the application should be pursued or if there is prior art that prevents the grant of a useful patent, in which case the application may be abandoned before incurring further expense. The search report is also useful for the public and the competitors to enable them to gain an idea of the scope of any protection that might be granted based on the pending patent application.

Under our patent system, too, the patent granting office is supposed to undertake a search for the existence or otherwise of any anticipatory event in the prior art. However, there is no indication if the office publishes its search like in other jurisdictions.

Grant of patent

Once the patent application complies with the requirements of the relevant Patent law, a patent will be granted to the applicant. The date of issue effectively terminates prosecution of a specific application, after which continuing applications cannot be filed, and establishes the date upon which infringement may be charged.

Post-issue or grant

Many jurisdictions require periodic payment of fees in order to retain the validity of a patent after it is issued and during its term. Failure to timely pay the fees results in loss of the patent's protection. The validity of an issued patent may also be subject to post-issue challenges of various types, some of which may cause the patent office to reexamine the application.

Rights Accorded by Patent and Transfer of Patent

Our patent law, albeit broad, confers upon the patentee (i.e. owner of the patent) an exclusive right to make use and exploit in any other ways. As such patent right creates exclusionary right in that it excludes third parties from making, or using or exploiting the invention in any manner. Although, the protection provided by patent, which is 15 years, is not as long as the protection provided by our copyright, life + 50 years, or trade mark law, the rights granted by patent are more expensive. The rights granted to the patent owner cover most commercial uses of the patented invention. With this brief, now we shall turn to look at the exclusive rights of the patent owner in more detail.

A. The right to make the product

Perhaps the most important right given to the owner of a patent is the exclusive right “to make” the product. Essentially this right implies to the right to manufacture and produce the patented invention. One problem related to the scope of the exclusive right “to make” pertains to repairs and modification of the patented product. On the one hand, it sounds that the purchasers of the patented products should be able to repair and modify those products. On the other hand, however, patent law is keen to ensure that while a person who obtains a patented product is able to use the product, he may not go so far as to make the product anew. In these circumstances, the question arises: How much of a product is a person able to repair or modify before he infringes the owners right to make the product? That is, when does the legitimate act of repairs or modification switch to become the illegitimate making of the patented product?

The way these questions are addressed depends up on the circumstance of the case under consideration. It seems that both quantitative factors, such as the amount of the product that is repaired and qualitative consideration such as the relative importance of the part of the patented product which has been repaired, are likely to be taken in to account. From this it follows that repairing an immaterial part of a product does not infringe the patented product.

B. The right to use the product

Patent law also secures the exclusive right to use the patented product. This right is thought to be a natural right that underlies the notion that a person has, just as a matter of right, to use

and to enjoy the fruits of his mental labour. Thus, with some exceptions justified under the patent law, a patent owner enjoys exclusive right to use his patented product.

C. The right to “exploit otherwise”

As forms of a personal property, patent and patent implication may be assigned, licensed, or mortgaged, and they may devolve by operation of the law (notably through death and bankruptcy). In view of this, the last phrase of Art 22(1) provides that a patent owner has an exclusive right to exploit his invention in any manner he wishes. Obviously, this paragraph envisages the various modes of exploitation of patent right. Under this section, we will discuss only exploitation of patent right by virtue of assignment and license.

Assignment

An assignment implies transfer of the ownership of the patent (or application). Like any other personal property it emanates from contract. As a result, the assignment contract entitles the assignee to deal with the patent in a manner he thinks fit. Our patent law does not provide specific forms and conditions. Never the less, it can be well taken that the general contract applies, as there is no undertaking which does fall under the general contract where there is no exclusion otherwise. In some jurisdictions, an assignment must be in writing. And where the patent is owned by more than one party, for the assignment to be valid, all of the co-owners must consent to the assignment.

License

Another common way in which patents are exploited is by license. A license provides a party with permission to do an act that otherwise is prohibited. In contrast with assignment, no proprietary interest is passed under a license.

Licenses may be exclusive or non-exclusive. An exclusive license is an agreement under which the owner of a patent grants the licensee permission to use the patented technology to the exclusion of third parties including the patentee (the licensor). On the other hand, non-exclusive license (sometimes called mere license) is simply an act that permits the licensee to use the patented, just as one of the licensee of the patent owner. As such, the non-exclusive license does not prohibit the licensor from using the patent for himself, or from granting further license.

Limitations to Patent Rights

We have discussed that patent creates monopoly right in favour of the patentee. The monopolistic power enables the patentee to protect himself and his invention by suing those actors who infringe directly or indirectly. However, this does not imply that patent right is limitless. Patent right as well allows certain restrictions/exceptions that limits the monopolistic power of the patentee. In general, the limitations balance the interests of patentee against the interests of the other groups, such as competitors, prior users, trader’s users, non-profit making bodies, as well as teaching and research establishments. With these general points, we now turn to look at the exception/limitations to patent right.

A. Lapse of duration of patent right

Obviously, patent right does not survive forever. In fact, comparing to copyright and trademarks; it ends over a very limited period of time. Under our patent law, patent right expires after 15 years from its grant. However, where the patentee furnishes proof for the sufficient working of the patent in Ethiopia, his patent right may be extended by another five years. Yet, it is not clear whether the patent granting office could refuse to extend duration of patent right despite the fact that the patentee has adequately put his invention in practice. In all cases where the patent right expires, the inventive thought would be a public domain, and as such everyone would be entitled to use the invention free of charges or any other restrictions.

B. Non-commercial uses

Art.25 (1) provides that patent right does not extend to non-commercial uses of the patented invention. Accordingly, a patent owner cannot prohibit non-commercial uses of his invention by others. This exception is usually justified on the assumption that non-commercial use enhances scientific knowledge over the inventive thought. For example, if a patent owner was to prohibit (or charge) use of his invention at school, college or research institution, there would not be a room for scientific critics and improvements over the whole inventive thought that underlies the patent right. Another argument in favour of the non-commercial uses doesn't pose much of a threat to the patent monopoly. However, it is not going to be easy to distinguish non-commercial from commercial uses. It may occur that a certain activity may have commercial and non-commercial benefits. Our law is silent in this regard. In other jurisdictions, it is necessary to ascertain the subjective intention of the user. If the infringer were motivated by commercial interests, the defence would not apply. However, if the subjective purposes were non-commercial, the defendant could rely on the immunity.

C. Experimental uses

The other exception, under Art.25, pertains to acts done for experimental purpose relating to the subject matter of the invention. Supposedly, the most obvious justification to experimental use is that the patent monopoly should not be allowed to inhibit scientific developments.

Our law does not define the scope of the experimental use exception. Under the British patent system, the scope of the exception is determined in light of the purpose of the experimental use. As such, if it can be shown that the purpose of the activity was to discover something unknown or to test hypothesis, it would be regarded as an experiment, hence immune from liability. On the other hand, if the activity is to prove something that is already known, to demonstrate to a third party that the product works in the way the maker claims, or to obtain official? For a product, these would not be regarded as acts done for experimental purposes.

D. Doctrine of exhaustion

Doctrine of exhaustion is another way of restricting monopolistic patent right. According to the Doctrine of exhaustion, the patentee is unable to rely on the patent to prevent the resale of his patented product where he freely disposes them to the market. This is because the sale of a product carries with it an implied license to keep, use, and resell the product. Hence, a

buyer, once he lawfully acquired a patented product, will have an absolute freedom to use and exploit that particular product in a manner he thinks fit.

Conventionally, the Doctrine of exhaustion takes two forms: Absolute exhaustion and national (or domestic exhaustion). Domestic exhaustion applies to patented articles that are placed in domestic market. Accordingly, a patentee loses the power to control a particular thing where he voluntarily disposes it in domestic market. However, domestic exhaustion does not apply to articles that are disposed in foreign market. This is to say that under the Doctrine of domestic exhaustion, the patentee can prohibit importation of his patented product. On the other hand, the Absolute Doctrine of exhaustion underpins the rule that a patent right over a product or process exhausts where it is freely disposed to a market, domestically or internationally. As such, it would be immaterial where the patentee has placed his product. Its consequence is that the patentee cannot prohibit importation of his patented product from foreign market.

In many ways, absolute and domestic doctrines of exhaustion are mutually exclusive. As such, patent law may not adopt at the same time both absolute, and domestic doctrine of exhaustion. The most known deviation from this is the arrangements envisaged under many European Union Member Countries. The British patent law, for example, incorporates both absolute and domestic doctrine of exhaustion. The absolute doctrine of exhaustion applies with respect to articles that are disposed in any EU member states. Accordingly, a patentee cannot control further distribution or resell of a thing that he freely disposed in any EU member states. In contrast to this, the domestic doctrine of exhaustion deals with the exhaustion of patent right over articles that are placed in the UK market. In a way the domestic doctrine of exhaustion affects importation of patented articles from non EU-member states. Consequently, under the domestic Doctrine of exhaustion, patent right does not exhaust over articles that are placed in non-EU Member states.

Our patent law envisages both absolute and domestic Doctrine of exhaustion for no distinct reason. Art.22 (2) prohibits import monopoly, and from this it can be asserted that any patented articles in Ethiopia may be freely imported from a foreign market. In furtherance to this, Art.25 (1) (c) provides that patent right does not extend with respect to articles that are placed in Ethiopia. Obviously, Art.25 (1) (c) presents a typical character of doctrine of exhaustion. As such, from the separate reading of Art.22 (2), and Art.25 (1) (c), one would ponder the question of what the doctrine of exhaustion envisaged under our patent law is.

Undoubtedly, patent right always exhausts in respect of articles that are disposed in places where the patent right works. However, there are different practices in relation to the exhaustion of patented products disposed in international markets. In many developed countries, and in fact in some African countries such as Kenya, Nigeria, and South Africa, patent law confers import monopoly right. Its consequence is that the patent owner can prohibit import of articles that he has voluntarily disposed in a foreign market. On the other hand, in many developing countries, including ours, patent law denies import monopoly right. This means that patent exhausts in respect of goods that are lawfully disposed to market, no matter where the goods are placed (in domestic or foreign market). The reason for denial of import monopoly right in many developing countries is thought to be to satisfy domestic market in sufficient scale of the patented product. It is also argued that prohibition of import

monopoly right triggers the patentee to provide the domestic market in adequate scale so that he discourages import of his patented products.

Having the above points in mind, it seems to be odd to argue that our patent law adopts both absolute and domestic doctrine of exhaustion. Under normal circumstances, there seems no special purpose, like in the UK, that both absolute and domestic doctrines of exhaustion operate in parallel under our patent system. This is because our patent law for the better or for the worse is exclusively territorial. Both in fact and by law, our patent law does not have any effect in other jurisdictions. Similarly, the issue of exhaustion of patent in our system arises in relation to the power of the patent owner to prohibit importation of his patented product. In this regard, Art.22 (2) provides that patent owner can not prohibit import of his product. Thus, from the cumulative and closer inspection of Arts.22 (2) and 25(1) (c), and the supposed purpose that they underline, it can be well taken that our patent law adopts absolute doctrine of exhaustion.

E. Right of Prior Users

Right of Prior Users is founded on the fundamental principle that prior individual innovative activities shall not be undermined or inhibited by subsequent patents. As such, it allows prior user to continue to use his act that is covered by subsequent patent. In view of this, article 26 of the patent law provides that.

From this provision it is important to note that prior user's right is confined to personal use of the prior act. It cannot be commercialized or transferred to others independently from the sale of the business. However, it can be transmitted on death of the owner of the prior user or upon the sale of the business. It should also be noted that it is available only where the acts were carried out in good faith. Although the notion of good faith is yet to be interpreted by the courts, this may prevent a member of a research team from relying on the prior user exception where he left the research team contrary to an understanding between them.

Infringement of Patent Rights and Remedies

Infringement

Infringement occurs when a person makes, use of or exploits in any manner a subject matter of a valid patent without the permission of the patentee. Here the judgment of infringement requires the determination of patent scope and the comparison between the patented invention and the accused product or process.

As the scope of patent depends on the claims contained in a patent application, their interpretation might be crucial. In theory it seems to be easy to decide whether a given device or process infringes the claims of a patent. With this it would be only necessary to read the claims, and to apply them to the device or process. For each element under the claims, there must be a corresponding element actually present in the alleged infringement.

However, in practice patent infringement creates dense of complications to the court and the lawyer. In part, the problem arises due to the indeterminacy (lack of precision) of terms and words used to define the claim, and largely the problems in infringement arises out of the doctrines that have been crafted at different times, and which either extend or narrow the general rule for ascertaining infringement.

Our patent law protects the patentee against unauthorized use or exploitation of his invention. According to Art.24 a patentee has recourse where his patent right is infringed by a third party. However, nowhere under our patent law is found a standard that indicates how infringement occurs. In the absence of records, of course, it would be very difficult to ascertain the reason why the legislator failed to express some guidelines that govern proof of infringement. Nonetheless, considering the complex nature of patent infringement, and the varying doctrines, it would be imperative to put standards that do not retard technological advancements in our country.

A. Methods of infringement

In many jurisdictions, a series of standards and rules have been developed by courts, and even by specific acts. Some envisage strict literal infringement, whereas others provide narrower claim in interpretation. And currently, there are emerging rules that lie between the strict literal interpretation and the broader one. Some of these doctrines that are commonly in use would be discussed individually below. Additionally, account of the types of infringement, the defences, and the legal remedies would be discussed in fair detail.

Literal Infringement

This is sometimes called the literal overlap or all element rules. For infringement, literal infringement requires that each and every element of the claim must be present in the alleged infringement. It presumes that each and every element of the claim is material and essential. As such, the patent attorney or the court views the claim as a checklist of features, in which case every element of the claim must be found in the allegedly infringing device or product in order for the claim to be infringed. If for instance X patent product possesses Z and Y elements under its claim, any other device that uses “Z” and “Y” would be hit for infringing the X product. A literal infringement also occurs where the alleged infringement possesses more elements other than those that are envisaged under the patented product. This is to say that “X” patented product would be infringed if the alleged infringement comprises K and L in addition to the Z and Y elements. However, the consequence of the literal infringement is that if, in our example, Z or Y or both are missing under the alleged infringing devices, there would not be infringement.

The literal infringement is the oldest mechanical rule in the patent jurisprudence. Although it laid down the basis for proof of infringement; it has little or no acceptance in our days. As such it has been vehemently criticized in that it encourages clever copies to make use of the patented invention by changing its shape, size and configuration. It is also defeated as it allows others to make use of the patented invention by omitting even an immaterial or non-essential part of the patented invention.

The Pith and Marrow Doctrine

The literal infringement ceases to operate where rather than adding to the patented invention a defendant omits to include part of the patented invention in his product or process and on this basis argues that his invention falls outside the scope of the monopoly.

In order to ensure that the patentees’ interest are not undermined by defendants who dress up infringing invention to appear as if they fall outside of the scope of the patent monopoly ,

patent law has long held that it is not necessary for every element of the patented invention to be taken as infringed. The Doctrine that takes into account only the essential elements of the patented invention to determine if they exist under the alleged infringement is called the pith and marrow doctrine. According to the pith and marrow doctrine, an article can infringe a claim, even though all of the elements of the claim do not read on elements of the article, provided the differences between the article and the claim are only immaterial variations, or omission of non-essential elements. Thus, the fact that a defendant fails to take an immaterial or non-essential part of the patented invention will not allow them to escape liability for infringement.

Doctrine of equivalence

Both the literal and the pith and marrow doctrine focus on the material identity of the patented invention with the defendant's product or process. As such, they do not cover cases where the defendant substitutes a material element of an invention with something that is functionally equivalent. Quite beyond the literal language of the patent claims, the doctrine of equivalent holds that infringement occurs where the defendant's device are functionally equivalence to the patented invention. Specifically, a patentee can invoke this theory against the producer of a device, if it performs substantially the same function in substantially the same way to obtain the same result. The equivalence in function, way and result is also known as the triple identity.

From a historical point of view, the concept of infringement by equivalence has been developed nearly over 150 years. Largely, it is the invention of the judiciary. As such, we learn more about equivalence from some major judicial pronouncements. "Winahs V.Denmead" was the first decision in which the supreme court of the United State ascertained the existence of infringement if the changes added by the defendant are not more than imitation, or additions only of a colourable variation.

Furthermore, in the Graver Tank V.Linde Air Prods Co, the court pondered the issue whether the alleged product used an element known to be "inter changeable" at the time the patentee has filed his application. The court declared that there is infringement if a person having ordinary skill and Knowledge could expect the practical interchangeability of the defendant's product with those specifically identified in the patent specification. However, this does not set an exclusive test of equivalence. The defendant's product or process might be interchangeable in the broader reading of the claim, but it may still operate in substantially different ways. Thus, equivalence must be complemented by other factors such as the knowledge of the person skilled in the art and the functions performed by the patented device and the substituted element.

The Doctrine of equivalence is clearly an expansive doctrine in the sense that it extends the scope of the patent beyond its literal meaning. Its influences on patent scope and consequently on the economic value of the patent has attracted scholarly debate among different authors. Some authors view the Doctrine of equivalence as an incentive for substantial improvement on a basic technology. Whereas quite many authors reject it on the ground that it may retard or inhibit new technology, others also criticize the doctrine of equivalence as obscure and unpredictable.

B. Type of infringing activities

From the reading of our patent law, one would end up without stating any typical forms of infringement. Art 24 envisages the right of recourse against infringement without indicating how infringement could occur and how to implicate liability to infringers for different infringing activities.

As the course of events signifies, however, patent infringement could take place in different ways. The most common type of infringing activities takes the character of direct, indirect, or contributory infringement. Before looking at them in more detail, it is important to note that to infringe, the activity must be carried out without the consent of the patentee, and take place during the duration of the patent.

Direct infringement

Direct infringement occurs if a person makes, uses or sales the patented invention without permission. As such, direct infringement involves immediate engagement with the patented product or process. It occurs irrespective of the knowledge of the infringer. This is to say that the exclusive right granted to the patent owner does not allow for any defence based on good faith or ignorance. However, to request damage the patentee must have marked his product invention with notice of the patent or give actual notice to an infringer.

Indirect infringement

Indirect infringement applies where a person facilitates the act of infringement. In the *Fromberg, Inc.V. Thornhill*, it was held that:

Even if a seller does not commit direct infringement, if he asks or induces another to do so, or if he sells a product with advertising or instructions about an infringing use, and intends to cause the buyer to make, use or sell a patented invention, he may be liable for inducing another to infringe as an indirect infringer.

Accordingly, if a person encourages another to make, use or sell the invention without permission, the person who induces would be liable for indirect infringement. For indirect infringement to take place, two elements need to be met: first the patentee must establish that the means supplied by the defendant relates to an essential element of the invention. Secondly, the supplier must know or it must be obvious to a reasonable person in the circumstances that the means are both “suitable” for and “intended” to be used in putting the invention into effect. The imposition of a knowledge requirement ensures that parties who do not knowingly benefit from the misuse of a patent are not caught as indirect infringers.

Contributory infringement

Contributory infringement is a recent concept that is regarded as a broader version of indirect infringement. It occurs only in connection with a sale of a component knowing it to be specially made or adapted for use in a patented device or process and the component is not a staple article suitable for some substantial non-infringing use. For instance, if all parts of an infringing device are sold by the person in a form so that they can be put together easily to make the infringing device, that person will be liable for a contributory infringement. Also if two persons act in concert so that each sells some of the parts necessary to make an infringing device, both will be liable for infringement.

Although good faith or ignorance is defence for direct infringement, that is not the case with contributory infringement. Thus, it is a defence for an accused contributory infringer to show that he had no knowledge that the goods were substantially suitable only for infringement. However, knowledge of the infringer could be easily presumed, as the contributory infringement is founded upon the sale of items for which there is no substantial use other than in the patented invention. It is, therefore, unlikely that a seller could market such items without the knowledge that there was an infringement occurring.

Defenses to infringement

Once the patentee has proved that the defendant has performed an activity that fall within the scope of the patent monopoly, the obligation then shifts to the defendant to show that the activity is exempted from liability by one of the defences to patent infringement that are available to them. Generally the exceptions balance the interests of patentees against the interest of other groups such as non-profit making bodies, research and teaching establishments, prior users, as well as the state.

Legal remedies to infringement

Assuming that infringement is established, it would be necessary to designate the right remedies. In general, the remedies could be civil or criminal. Most often than not, the successful plaintiff in an infringement suit chooses damages or an accounting of the defendant's profit. In view of this, Art 24-of the patent proclamation provides that the patentee has a right of recourse against patent infringement. However, from this provision one cannot succinctly tell the specific types of remedies that a patentee might seek. Thus, to suggest the appropriate remedies, we should invariably resort to the civil code, civil procedure code and the new revised criminal code.

The other available legal remedy pertains to criminal sanction. In line with this, Art 720(2) of the new revised criminal code provides: *"Whoever unlawfully so acts with respect to intellectual property rights, particularly industrial designs, models, or patented inventions, duly registered and protected by existing law or agreements, national or international, shall be punishable by a rigorous imprisonment not exceeding ten years"*

Chapter IV: Utility Model, Industrial Design and Trade Mark Protection

Utility model certificate

Essentially, utility model certificate is designed to afford protection to small inventions that don't meet the measure of standard patent. In other jurisdictions, it is known by other self-explanatory names such as small patent, petty patent, and innovation patent. It is believed that utility model certificate provides a valuable addition to the existing intellectual property rights. Its proponent further argues that in many cases patent law is too difficult and expensive to obtain, and that proper protection of innovations by small and medium-sized enterprises demands a cheaper, quicker system of protection.

Under our patent law, utility model certificate is issued for minor inventions that possess novelty and industrial applicability. From this, one would conclude that the subject matters of utility model certificate are minor inventions. Now the question is: what is a minor invention? Is it an essential validity requirement for the issuance of utility model certificate?

Our patent law does not define and determine the scope of minor inventions, and hence the subject matter of utility model certificate is not known under our patent law, and there is no indication, under our patent law that requires that an invention must be a minor invention, as an essential validity requirement for the issuance of utility model certificate confers a shorter protection.

Principally, the duration of utility model certificate is five years. But, it can be extended by another five years where it is shown that the invention has been used sufficiently.

Industrial Design Protection

Industrial design rights are intellectual property rights that protect the visual design of objects that are not purely utilitarian. An industrial design consists of the creation of a shape, configuration or composition of pattern or colour, or combination of pattern and colour containing aesthetic value. An industrial design can be a two or three dimensional pattern used to produce a product, industrial commodity or handicraft.

Industrial design rights can be acquired through registration, or by use (like prior user in trade mark law). As such, industrial design rights can be created in registered or unregistered designs. Unregistered industrial design rights are common in the UK, and now under the European Union. In many countries, however, industrial design rights are acquired only through registration. Our system of industrial design right is a typical example of the traditions which require registration for obtaining industrial design right.

Our system of industrial design rights act affords five years of protection to industrial designs. Such period may be extended for two periods of five years each by an application for renewal. As such, subject to renewal, the protection of industrial designs is for up to fifteen years (15 years). During the existence of an exclusive right, no person can "make, import for the purpose of trade or business, or sell, rent or offer or expose for sale or rent, any article in respect of which the design is registered.

Requirements for industrial design protection

Art. 46 provide that for an industrial design to be protected, the design must be new, and possess practical applicability. According to para.2 (a), an industrial design is considered new when the sum total of its essential features is different from that of another design known either in Ethiopia or abroad and has not been disclosed for more than one year before the date of filing of the application. According to this provision, a design will lack novelty if it is the same as a design that is revealed by the prior art, or if it differs only in respect of immaterial details.

Largely, the concept of novelty in design law seems to be similar to that employed in patent law. This is because in both cases novelty is decided in light of state of art. As per Art46 (2) (a), the relevant state of art is that existing at the date of application for registration or, where priority date is claimed, the foreign date. And similar to the patent law, the state of art covers designs which are registered or published in Ethiopia and anywhere else in the world.

In addition to novelty, Article 46(1) requires that the design must possess practical applicability. This means that the design must be capable of serving as a model for repeated manufacture. In other words, the industrial design should enable the industry to produce a product, industrial commodity or handicraft.

Exclusions

Not all designs qualify for protection under the industrial design rights. Although the window of exclusions are deep and wide in other jurisdictions, our system of industrial design right excludes only the following matters: a) an industrial design that is contrary to public order or morality, b) an industrial design that serves solely to obtain a technical result.

Trade Mark Protection and Registration

Definition of trademarks

Trademark is a broad subject matter. At the general level, custom and positive law defines the notion of trademark as any sign or mark that distinguishes the origin of one product from another. Of course, even in our days, the meaning of a mark or sign is not adequately established. As such, although trademark owners welcome the open-ended notion of a trademark, some notorious problem has occurred in relation to registrability of certain marks. In particular, it had been endlessly argued whether the shape of goods and “sensory marks” such as smell and sounds are marks eligible to trademark registration. Be that as it may, the notion of marks or sign is ever increasingly expanding.

The extended notion of trademark can be observed by looking at the trademark statutes of different countries. The British trade act of 1994, for example, defines trademark as:

“Any sign capable of being represented graphically, and which is capable of distinguishing goods or services of one undertaking from those of others. A trade mark may, in particular, consist of words including personal names, design, letters, numeral, or the shape of goods or their packaging”

According to the above definition, for a trade mark to be validly registered, it is necessary to show that it consists of a sign. Indeed, no statutory definition is given as to what is meant by this term. However, it is construed that the non-exhaustive lists of trademark under the definition potentially allows other things that are capable of distinguishing the origin of one product from another. While not mentioned under the definition, it was held that colours are prima facie registrable where they are used as a trademark, the main problem being showing that the mark is distinctive. It was also contended that sensory marks are eligible for trademark registration.

Similar to the British 1994-trademark act, the TRIPS provide that.

“Any sign or any combination of signs capable of distinguishing the goods or services of one undertaking from other undertaking shall be capable of constituting a trademark. Such sign, in particular words including personal names, letters, numerals, figurative elements and combination of such sign shall be eligible for registration as trademark”

Perhaps, the above definition is the most comprehensive definition of trademark. Unlike, the British 1994 trademark act, the TRIPS explicitly makes combination of colours as sign eligible to trademark registration. It can also be argued that there is nothing that can be used as a mark, save absolute and relative ground for refusal of trademark registration under national legislations.

When we look at our trademark law, the proclamation No 50/2006 for trademark registration and protection defines trademark as: *“Any visible sign capable of distinguishing goods or*

services of one person from those of other persons. It includes design, letters, numerals, colours or the shape of goods or their packaging or the combinations thereof”

Comparatively the above definition seems to be narrow in scope. Unlike the TRIPS and the British 1994 trademark Act, it requires that the sign must be visible. Its Consequence is that it excludes non-visible marks such as signs, smells and sounds.

Function and Justification for Trademark Protection

A number of different rationales have been used to justify trade mark protection. The arguments which are used to justify copyright, designs, patents which focus on the protection of labour and personality are difficult to apply to trade marks. This is because while some trademarks may be invented, novelty or originality is not a prerequisite. Rather, the justification for trade mark protection relies on the capacity of the trademarks to supply information on the quality of the goods or services that the mark is applied the ethical issues that govern fairness in business.

Information

Perhaps the most convincing arguments for the protection of trade signs is that they operate in the public interest insofar as they increase the supply of information to consumers and thereby increase the efficiency of the market. These arguments highlight the fact that trademarks are a short hand way of communicating information that purchasers need in order to make informed purchasing choices. By ‘preventing others from copying a source-identifying mark’ trademarks law reduces ‘ the customer’s cost of shopping and making purchasing decisions, for it quickly and easily assures a potential customer that this item-the item with this mark –is made by the same producer as other similarly marked items that he or she liked(or disliked) in the past.

The information provided by the mark is particularly important in relation to goods that a consumer cannot judge merely through inspection. Where the quality and/or the variety of goods is not readily apparent, trademarks enable consumers to choose the product with the desired features. Trademarks also encourage firms to maintain consistent quality and variety standards and to compete over a wide quality and variety. Consequently, it has been said that the “Primary reason for the existence and protection of trademarks is that they facilitate and enhance consumer decisions and... they create incentives for firms to produce products of desirable qualities even when these are not observable before purchase”.

Similar to the above assertion, our trademark registration and protection proclamation no.501/2007 under its preamble provides that ‘... trade mark ...play an important role in guiding customers’ choice and protecting their interests’. In here the trade mark registration and protection proclamation does not explicitly mention the function of trade mark registration as an incentive for the production of quality products. However, by emphasizing on the source identifying role of trade mark registration, it can be contended that our trade mark registration and protection proclamation as well encourages the production of quality products.

Ethical Justification

Ethical arguments have also been used to justify the trade mark regime. The main ethical ground for the protection of trademarks is based on the idea of fairness or justice. In particular, it is said that a person should not be permitted 'to reap where they have not sown'. More specifically, it is said that by adopting 'someone else's mark, a person is taking advantage of the goodwill generated by the original trade mark owner'. Through this agricultural metaphor, the justification for protecting trademarks is linked to the broader arenas of the protection of traders against 'unfair competition' and 'unjust enrichment'

While the classical cases where a trader uses someone else's trademark on identical goods are clearly objectionable under the principle that a person should not reap what he has not sown, the principle has also been used to justify more extensive protection. For example, it is said that the objection to comparative advertising is that even though it does not confuse consumers, it takes advantage of the reputation that the earlier trade has built up. Similarly, the objections which are made to marks being used on dissimilar goods is that it takes advantage of the repute of earlier mark.

Other ethical arguments have also been used to justify trade mark protection. For example, it is sometimes argued that the misuse of trademarks is justified by reference to moral norms which treat truth-telling as a core good (rather than as necessary for the maintenance of efficient markets). As such it is argued that the law ought to allow a person who suffers harm as a result of lying to bring an action against the liar. Misrepresentations as to the source of goods are equivalent to lying or deception and are simply wrong. While arguments of this sort would justify the law of trademark in some form, they would not appear to justify the protection of one trade mark owner against the innocent adopter of a mark, nor against uses which the public would not understand as indicating a business connection with the owner. As such, it would only support a very narrowly confined law of trademarks.

Requirements for Protection: Conditions for Registration and Grounds for Refusal

It is asked how and when a person may acquire rights over trademark. In particular, it is asked if a person could obtain trademark right by attaching a mark over his goods or service or even by advertising his desire to use the mark in the future in connection to his products or services. Certainly, trademark right is not automatic to the use of the mark over goods or services. In many countries right in trademark emanates from prior use, and registration, or only from registration of the mark.

The concept of prior use has been hatched and developed in the common law trademark law. As such, prior use is understood as the actual use of a mark in the market place over a reasonably extended period of time. It has the same effect with registered trademarks. Thus, like an owner of trademark by registration, the (the prior user) can prohibit similar or identical use of the mark by others. However, while objecting to similar marks, the prior user assumes the burden of proving that his mark was actually in use in the market place for some reasonably longer time before the use of the mark by the defendant.

The other most common way of acquisition of trademark is registration. According to this method, rights in trademark become effective only after a duly established authority registers it. In many countries, rights in trademark are acquired by registration. Our country is one of them. As per Art.4, a right in trademark is acquired and is binding on third parties upon the grant of a trademark registration.

Registration of trade mark

As discussed earlier, many countries require registration of trademarks as a validity requirement. Some authorities resist the registration system as complicated, expensive and unnecessary. However, it is thought that the advantages of the registration system outweigh its potential disadvantage. In particular, it is argued that the registration of trade mark would enable third parties to discover whether other traders had claimed the right to use a particular sign and, where necessary, to locate the proprietor of the sign.

The registration process involves certain procedural steps. Under our trademark registration and protection proclamation, the registration process can be divided into four stages: I) filing of the application, ii) examination, iii) publication, opposition, and iv) registration

A. Filing of the application

As per Art 8, an application for a trademark registration shall contain:

- i. Request for registration, including the name and address of the applicant, in the form prescribed under the regulation.
- ii. Statement of the goods and services for which the mark is to be registered.
- iii. Three copies of a reproduction of the mark (a representation of the mark).
- iv. Prescribed fee as may be determined by the regulation.
- v. One trademark.

Some of the above requirements are self-explanatory. Thus, we shall discuss only those requirements that demand further explanation.

Listing of goods or services

To the trademark registrar, it is highly indispensable that the applicant precisely states goods/or services to which the trademark register applies. This is simply because the statement of the goods/services determines the scope of the mark. Art.8 (3) (b) requires not only listing of goods or services but also their international classification. Although there is no indication, the international classification referred to under this provision may perhaps mean the international classification of goods or services adopted in 1957 at Nice. Under the Nice international classification of goods /or services, there are thirty four classes of goods, and eight classes of services. The purpose of the classification process is mainly to facilitate the searching of earlier competing marks.

Representation or reproduction of a mark

The trademark applicant is also required to deposit a representation of the mark. Among others, reproduction of the mark helps to define the scope of the trademark owner's right and delineate exactly what sign is protected. It also helps to ensure that third parties are able to search the register and to ascertain things such as the scope of existing marks and to determine whether a fresh application conflicts with earlier marks. And finally, the reproduction of the mark requirement makes the bureaucracy dealing with the sign, its classification and comparison with other signs, more manageable.

Prohibition of series of marks

Art.8 (2) provides that an application for registration shall cover only one trade mark. This is clearly a prohibition of a series of marks under one application i.e., one application for one mark. It is not clear why it prohibits register of a series of marks in a single registration. In other jurisdictions, say in the UK, an applicant is allowed to register a series of marks under a single registration. And its major purpose is to reduce bureaucracy, and other expenses. In registering a series of marks, the applicant is required to include a separate representation of each mark in the series.

B. Examination

Once the filing process is completed, the registrar further conducts a search for similar marks, and an examination of the application to ensure that the proposed mark does not cover the inadmissible marks envisaged under the trademark registration and protection proclamation. In particular, the registrar, investigates whether the proposed mark:

- Fulfils the formal requirement under Art.8
- Complies with the substantive requirements under Arts. 6 and 7

C. Publication and opposition

Once the registrar accepts an application, the next step will be publication of the mark. The purpose of the publication, as per Art 12, is to allow third parties to oppose the registration of the mark. As per Art.12, the invitation for opposition may be published in the intellectual property Gazette or a newspaper having nationwide circulation at the cost of the applicant. This may also be supplemented by a radio or television broadcast or a website notice. However, while opposition, as per Art.12, occupies an important place in the registration process, it has made it costly. As per Art.13, opposition is not going to be for free. Thus to file opposition, the opposing party has to pay a prescribed fee. I suggest that this requirement of opposition fee would discourage third parties from instituting their opposition. And, as such, the legislator does not seem to have contemplated that the opposing party could be residents (perhaps poor people) other than traders, as opposition of a mark on grounds of morality, for example, may invariably need the comment or opposition of residents. Thus, it does not sound fair to request the community to pay simply for challenging the registration of a mark.

D. Registration

Thus as per Art.15, where the registrar is convinced that both formal and Substantive requirements are present, subsequently announcement for opposition of registration of the mark come into picture. As has been discussed, registration is not automatic to the filing of application, nor is it a very short process. It further involves examination by the registrar, and a hearing for opposition by third parties. Largely, due to the expansion of industries and commercial services, and the corresponding proliferation of marks, as well as the mass of exclusion to marks, there is no less probability that the applicant may fail. The registration, the last day, would, therefore, make the applicant flourish or perish. After going through an examination of the mark in light of formal and substantive requirements, and the subsequent announcement for opposition, registration of the marks follows. Art.15 provides that where no effective opposition is made, the registrar should register the mark. Notice of registration

may be made in the same way to the notice for opposition. However, it should be noted that the decision of the registry could be appealed to the regular courts having jurisdiction.

Eligibility of trademarks for registration

Although the role of trademark is ever expanding beyond our imagination, primarily, it serves to indicate the origin of goods and/or services. Thus the standard for the eligibility of trademarks for registration is basically determined whether the mark is distinctive. Generally, a trademark shall be eligible for registration if it fulfils the following conditions:

- a) It must be a sign as defined under Art.2 (12) which includes words, designs, letters, numbers, colours or the shape of goods or their packaging or the combination thereof;
- b) It must be capable of being represented graphically as envisaged under Art.8(3)(a);
- c) It must be capable of distinguishing goods or services of one person from those of others;
- d) It must be used or proposed to be used in relation to goods and services;
- e) The use must be for the purpose of indicating or so to indicate a connection in the course of trade between the goods or services, as the case may be,
- f) And some person having the right, either as proprietor or by way of permitted user, to use the mark.

Trademarks ineligible for registration

Generally, trademarks are inadmissible for registration if they fail to meet one or more of the conditions for eligibility of trademarks for registration. In addition to the exclusion of marks that may be implied from the condition for trademark registration, our trademark law lists several grounds for inadmissibility of marks for trademark registration. For simplicity the grounds for exclusion of marks can be divided into: absolute ground, and relative grounds for refusal.

Absolute grounds for refusal

Absolute grounds for refusal refer to the exclusion of marks on the basis that they contravene with the substantive requirements. These include the following categories of trademarks:

- i. Non-distinctive
- ii. Descriptive marks
- iii. Deceptive marks
- iv. Marks contrary to public morality

Non-distinctive

Art.6 (1) (a) cum.Art.5, provide that trademarks that are not capable of distinguishing goods or services of a person from those of other persons shall not be eligible for registration. Putting this in other terms, marks that are devoid of any distinctive character are not eligible for registration. Thus, by ensuring that the only marks that are registered are those that are distinctive, the law helps to ensure that trademarks function as indicators of origin. Now, the most difficult question is what is not distinctive? Or, what does devoid of distinctive character imply?

The trademark registration and protection and protection proclamation does not explicitly provide lists of non-distinctive marks. However, from the inadmissible lists under Art.7, we

can identify some typical examples of marks that are excluded nearly as non-distinctive. These include:

- a. A trade mark consisting exclusively of signs or indications which have become customary in the current language use in relation to such goods or services for which the registration of a trademarks is applied or which have become customary in economic and business activities.
- b. A trademark that consists exclusively of the surname of the applicant

The first exclusion is founded on the basis that everyone should be allowed to use a sign or a mark that has become customary (or commonly used) in the current language. This in a way prohibits monopoly over marks that are public domain. There is, however, an exception to such prohibition. This occurs, as per Art.6 (2), where it is shown that the trademarks have been used in Ethiopia as distinguishing the origin of a product that it applies to. This presupposes that there were no other people who have used the mark. So, if other people were also using the trademark, the mark would lose its distinctive quality, and hence the exception would not apply.

As regards surname, it is thought that they lack distinctive quality. This is partly motivated by the inconvenience that the grant of right would have upon other traders who shared the same name. As such, third parties cannot be prohibited to use their name or, even the name of others that could be similar to other trademarks. Thus, where two or more people use the same surname or family name, consumers would not be able to assume that the name operates to indicate one particular supplier.

Descriptive marks

The second absolute grounds for refusal of trademarks relate to descriptive marks. Art.6 excludes from registration trademarks which consist exclusively of sign or indications which may serve, in trade, to designate the: i) kind, quality, quantity, ii) intended purpose, iii) value, iv) geographical origin, v) the time of production of the goods or of the rendering of the services or vi) other characteristics of the goods or services.

Although, exclusion of descriptive marks which characterize goods or services is in part motivated by a desire to protect traders, the primary reason why the various marks are excluded is that they would not of themselves be taken or understood by customers to indicate the origin of goods.

“The more apt a word is to describe the goods of a manufacturer, the less apt it is to distinguish them from the goods of others.”

Before looking at each of these subcategories in more detail, let's make a general explanation on the idea of “exclusivity.”

Exclusivity

The exclusion under Art.6 (1) (e) applies where the trademark consist exclusively of signs which characterize the goods and services. This gives rise to the question of what is meant by ‘exclusively’?

The term ‘exclusively’ is often construed as covering the whole of the mark. In other words, ‘exclusively’ means that the whole of the mark must be descriptive. This implies that if it can be shown that part of the mark is non-descriptive, and then it will fall outside the remit of

Art.6 (1) (e), as long as that part is not significant or de minimis. Thus marks that are made up of descriptive and non-descriptive matter can be registered. For example, ZUM fruit could not be treated as being ‘exclusively’ descriptive of fruits because while fruit is descriptive, ZUM is an arbitrary term. However, it must be noted that a mark would not become registrable by the mere addition of trivialities, such as the addition of prefix or affix terms, or prepositions such as ‘The’. This is to say that for a trademark not to fall under Art.6 (1) (e), it is necessary that the additional element is fanciful, imaginative, unusual or peculiar. In effect, there must be some part of the mark (above and beyond the descriptive parts) that is distinctive. With these general points in mind, we now turn to look at the categories of descriptive marks excluded under Art.6 (1) (e).

i) Kind, quality or quantity

As per Art (1), marks, which exclusively serve to designate the kind, quality or quantity of goods and services, are excluded from trademark registration. For example, a mark that says “colligate”, for a colligate products is ineligible for trademark registration because the mark designates the kind or the type of goods as opposed to non-related terms. And similarly use of a mark, which reads ‘hair curl’ for an ointment that makes hair curl, would not be registered as it simply indicates the quality or the function of the goods to which the mark applies.

ii) Intended purpose

A mark that describes what the product does, or suggests what the consumer is to do with the product or outlines would not be registrable. Consequently, a phrase such as “Great excitement” would not be registrable for alcoholic beverages because competitors might wish to use the phrase when advertising their own products.

iii) Value

Trademarks that consist exclusively of signs that refer to goods or services will not be eligible for trademark registration. The reason is that consumers are unlikely to treat references to value as indications of origin. It also ensures that other traders are free to use common words and expressions to refer to things such as price and value.

iv) Geographical origin

The other exclusion envisaged under Art.6 (1)(e) pertains to the signs that consist of geographical names and places essentially, the bar against the geographically descriptive mark to prohibit monopoly of a term by one party that should be in the public domain.

‘Just as a manufacturer is not entitled to a monopoly of a laudatory or descriptive epithet, so he is not to claim his own territory, whether country, or town, which may in the future if not now, be the seat of the manufacture of goods similar to his own.’

Many marks that consist of geographical names are ineligible for trademarks registration. However, it should not be assumed that there is a blanket prohibition on the registration of all geographical names. For example, if it is shown that consumers associate a geographical name with single sources for particular products, the mark could be eligible for trademarks

registration. As such, the registrability of a mark should be determined with respect to the market and the goods of the applicant. Within the market test the inquiry would be whether the term conveys an immediate geographical sense to the consumer with respect to the particular product. If otherwise, geographical term conveys something rather than geographical significance, it is essentially arbitrary, because its relationship to the product is not natural but contrived and unrelated to any inherent meaning in the mark.

Used marks

So far we have discussed marks that are inherently ineligible for trademarks registration on the basis of non-distinctiveness. That is, we looked at the registrability of marks in their natural or unused state. This is to explain that it is possible to register otherwise ineligible marks by use. In this regard Art.6 (2) provides that “the provisions of Sub Arts. f and j (those trademarks excluded on the ground that they are non-distinctive, descriptive, or generic terms) of this article do not application for registration of a trademark, if the trademark has as a result of its use becomes well known in Ethiopia”. The result of this provision is that even if a mark is inherently lacking distinctiveness, it is now possible to register a mark if it does in fact have become well known in Ethiopia.

Under the above provision, the test for registrability of otherwise non-registrable mark is that there must be actual use, and by virtue of its use, the mark must be well known in Ethiopia. These tests seem to suggest that the actual use of a mark and its popularity in Ethiopia must have made it distinctive for the mark to be registered. The next question that needs to be asked where a mark has been used is: Has the mark in fact acquired a distinctive character?

The inquiry in relation to used marks is exclusively concerned with consumer perception: the needs of other traders are irrelevant. As a result, consumer recognition becomes the litmus test for whether a mark is registrable. The primary goal is to minimize consumer confusion by preventing other traders from using similar mark. To succeed in claim that a mark has become registrable through use, an applicant must be able to show that irrespective of how the mark was perceived in its natural state, the mark now operates as a trademark. That is, an applicant must be able to show that the primary significance of the word or sign indicates a source rather than, for example, merely, describing or praising the product. In this sense all that the law does is recognizing what already happened in practice.

In summary, if an otherwise descriptive trademark conveys something other than its natural connotation with the goods/or services it applies to, it is possibly eligible for trademark registration. The consumer, no one else, determines whether the trademark has acquired a new meaning other than its natural connotation. Although it is not settled as to how many consumers must certify the acquisition of new meaning, it is thought that it suffice that only a few consumers believe that the trademark indicates the origin of the product other than the original meaning of the term.

Deceptive Marks

As discussed earlier, the grand reason for exclusion of many marks lies in the distinctiveness of the mark. Needless to state, a mark that is devoid of distinctiveness is statutorily excluded from trademark registration. Under this section we will see exclusion of marks not for not

being non--distinctive, but for their power to deceive the consumer on the quality of the goods/ or services for which the trademark is attached.

Art.6(1)(h) states that a “trade mark that is likely to mislead the public or the business community, in particular as regards the geographical origin of the goods or services concerned, or their nature or characteristics is inadmissible for trade mark registration”. This prohibition tends to be applied to marks that, though distinctive, contain some kind of suggestion or allusion that is inaccurate or false. Consequently, a trademark application would be refused if it relates to a sign that suggests that the goods are made of a particular material, and they are not. This is particularly the case where the material would be a significant factor for a purchaser.

The prohibition against deceptive marks is motivated by the need to protect consumers from confusion, mistake, or deception. Deceptive marks are usually applied to indicate that the goods or services come from a much known state or place, or town for the production of the goods or services, where it is not. No surprisingly, the intention of the trader is to build goodwill by pretending that he produces goods or services in a place that the consumer regards as the most appropriate place for the production of the goods or services. Thus, prohibition against deceptive marks stands as a guard to the public from mistake, confusion or deception. The English trade mark registry, for example, refused an application to register “perfumes de Paris” for toiletries including perfumes on the ground that the mark created an expectation that the perfume would be manufactured in Paris, so that (if they were not) the trade mark would deceive the public not only as to the geographic origin of the goods but also as to their nature and quality.

Public order and Morality

The other most obvious absolute grounds relate to trade marks that are repugnant to public order or morality. Art.6 (1)(d) provides that the trademark that is contrary to public order and /or morality shall be inadmissible for a trademark registration. In many respects, it will be very difficult to determine which marks contravene principles of morality or public order. To mention just a few, words or images that are racist or blasphemous, or provocative for conflict are more likely to fall under the prohibition.

Relative grounds for refusal

Largely, the absolute grounds for refusal stipulate that trademarks which are inherently non-distinctive, or distractive, or deceptive or repugnant to public order and morality shall not be registrable. As such, the absolute grounds for refusal aim at protecting the public from confusion, mistake, deception, disorder or embarrassment. While the absolute ground for refusal plays that way, the relative grounds for refusal regulate the non- registrability of trademarks that are identical or similar to pre –existing marks. The relative grounds for refusal help to ensure that the protection given to trade mark owners does not conflict with any pre-existing marks or with any right that exists in the mark. It does this by ensuring that a mark should not be registered if it is similar to a pre-existing mark or if it conflicts with any rights that exist in the mark. This is exactly what Art 7 (para-1) Provides “a trademark shall not be registered because of third party priority rights”. When we closely inspect Art .7, we would be apt to raise two basics concerns: the value of the trademark, and its principal

function. If a trader was able to gain protection over a mark that was already protected, it would undermine the value given to the earlier trademark. Also if protection was allowed in an identical or similar sign, etc., it would mean that trademarks would not be able to function to indicate origin. Thus, the relative ground for refusal enables the owner of an earlier mark to prevent the registration of a sign by another, where the use of the sign would infringe the rights of the earlier trademark owner. At this juncture, it should be noted that many of the infringement cases are connected to the relative grounds for refusal. Hence, it must be noted that the relative grounds for refusal demand investigation of infringement cases.

The relative grounds for refusal are envisaged under Art.7. These provide that a trademark shall not be registered if, when compared with an earlier mark, it is found that;

- i. The marks are identical and the goods or services are identical
- ii. The marks are identical, and the goods or services are similar, and there is a likelihood of confusion, which includes the likelihood of association with the earlier mark
- iii. The marks are similar, and the goods or services are either identical or similar, and there is likelihood of confusion, which includes the likelihood of association between the marks
- iv. The marks are either identical or similar, and the goods or services are not similar, and where the earlier trademark has a reputation and use of the applicant's trademark would take unfair advantage of, or be detrimental to the earlier trademark

Collective Trademarks

Collective marks generally provide a device by which a number of individuals can identify themselves as members of a particular group. It indicates that either goods or services are produced by members of a collective group or simply indicates membership in a particular group. There are two forms of collective marks: collective trade (or service) mark, and collective membership marks. Collective trademarks are conventional marks in the sense that they indicate the origin of the product or service, which is a member of the group. However, it does not confer ownership of the mark in the producer or provider, but in a group of which each producer or provider is a member. On the other hand, collective membership marks are used to indicate membership, not origin of goods or services.

Under the new trade mark registration and protection proclamation, collective trade mark means 'a trade mark distinguishing the goods or services of members of an organization, which is the owner of the trade mark.' This provision underlines that collective trademark is used to distinguish the goods or services of members of an organization. And it provides that the ownership of the mark belongs to the organization, not individual members

Rights Accorded by Trademarks & Transfer of Trademarks

In its early days, a trademark was meant to indicate sources only. As such traders did not have a proprietary right over their marks. However, gradually, and largely due to the proliferation of commercial enterprises since the early 20th century, trademarks turned out to be assets in their own right. Now trademarks are treated as forms of property that can be used and exploited by the trademark owner. Like other intellectual property rights, trademark law

provides both exclusive rights and limitations. Before we go to the detail, it would be indispensable to look at the proprietorships, and some problems related to co-ownership.

Proprietorship

As per Art.4 ownership right in trademark is acquired by registration. By implication, the owner of a trademark is the person who registers it. In contrast to patent law that creates proprietary right prior to the application for a patent, the trademark law does not recognize that a trademark may have a proprietor before an application is made. The only proprietor is the registered person.

Co-ownership

Two or more people can own a trademark. From this arises a potential problem as to whether one co-owner can utilize the trademark without the consent of other co-owners. Our trademark law does not as such provide how each co-owner may utilize their rights. However, it sounds to assume that if there is no contract between the co-owners of a trade mark, each of the co-owner is entitled to equal undivided share in the registered trade mark. This also implies that each owner is permitted to do for his own benefit and without the need to account to the other, any act which would otherwise amount to an infringement of the registered mark. As regards the assignment and licensing of trademarks, Art 28(3) provides that “share in a trademark, which is subject of ownership, may not be transferred without the consent of all the co-owners.

Modes of exploitation

Trademarks can be exploited in different ways. The most common technique is for the owner to exploit the mark by himself. However, trademarks can also be exploited through assignment, license, succession or mortgage.

Self-exploitation

Often self-exploitation involves making the goods, applying the mark, and selling the goods. While a trademark owner may do all those acts by himself, he can use third parties. For example, a trademark owner may use goods manufactured by someone else, contract manufacture, to which they apply his marks. In these circumstances, the mark is not used to indicate that the goods were manufactured by the trademark owner. Instead, the mark indicates that the goods were selected and approved by the trademark owner.

Assignment

An assignment refers to a transfer of ownership of the trademark. As a result of an assignment, the assignee stands in the shoes of the assignor and is entitled to deal with the trademark as he or she pleases. Although the trademark owner enjoys a relative degree of freedom to assign his right in trademarks, any assignment of trademark is subject to substantive and procedural requirements. These requirements basically pertain to the consent of the co-owner, if any, and registration of the assignment by the registrar (office of intellectual property). In order for an assignment to be valid, the office must register it. It also seems that the registration of assignment of trademark is subject to notification requirements

under Art 16. As such, the registration requirement serves a greater role in protecting consumers from confusion or mistake. It should also be noted that in situations where more than one party owns that trademark, each co-owner must consent to such an assignment. It follows that a full assignment of a mark would require the cooperation and signatures of all co-owners.

License

The other most common mode of exploitation of trademarks is licensing of the trademarks. In general, a license is an authorization to use a trademark that would otherwise be prohibited without the consent of the trademark owner. In other words, a license enables the licensee to use the trade make for specified goods or services without infringing. Thus, so long as the use falls within the terms of the license, the licensee is immune from an action by the trademark owner.

Usually, license takes two forms: exclusive and non-exclusive license. An exclusive license is an agreement according to which the trademark owner not only confers permission on the licensee to use the trademark, but also promises that he will not grant any other license. Moreover, an exclusive license bars the licensor from exploiting the trademark, unless the license contract allows the licensor to use the trademarks for himself. In effect, an exclusive license confers a right in respect of the trademark to the exclusion of all others including the licensor, as the case may be.

Not arguably, the most important aspect of exclusive license is that it prevents others, and even the licensor from using the trademarks. From this arises, a question: Can the exclusive licensee sue infringers in his own name. In part, the issue boils down on whether the exclusive license contract creates effect on third parties.

In contrast to assignment, registration is not a validity requirement to license contract. However, this does not mean that to a license contract would be effective forthwith on third parties. The last paragraph of Art 29 (2) provides “the license contract shall have no effect against third parties until so registered”. The consequence of this provision is that in situations where the exclusive license contract is registered, the licensor could not possibly have any recourse against third parties. From this, it simply follows that the exclusive license cannot sue third parties for infringement. Now the next related question is what if the exclusive license contract is registered.

In many jurisdictions, the exclusive license is given the same rights as an assignee, and therefore has the right to bring proceedings in respect of any infringement that occurs after the date of the license agreement. However, the right to sue by the exclusive license is not explicitly provided under our trademark law. The right of license as per Art. 33, seems to be confined to the right to use the trademark during the duration of the license contract. However, there is not any established reason that prohibits the exclusive license from bringing proceeding against third parties. Undoubtedly, a registered exclusive license contract replaces the trademark owner. So it must be presumed that third parties associate the registered trademark not only with its owner, but also with the exclusive license.

A non-exclusive license is merely a permission to use a trademark for certain duration. Its distinctive feature is that it does not prohibit the owner of the trademark from granting further

licenses to third parties or from using the trade mark himself. But, like exclusive license, it must be made in writing.

Renunciation, invalidation and cancellation of right on a registered trade marks

In spite of the examination process, the trade mark register is not a guarantee of the validity of trade marks. As such, a registered trademark can always be removed from the register after registration. There are three reasons why a mark might be removed from the register. The first is if it is renounced by the owner himself as set out under Article 34. The second is if it is held to be invalid. And the third reason why a mark might be removed from register is cancellation for non-use.

Renunciation of right

Article 34(1) provides that ‘ the owner of a registered mark, who wishes to renounce the registration of a mark either wholly or in respect of part of the goods or services for which the trade mark is registered, may submit his application to the office for cancellation of the registration of the trademark’. The clause ‘...Who wishes to renounce...’ indicates that renunciation is a voluntary act. But this does not mean that the owner of a registered mark can renounce his right at home by saying that he does not want to use it. According to Article 34, the renunciation of right requires that the owner of a registered mark should apply for cancellation. And where the registered mark is under a license contract, the request for the renunciation of the right shall be accepted only upon the submission of a written declaration by which the licensee consents to the renunciation. The renunciation becomes effective only after the decision for cancellation has been entered into the register.

Invalidation

The other reason that removes a mark from registration is when the registration is held to be invalid. The grounds for invalidation are set under Articles 6 and 7. These provide that a mark may be declared invalid on the basis that it was registered in breach of one of the absolute or relative grounds for refusal. According to Article 36, the registration of a trade mark may be invalidated, by a written request of any interested person or by the office, in its own motion.

Like the ordinary law of contract, the decision declaring invalidation of registration of a trademark is effective as of the date of registration. However, there is an exception to this retroactive effect of invalidation registered of trademark. The exception as envisaged under para.2 of Article 37 provides:

When the trademark has been subjected to a license and the licensor has benefited from the license contract, the invalidation of the registration shall not enable the licensee to claim the repayment of money.

Cancellation

The most common reason why a trademark registration may be cancelled is on the basis of non- use. This reflects the notion that protection for marks is justified as a result of their use. As explained by a South African court, the general purpose of cancellation is:

To restrict the monopoly and protection conferred by registration to the proprietor's legitimate and actual trade requirements and to avoid the inconvenience, cost, oppression, and interference with trade that would result from allowing trademarks to be registered with the intention, not of using them but merely of preventing other traders from using them.

As there are a finite number of useful or valuable marks, cancellation for non-use can also be explained on the basis that it helps to ensure that unused marks are recycled.

The ground for cancellation of registered mark on the basis of non-use is limited by the relevant period of non-use. Article 35 (2) provides that a trademark may be cancelled on the basis that, during a continuous period of at least three years preceding the date of the request for cancellation of the trademark, it has not been put in Ethiopia, by the proprietor, or a licensee in respect of any of the goods or services for which it was registered. The only exception to this is when the owner or a licensee proves that the non-use of the trade mark was due to force majeure.

Infringement and Enforcement Measures

Infringement

Indeed, one of the most important rights secured under the trademarks law is the right to proceed against identical or similar use of marks on the basis that there is a likelihood of confusion with the registered mark. While trademark infringement proceedings will normally be brought by the owner of the mark, it is possible for an action to be brought by an exclusive licensee. It should be noted that the rights of the proprietor are enforceable against third parties with regard to acts done after the date of registration. The rights continue for seven years, and may be renewed, possibly indefinitely, for further seven years.

In order to determine whether a trademark has been infringed, it is necessary to compare the registered mark with the alleged infringing sign. The circumstances in which a mark may be infringed are stated under Art.7. These are where

- i. The marks are identical and the goods or services are identical
- ii. The marks are identical and the goods or services are similar and there is a likelihood of confusion, which includes the likelihood of association with the registered mark.
- iii. The marks are similar, and the goods or services are either identical or similar, and there is a likelihood of confusion, between the marks
- iv. The marks are either identical or similar, and the goods or services are not similar, and where the registered mark has a reputation and use of the defendant's mark would take unfair advantage of, or be detrimental to the distinctive character or the repute of the registered trademark.

Obviously, the grounds for infringement are the same with relative grounds for refusal. The key difference between an action for infringement and the relative grounds for refusal is that to establish infringement, it is necessary to show that the mark was "used in the course of trade".

Remedies

The remedies for infringement under the trade mark registration and protection consists of provisional measures, civil remedies that include injunctive relief and an accounting for profits, and criminal sanctions.

a) Provisional measures

It is often said that ‘prevention is better than cure’. This medical axiom heavily purports for institutional mechanisms which are directed towards preventing damage or injuries from occurring. Substantially in a similar context, the trademark registration and protection proclamation seems to give adequate weight to the prevention mechanism (or provisional measure, as it stands under the proclamation). As such, Article 39(a) states that ‘a court shall order prompt and effective provisional measures to prevent an infringement of a right from occurring, in particular to prevent the entry into the channels of commerce of import and export goods after completing customs formalities. In addition to the preventive functions of provisional measures, Article 39(b) provides that provisional measure may be in order to preserve relevant evidence in regard to an alleged infringement of a right.

As Article 39(a&b) envisages, a provisional measure needs to be prompt and effective. As such the procedure for adopting provisional measure should not allow the infringer to cause irreparable damage and/or conceal relevant evidence that may be used for establishing infringement. Accordingly, Article 39(2) allows the court to order provisional measures, without summoning the defendant, where it finds it appropriate. This is so, particularly, where any delay is likely to cause irreparable harm to the applicant or where there is a demonstrable risk of evidence being destroyed. According to Article 39(5) the provisional measure may take the form of search and seizure as provided under the civil procedure code and the criminal procedure code.

In deciding on an application for provisional measures, the court may in pursuant to Article 39(4) (a) consider if the threatened interest cannot be redressed by awarding damages; particularly, whether the threat is imminent, the prema facie strength of the action and the gravity of the prejudices a decision for or against may cause to either of the parties. The court may further undertake, as per Article 39(4) (c), a deeper investigation of the relative strength of the parties before granting the temporary injunction where the application of the criteria under Article 39(4) (a) puts the parties on equal position. The clause ‘where the application of the criteria under Article 39(4) (a) puts the parties on equal position’ is an important safeguard to the defendant in that it protects him from a surprise by a search and seizure court order. On the other hand, ‘deeper investigation’ by the court, which is for sure overtaken by other matters, may mean giving the defendant to infringe to the extent irreparable by awarding damage, or possibly it may give the defendant enough time to conceal or destroy relevant evidence.

b) Civil remedies

According to Article 40 the civil remedies take the form of permanent injunction and accounting of profits.

I. Permanent Injunction

A permanent injunction is granted, in favour of the plaintiff, after infringement of trade mark rights by the defendant is proved. Once ordered, permanent injunction prohibits the defendant from continuing the act of infringement. As such, permanent injunction guarantees the plaintiff from further infringement by the defendant. It also, though incidentally, protects the public from deception.

II. Accounting of profits

Article 40(1) (b) cum. Sub article (2) allows the plaintiff to recover profits gained from the use of the trademark, or alternatively the amount of royalty the defendant could have been charged had he used the trademark under the license contract. All the plaintiff has to demonstrate is the defendant's gross income; the burden is upon the defendant to prove items of cost. In other words, the plaintiff is required to prove only the total amount of the defendant's sales and need not worry about what portion of those gross sales are attributable to the cost of the items, advertising, administrative costs, and any other expenses that are deductible from gross amounts to determine profits.

The whole of the net profit derived from the sale of the defendant's goods or services in connection with the use of the trade mark shall be attributed to the use of the trade mark unless the defendant proves that part of the profit is attributive to other factors.

Additionally, the plaintiff does not have to demonstrate that, had the defendant not made these sales, the consumers would have purchased from the plaintiff instead.

Finally, it must be noted that the accounting for profit is a compensatory measure than a punitive standard. Hence the court must be certain that the accounting for profit does not yield a result that is so high as to work a punishment on the defendant rather than compensation to the plaintiff for any losses. The court should as well guard against the possibility that the accounting fails to consider factors that unfairly deprive the plaintiff of what is justly his.

c) Criminal Sanctions

In many countries, trademark infringements are conventionally classified as civil matters. As such, the remedy for a trademark owner for infringement is to seek compensation and/or injunction and/or destruction of the infringing devices. However, mainly due to the insufficiency of civil remedies to control the malady of piracy, some states have started to use the army of criminal sanction to strengthen the enforcement measures of trademarks rights.

One of the substantial advances envisaged under the new trade mark registration and protection proclamation is the incorporation of criminal sanctions, in addition to provisional and civil remedies. The criminal sanctions apply not only to acts committed intentionally but also to those acts committed with gross negligence.

The severity of the criminal sanction varies depending on the supposed degree of knowledge of the infringer. Where it is ascertained that the defendant has intentionally infringed rights protected under the trademark registration and protection proclamation, he would be punished with rigorous imprisonment of a term not less than 5 years and not more than 10 years. But, in the case of gross negligence, the punishment ranges from 1-5 years of gross negligence. However, it must be noted that the criminal sanctions under the trademark registration and protection proc. are applicable only where the criminal code doesn't impose heavier penalty.

Chapter V: Geographical Indications and Plant Breeders' Rights

Geographic Indication

It is indications on products of the geographic origin of the goods. It indicates the general source. The indication relates to the quality or reputation or other characteristics of the good. For example, “made in Ethiopia” is not influenced by the geographical Indication. Geographical indications are sometimes called appellations of origin. For example, “Sheno lega”, “Champagne” (name of a region in France) are geographical indications.

Plant breeders' right

As we have discussed earlier, patent law excludes plant varieties. In part this was because of the belief that the development of new varieties was part and parcel of traditional farming practices rather than a distinct activity of breeders. However, largely due to the growth of the seed industries over the turn of the 20th century, many states started to offer plant breeders right for a new plant variety. In our country, the plant breeders' right is a new arrangement recognized by the plant breeders' protection proclamation no. 481/2006

Validity Requirement

The plant breeders' protection proclamation (here after called PBP) requires that in order to be protected, the plant variety must be new, distinct, uniform and stable. The requirement that the variety be new is not as stringent as the novelty requirement in patent law. As per the Art of the PBP, a variety is new if there has been no sale or disposal propagating harvested material in Ethiopia more than one year prior to the application.

Under the PBP, the requirement of novelty takes three features. The first is that novelty is not lost by prior use (for example, growth) of the Variety, but only by prior sale or disposal. As such a plant can be grown in some ones garden for years prior to application and an application still success. Indeed it seems that the applicant still obtains a plant variety even if they have given away propagating or harvesting materials, as long as this was not for purposes of exploiting the variety. The second notable feature is that the nobility requirement permits for a grace period. That is, it allows for periods in which the applicant can commercialize the plant prior to grant without prejudicing the application. Thirdly, and quit uniquely, the only disposals or sales to be taken into account when considering the novelty of a particular variety are those by the applicant himself or with his consent. Sales of material by a third party that has independently developed the same variety will not render the variety lacking in novelty. In such circumstances, priorities are accorded to the first to apply. However, no protection is given to the independent developer via prior user's right, as a monopoly may be granted to a person over an activity or trade which someone else was doing already.

In addition to the requirement of novelty, the variety must be distinct, uniform, and stable. A variety is distinct if it is clearly distinguishable by one or more characteristics that are capable of a precise description from any other variety whose existence is a matter of common knowledge at the time of application. Distinctiveness may be measured through visible differences in outward appearance, such as height, size of leaves, leave colour. It may also be tested through physiological differences associated with the variety particularly chemical or biological, structure, such as resistance to disease, or ability to withstand certain conditions.

A variety is uniform if it is sufficiently uniform in those characteristics that make it distinct. This means that nearly all examples of the variety must bear the characteristics that make the plant distinct. However, it is not necessary for a variety to be completely uniform. This is to say that a variety will still be uniform even if a few of the plants that are grown do not exhibit the critical characteristics.

A variety is stable if the characteristics that make it distinct remain unchanged after repeated propagation. The idea is that while a first generation might be distinct and uniform, when a second generation is grown a large number of deviants appear. This requires an assessment to be made of the inherent capability of the variety to remain true to its original characteristics. However, as with the testing of uniformity, deviants that appear as a result of pollination by nearby crops are ignored.

Rights and limitation

A plant breeder's right confers on the breeders an exclusive right to commercialize propagating materials harvested materials, and derivatives. In a particular, a plant breeder is given the right to produce or reproduce the variety, to harvest the material for the purpose of propagation, and to sell or offer for sale. In addition, the plant breeder's right extends beyond the registered variety to cover varieties that are dependent on the protected variety. Dependent varieties include varieties whose production requires the repeated use of the protected variety.

The other important feature of the plant breeders' right is that it accommodates the competing interests of developers, users, and farmers, in particular. According to Art 6 acts done privately and for non-commercial purposes, and acts done for experimental purposes are regarded as justified acts. Furthermore, acts done for the purpose of breeding or discovering and developing other varieties do not infringe plant breeders' right.

The other most important exception pertains to the privilege given to farmers. A farmer is authorized to use the product of his harvest for propagation or multiplication by him on his farm, and to sow them in his farmland. More ever, he is entitled to sell the products of his harvest in his farmland. However, it would constitute infringement if the farmer sells the harvest in the market, which in a way amounts to competing with the proprietor of the plant breeder's right.